



North East
Derbyshire
District Council

North East Derbyshire Local Plan

2014 - 2034

Adopted

November 2021

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1. Introduction

- 1.1 Planning shapes the places where we live, work, shop and spend our leisure time. North East Derbyshire District Council is required by legislation to prepare a Local Plan setting out its vision, objectives and policies to guide the future sustainable growth and development of the area.

North East Derbyshire's Local Plan

- 1.2 North East Derbyshire's Local Plan covers the area of North East Derbyshire outside of the Peak District National Park and looks forward to 2034. The Plan will be used to guide decisions on planning applications and areas where investment should be prioritised. It forms part of the Development Plan for North East Derbyshire and replaces the 'saved' policies of the 2005 Adopted North East Derbyshire District Local Plan. A list of all of the saved policies from the 2005 Adopted Local Plan deleted by this Local Plan is set out in Appendix A. The Local Plan does not cover minerals and waste planning as this is the responsibility of Derbyshire County Council. Once adopted, the new Derby and Derbyshire Minerals Local Plan and the Derby and Derbyshire Waste Local Plan will form part of the Development Plan for North East Derbyshire.
- 1.3 The Local Plan contains a vision, objectives and a planning strategy for development. This includes policies on the scale of development and its overall pattern across the district. It also allocates sites for development needed to meet the district's objectively assessed needs, and designates important areas to be protected and enhanced. The Plan also sets out criteria based policies on

a range of planning issues to be used to determine planning applications on allocated and 'windfall' sites. A set of targets and indicators is included to provide the basis for monitoring the plan's effectiveness and to indicate the need for any early review.

Format of the Local Plan

- 1.4 This Plan sets out:
- a description of the area and the issues that North East Derbyshire faces;
 - what kind of place North East Derbyshire might be by 2034; and
 - the Council's policies and proposals to plan and manage growth and development to deal with the issues facing the district, and to achieve the Plan's vision for North East Derbyshire.
- 1.5 This Plan consists of the written document, which sets out and explains the Council's policies, and the Policies Map which shows where they apply. The written document starts with this introduction to North East Derbyshire's Local Plan including a brief summary of the context within which the Plan is being prepared. The document structure is as follows:
- **Chapter 2** provides a short description of the geographic, economic, social and environmental characteristics of the area (called the Spatial Portrait) along with the key issues facing the district.
 - **Chapter 3** sets out the Plan's vision for North East Derbyshire describing the kind of place North East Derbyshire will be by 2034. A number of objectives are defined to achieve the vision and help guide the Plan's strategy.

- **Chapter 4** sets out the Plan's strategy for housing, employment and retail growth together with overarching policies to guide the distribution of development. It also includes 3 strategic site allocations earmarking land for major mixed use developments and which are considered critical to achieving the strategy.
 - **Chapter's 5 and 6** set out policies on housing and economic development respectively. Both chapters propose further housing and employment land allocations at the district's towns and other more sustainable settlements, and which will deliver the levels of growth set out in the strategy.
 - **Chapter 7** sets out area based policies, building on the settlement and retail hierarchy policies, which focus on the sustainable growth of North East Derbyshire's towns namely Clay Cross, Dronfield, Eckington and Killamarsh.
 - **Chapter 8** sets out specific criteria based policies aimed at achieving sustainable patterns and forms of development including policies to protect and enhance the natural and built environment, to address climate change, and to ensure high quality design and place-making throughout North East Derbyshire.
 - **Chapter 9** sets out policies dealing with the delivery of the physical, social and green infrastructure required to support the development and growth set out in the Plan.
 - **Chapter 10** sets out the arrangements for monitoring the effectiveness of the Plan's policies.
- 1.6 The Plan covers a wide range of planning issues and it is often the case that several policies are relevant to a development proposed. Therefore, it is important that the plan is read as a whole rather than treating each policy in isolation.
- 1.7 Where practicable, cross referencing between policies has been used where this makes the Plan easier to read. However, absence of cross references does not mean that other policies of the Plan do not apply.
- 1.8 Furthermore, where a policy has a list of criteria, all of them should be met, unless otherwise stated. Applications for planning permission will be considered against all relevant policies in the Local Plan and against the National Planning Policy Framework. Development proposals that comply with all relevant policies will be supported.
- 1.9 Some policies in the Plan refer to 'Supplementary Planning Documents' (SPDs). These documents provide detailed information on the implementation of certain policies and aim to help those preparing planning applications. Although not part of the Plan, SPDs may be taken into account as a 'material consideration' in considering a planning application.



Local Plan Context

- 1.10 The Local Plan has been drawn up in accordance with the legislation regulating plan-making and in the context of the government's planning policies. In addition, regard has been taken of the relevant plans and strategies of other public bodies and organisations insofar as they raise strategic planning matters of cross boundary significance for North East Derbyshire.

National Planning Policy

- 1.11 In terms of national planning policy, the Local Plan has been prepared in the context of national planning policy principally set out in the National Planning Policy Framework (NPPF) published in March 2012, and more detailed National Planning Practice Guidance (NPPG).
- 1.12 The NPPF states that Local Plans must be prepared with the objective of contributing to the achievement of sustainable development¹ which requires the planning system to perform an economic, social, and environmental role².
- 1.13 Legislation also requires that Plans are "sound", namely that they have been positively prepared, justified, effective and are consistent with national planning policies³. In order to ensure "soundness" the Local Plan must be underpinned by an up to date evidence base that is proportionate to the economic, social and environmental issues facing the area⁴.

Relationship with other Local Plans and the Duty to Co-operate

- 1.14 As a statutory consultee, the Council is consulted by and in turn consults with neighbouring authorities in the preparation of Local Plans. In addition, in order to fulfil the Duty to Co-operate which is both a legal requirement and relates to the test of soundness, the council along with its neighbours and a number of public sector bodies and service providers is required to engage constructively, actively and on an ongoing basis to co-operate proactively on strategic matters in the preparation of Local Plans.
- 1.15 North East Derbyshire wraps around Chesterfield and extends northwards towards Sheffield. As such there is a complex functional and physical relationship between different parts of the district and other areas outside the district in both Derbyshire and South Yorkshire. This is described in more detail in Chapter 2 - Spatial Portrait. The Council has therefore co-operated closely with all of its neighbouring authorities together with other relevant bodies in developing the Plan and in the preparation of the evidence used to underpin the Plan's policies. This has included work on the Strategic Housing Market Assessment, the Gypsy and Traveller Accommodation Assessment, the Retail Capacity Study, and a number of other technical studies on transport, and flood risk and water cycle issues, and the review of the Green Belt, for example.

¹ NPPF (2012), paragraph 151, page 37

² NPPF (2012), paragraph 7, page 2

³ NPPF (2012), paragraph 182, page 43

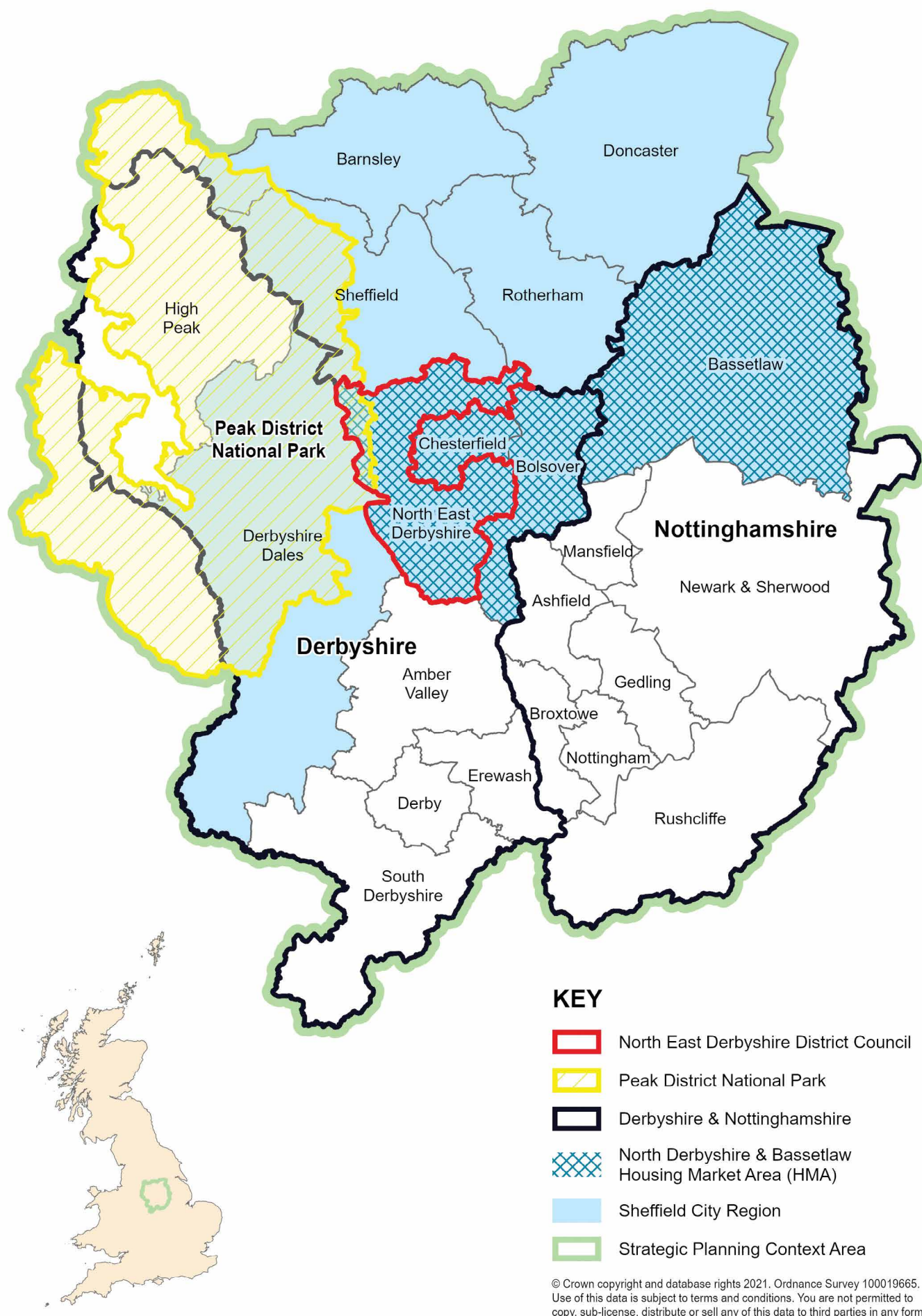
⁴ NPPF (2012), paragraph 158, page 38

Local Enterprise Partnerships (LEPs)

- 1.16 LEPs have been established as collaboration between the public and private sectors to ensure the growth of a rebalanced local economy and to contribute significantly to the renewal of the national economy as a whole. North East Derbyshire District sits within the area covered by two Local Enterprise Partnerships (LEPs): the Sheffield City Region LEP, and the D2N2 LEP
- 1.17 As part of its long term economic plan the Government has agreed Growth Deals with both LEPs. Whilst the Sheffield City Region Growth Deal will boost the economic growth of the region with investments in key transport, infrastructure, skills and business support projects, the D2N2 Growth Deal will invest in a number of projects in the LEP's priority sectors - including advanced transport engineering and life sciences.
- 1.18 Taken together these LEP Growth Deals received £91.3 million in their first year, and as part of the Government's on-going commitment to the LEPs provided an indicative award of a further £378.4 million of funding from 2016/17 onwards. Both deals aim to help create at least 26,000 jobs, allow some 13,000 homes to be built, and bring forward at least £790 million of additional investment from public and private investment across the Sheffield City Region, and Derbyshire and Nottinghamshire area.
- 1.19 Within North East Derbyshire, the Growth Deal will directly fund the A61 Growth Corridor Strategy, which targets transport infrastructure improvements along the A61 to release additional site capacity at key development sites and enable more efficient movement of goods, services and people through this important economic corridor. Figure 1.1 below shows the district's location and its relationship with other authorities within the wider area.



Figure 1.1: North East Derbyshire in context



Local Strategies and Initiatives

Sustainable Community Strategy for Chesterfield and North East Derbyshire 2009-2026

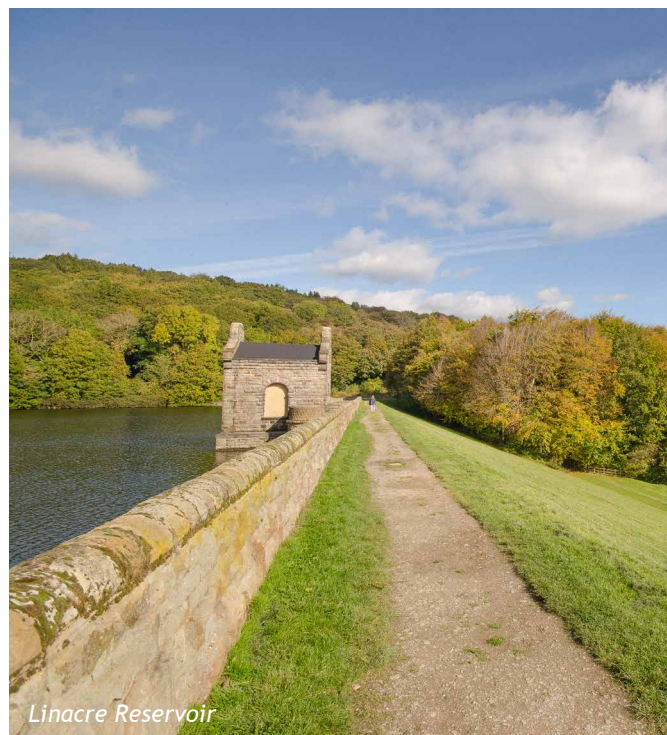
1.20 Although there is no longer a statutory requirement to produce a Sustainable Community Strategy, this document produced by the CHART Local Strategic Partnership provides a framework for service providers who operate in the area to target resources effectively to address the needs of communities and improve the quality of life in the district for all. Its overarching strategic areas identified for priority actions relate to:

- Accessible communities
- Living communities
- Safer, healthier and active communities
- Sustainable communities
- Working and learning communities

1.21 The Local Plan provides an important means of expressing the spatial aspects of the Sustainable Community Strategy.

North East Derbyshire District Corporate Plan 2015 - 2019

1.22 The Council's Corporate Plan was developed following consultation with local community organisations. It sets out the Council's main aim to unlock the district's growth potential with a focus on supporting enterprise, realising the development potential of major employment sites, and enabling housing growth. It further aims to support healthier, cleaner and greener communities.



North East Derbyshire Growth Strategy & Action Plan (2014)

1.23 North East Derbyshire District Council, working in partnership with Bolsover District Council has prepared a Growth Strategy which sets out the Council's ambitions, priorities and approach that it will take to enable the growth of the local economy to create stability and prosperity. The Growth Strategy includes as its strategic priorities:

- supporting enterprise,
- enabling housing growth; and
- unlocking development potential.

1.24 The Growth Strategy recognises that there needs to be significant residential development over the next 10 years to meet future requirements and to achieve a better balance between future housing and workforce growth and available employment. It sets out to align with the growth plans of the LEPs, specifically Sheffield City Region (SCR) and Derbyshire and Nottinghamshire (D2N2).

1.25 The Local Plan will be a key delivery mechanism for a number of transformational projects for housing and employment, including:

- Developing the M1 Strategic Growth Corridor proposal as the principal economic growth location,
- Bringing forward investment and development along the A61 Growth Corridor, working with the LEPs and Derbyshire County Council
- Bringing forward site development at principal employment growth locations, including:
 - Callywhite Lane, Dronfield
 - Former Biwaters Site, Clay Cross
 - The Avenue site, Wingerworth
 - Markham Vale, Long Duckmanton
 - Former Coalite Site, Long Duckmanton
- Realising major housing /mixed use regeneration projects at
 - Former Biwaters Site, Clay Cross
 - The Avenue site, Wingerworth
 - Former Coalite Site, Long Duckmanton
- Investigating the potential for new strategic housing sites, including within the M1 Strategic Growth Corridor and eastern sub-area
- Facilitating a housebuilding programme, including a range of affordable and social housing, and the regeneration of the Council's non-traditional housing stock.

The Housing and Economic Development Strategy 2015-20

1.26 The Strategy identifies key challenges and opportunities facing the District over the next 5 years. From these, it sets a range of Key Strategic Objectives which will direct the delivery of the

Strategy to meet the housing and economic needs of the District. The Local Plan will have a key role in delivering many of these objectives.

Regeneration Frameworks (Clay Cross, Dronfield, Eckington, and Killamarsh)

1.27 In order to provide a focus for the physical regeneration of the district's main towns the Council has adopted Regeneration Framework documents for Clay Cross, Dronfield, Eckington, and Killamarsh. These aim to:

- identify key opportunities for improvement within the towns
- set a strategic approach to delivering improvements
- attract and manage investment
- coordinate the delivery of projects
- ensure that projects are of the highest quality

1.28 Many of the general planning and design principles within the Frameworks have been taken forward through the policies in the Local Plan, for example Policy SDC12 on High Quality Design and Place Making. In addition, the more specific projects and infrastructure improvements which are considered to have prospects for delivery within the plan period have been embedded within the area based policies in Chapter 7: Sustainable Places.

One Public Estate Programme (Clay Cross, Eckington, Killamarsh and Mill Lane at Wingerworth)

1.29 To further strengthen its efforts on regeneration the Council secured funding from the Government's One Public Estate Programme (OPE) which focuses on the Council's collective

assets. The monies will be used for appraisal/feasibility studies of the town centres in Clay Cross, Eckington and Killamarsh and for a masterplan for the Mill Lane area in Wingerworth.

Sustainability Appraisal

- 1.30 In drawing up a Local Plan, the local planning authority must carry out an appraisal of the sustainability of the Plan's proposals. Consequently, a process called Sustainability Appraisal (hereinafter referred to as SA) has been carried out alongside the preparation of this Local Plan. The process helped the local authority to check and consider how its emerging local plan policies may affect the achievement of sustainable development. Consequently, SA has led to certain amendments to the plan's policies through the process of its preparation.
- 1.31 SA is an iterative process that has been undertaken throughout the development of the Local Plan as options have been explored and refined and policies of the plan produced.

Habitats Regulations Assessment

- 1.32 The Local Plan has been subject to Habitats Regulation Assessment (HRA) to identify any aspects of the Plan that would have the potential to cause a likely significant effect on European Sites of nature conservation importance. Although this is not expected, the Council is committed to working with Natural England and other authorities to monitor the impacts of development on European sites to help ensure that significant effects do not arise unexpectedly in the future.
- 1.33 The designated sites of European interest in North East Derbyshire are the Peak District Moors Special Protection Area (SPA) and the South Pennine Moors Special Area of Conservation (SAC), albeit they are located outside of the area covered by the Local Plan. Other European sites near to North East Derbyshire, but outside of the administrative boundary, are the Peak District Dales SAC, and the Gang Mine SAC in Derbyshire Dales District.



2. Spatial Portrait

Description of the Area

- 2.1 North East Derbyshire covers an area of 276 square kilometres, and has a population of just over 99,000 people. It forms part of the North Derbyshire and Bassetlaw Housing Market Area (HMA), together with Bolsover, Bassetlaw and Chesterfield Borough; originally identified in 2008 through the evidence on the East Midlands Regional Spatial Strategy. Because of its geographical position on the border of North Derbyshire and South Yorkshire it also sits within two Local Economic Partnership areas; the Sheffield City Region, and the D2N2 economic area covering Derbyshire and Nottinghamshire.
- 2.2 The District wraps around Chesterfield and adjoins five other local authorities' areas including Amber Valley to the south, Derbyshire Dales to the west, Bolsover to the east, and Sheffield City, and the Borough of Rotherham to the north. The west of the District is largely rural and forms part of the eastern edge of the Peak District National Park which is a local planning authority in its own right. The area covered by the North East Derbyshire Local Plan is that part of North East Derbyshire which falls outside the Peak District National Park. Figure 2.1 shows the Local Plan area and its location within the wider East Midlands region. It also shows the district's relationship with other nearby towns and cities within other local authority areas which it has been important to work closely with under the Duty to Co-operate - see Chapter 1.
- 2.3 The District comprises the four main towns of Clay Cross, Dronfield, Eckington and Killamarsh, together with a number of large and small villages, and hamlets set within attractive countryside settings. The four towns have important roles to play in providing the economic and social hearts of communities in North East Derbyshire, and are home to about 48% of the population. Clay Cross is located in the south of the District, whilst Dronfield the district's largest town, and Eckington and Killamarsh are located in the north. Outside of these towns 34% of the district's population live within larger villages with a good range of facilities, whilst the remaining 18% are scattered within the district's other smaller settlements.
- 2.4 North East Derbyshire being located in the centre of the country has good accessibility to high quality transport links, with the M1 motorway junctions 29, 29a and 30 lying to the east of the District, providing communities and businesses with access to the motorway. It also has the Midland Mainline running through it. Whilst Dronfield is the only one of the four towns in the district with a railway station, Chesterfield, with fast and direct rail connections to Nottingham, Derby, Leicester, and London to the south, is easily accessible to residents and businesses. In addition, the Midland Mainline from Chesterfield provides access to cities in the north of England such as Sheffield and Leeds.
- 2.5 In broad terms, North East Derbyshire can be subdivided into four distinct sub-areas. These areas display close physical and functional relationships, each having their own characteristics and development needs to be addressed in the Local Plan. The four sub-areas are outlined graphically on Figure 2.1, and described in more detail below.

North Sub-Area

- 2.6 The north of the District contains three of the District's four towns; Dronfield, Eckington, and Killamarsh, and a number of much smaller settlements surrounded by countryside comprising mainly of wooded hills and valleys. The rural area lies entirely in the Green Belt and the towns and other settlements have generally been developed up to their boundaries, meaning that there are few development sites still available within their existing built up areas. All three towns have a coal mining history, although there is little evidence of that today. Each of these towns has its own designated town centre, which in the main are relatively successful in terms of local shopping and service provision. There has however been a need identified to regenerate all three centres in order to improve the quality of the town centre environment. These towns relate closely to the Sheffield conurbation and just under a quarter of people commute out of the District to work in the city.

South Sub-Area

- 2.7 The south of the District contains the town of Clay Cross and a close grouping of other former mining settlements that includes Grassmoor, North Wingfield, Tupton, Wingerworth, and Pilsley. Set within open countryside these settlements have a strong sense of identity and community which is characterised by the important open areas between them. Clay Cross is currently undergoing major regeneration in and around the town centre. This will be complemented by the re-development of the former Biwaters and Avenue industrial sites that have both been identified as important strategic sites that will provide new homes, jobs, and community facilities following their restoration.

East Sub-Area

- 2.8 The east of the District contains communities and employment locations which are strongly linked with Chesterfield and the M1 motorway, including Holmewood, Calow, Long Duckmanton, and Temple Normanton. The area contains the business and distribution park with Enterprise Zone status at Markham Vale, as well as a major area of previously developed land at the former Coalite works, a large part of which is within Bolsover district. Sutton Scarsdale Hall, a Grade 1 listed Georgian ruined stately home, is located in the east of the District, and the settings of Bolsover Castle and Hardwick Hall, both within Bolsover, have cross boundary implications in the east of the District. It will be important that any new development in the east takes this into account and is sensitive to the need to protect these designated heritage assets.

West Sub-Area

- 2.9 The west of the District lies on the edge of the Peak District National Park, and is particularly attractive including some of the finest Derbyshire landscape outside of the National Park. The area contains a number of villages and farms set in a rural backdrop of dark millstone grit that has provided the stone for many of the buildings.



Figure 2.1: North East Derbyshire District Sub-Areas



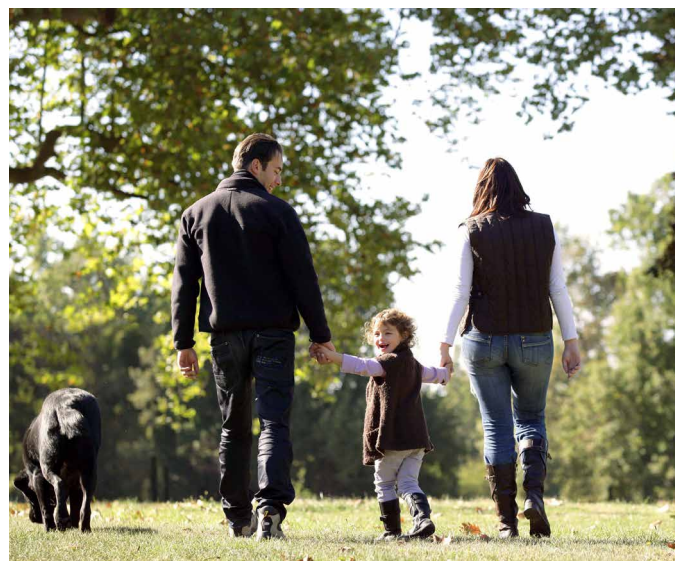
- 2.10 A key feature that gives the District its distinctive character is the green space that separates and links its towns and villages. Local people have already identified the importance of this green space and a key feature of the Strategy will be to protect and enhance the most important areas and ensure that opportunities to access this countryside are increased. The District also has a number of other important historic and environmental assets that play a crucial role in characterising its urban and rural areas. These include listed buildings and conservation areas as well as a large number of important sites for nature conservation.
- 2.11 There are 23 parish councils and one town council located within the District. At the time of writing, there were a number of Neighbourhood Plans which had come into effect or were in the process of preparation covering parts of the district. These include neighbourhood plans for the parishes of Ashover, Brackenfield, Brampton, Holymoorside and Walton, Wingerworth, and Wessington; and the town of Dronfield.

Key Issues

- 2.12 Drawing on the demographic data and information related to the District and its communities detailed within the Authority Monitoring Report, the Sustainability Appraisal, and other evidence base documents there are a range of important issues in the area that the Local Plan will seek to plan positively for or help to address. Whilst some of the issues identified are relevant at national and regional levels, the list includes both positive and negative attributes and focuses on specific issues relevant to North East Derbyshire. These key issues which are not ranked in any particular order of priority or importance are set out below:

Population

- 2.13 North East Derbyshire, in common with many other areas, is experiencing an ageing population. This will have implications for certain types of housing and other infrastructure such as access to the health service provision. It also means there is a need to provide more family and affordable housing and job opportunities so as to attract and retain younger people which will serve to re-balance the district's population profile.



Settlements and Separation

- 2.14 The District contains four main towns together with a number of other large and small settlements set within attractive countryside and landscapes which are highly valued locally.
- 2.15 Within the existing built up areas of settlements past development has gradually taken up most development opportunities including on previously developed land. As a consequence there will inevitably have to be some loss of countryside in order to meet the district's development needs.
- 2.16 Across the south of the District the settlement pattern is characterised by a number of large villages and the town of Clay Cross. Some of these

settlements lie in relatively close proximity to one another and in certain areas development has led to their coalescence such that their individual identity and the sense of separation between them is a cause for concern.

- 2.17 In the north of the District lie the towns of Dronfield, Eckington and Killamarsh. Given that these towns are surrounded by Green Belt, there are issues in balancing the housing needs of these specific areas against the impact on the Green Belt and the countryside.

Housing

- 2.18 There is a need for more housing across the District to cater for future increase in households including for affordable homes, specialist housing, and gypsies and travellers accommodation.
- 2.19 The high ratio of house prices to household income means that affordability of housing is a key issue for many parts of North East Derbyshire. Access to capital for a deposit and potentially some mortgage restrictions, particularly where employment is temporary, are the main barriers that limit peoples' ability to buy their own home.

Economy & Employment

- 2.20 The District has a low jobs density and there is a need to provide employment locally in order to provide the opportunity for people to work close to where they live.
- 2.21 The District has traditionally relied on manufacturing and there is a need to diversify the local economy to create jobs in growth sectors such as advanced manufacturing, logistics and knowledge based sectors.

- 2.22 North East Derbyshire has lower than average wage levels, and a lower proportion of the workforce with higher level qualifications when compared with regional and national averages.
- 2.23 Unemployment is high in some parts of the district, including within Grassmoor, Holmewood, Heath and Clay Cross south wards.
- 2.24 There is potential to capitalise on the district's tourism and visitor economy given its location on the edge of the Peak District National Park and its close proximity to a number of other important tourism attractions. These include existing ones such as Chatsworth House, Hardwick Hall, Bolsover Castle, Renishaw Hall, and the potential new major leisure and visitor resorts being planned on the Birchall Estate known as Peak Resort near Unstone in Chesterfield Borough, and the Pit House West site near to Rother Valley Country Park in Rotherham Borough.

Town Centres

- 2.25 The town centres of Clay Cross, Dronfield, Eckington and Killamarsh are all in need of continued support and investment to build upon their strengths, and to help sustain and regenerate them into the future.



- 2.26 Elsewhere across the District there is a hierarchy of smaller local centres which need continued support to sustain their role as day to day shopping destinations.



Deprivation

- 2.27 Although not a major issue across North East Derbyshire the Index of Multiple Deprivation shows that there are pockets of deprivation. About 10%

of the District's population live in the top 20% most deprived neighbourhoods in the country and suffer from challenges associated with low income, poor health, low employment, poor education and skills, and difficulties accessing housing and services.

Health

- 2.28 The level of health and life expectancy of people living in North East Derbyshire differs significantly between those people living in the most deprived areas compared with those in the least deprived areas.

Accessibility and Transport

- 2.29 North East Derbyshire is well located in relation to other major centres of population and has good access to national road and rail networks due to its proximity to Junctions 29, 29a and 30 of the M1 motorway, and stations on the Midland Mainline.
- 2.30 Traffic congestion is an issue at specific locations in the District especially along the A61 corridor which can become congested during busy periods, particularly if there are problems on the M1.
- 2.31 Bus services are relatively frequent within the main towns, but more patchy and infrequent in the more rural parts of the district.
- 2.32 Dronfield is the only town with a railway station, but elsewhere residents and business have access to the railway station at Chesterfield that provides good services both to London and the north of the country. In the long term Chesterfield is also set to become an HS2 station which will improve journey times to the capital and other major towns and cities along the new route.

Infrastructure

- 2.33 New development will generate a need for new or improved infrastructure and solutions will be needed, in consultation with infrastructure providers, to enable future development needs to be accommodated.
- 2.34 The District contains a network of green and blue infrastructure assets that are important for their recreation, landscape and biodiversity value, and which require safeguarding and improving for future generations to enjoy. There are significant opportunities to improve linkages between areas of open space, parks and the wider countryside.

Climate Change and Flooding

- 2.35 Although the risk of flooding is not widespread it is a constraint to development in certain locations at the district's main towns and some of the larger villages including North Wingfield, Grassmoor and Wingerworth.
- 2.36 Ensuring that development contributes towards reducing flood risk through its location, design and layout by improvements to drainage infrastructure and the use of sustainable drainage systems will be a priority.
- 2.37 There are opportunities to increase the capacity of renewable energy generation in the district to help reduce emissions and climate change.

Water, Air and Soil Quality

- 2.38 Improvements in water quality in the district are required to meet the standards required by the Water Framework Directive.
- 2.39 The development of new and improved infrastructure to accompany growth has the potential to lead to an increase in soil erosion and soil loss.

- 2.40 Overall air quality is good in North East Derbyshire. Although the more densely populated areas in the east of the district and close to the M1 motorway have the highest levels of air pollution, no Air Quality Management Areas are currently, or anticipated to be declared in the District during the plan period.

Natural Environment

- 2.41 A significant number of protected sites and species are present in North East Derbyshire.
- 2.42 The District's landscape is one of contrast and diversity. Woodland, hilly pastures, green dales and waterways all contribute to the District's landscape, making it unique from other areas across the country. There are potential effects on the integrity of the district's landscape.
- 2.43 Growth will place pressures and heighten the need to protect and enhance the district's wealth of natural environment assets.

Built Environment

- 2.44 There is a wealth of heritage assets and archaeological remains across the District that adds to the character of the area and which is in need of long term protection and management to maintain its long term future.
- 2.45 Good design is a key aspect of achieving sustainable development in North East Derbyshire and new development should positively respect the area's local distinctiveness and sense of place through its design especially in regard to heritage assets.
- 2.46 Archaeological remains, both seen and unseen which have the potential to be affected by growth and development in North East Derbyshire will need to be protected and where possible enhanced to secure their long term future.

3. Vision and Objectives

- 3.1 This chapter sets out the underlying thinking behind the Plan. It consists of a Plan vision together with a set of accompanying strategic objectives. The Plan's vision sets out how the area and places within it should develop over the long term, as well as providing a clear framework for the Plan's policies.

Vision

- 3.2 In 2015 the Council published its Corporate Plan 2015 - 2019 following consultation with local community organisations. The Corporate Plan sets out the direction which the District Council would like to take, setting out a vision together with four main aims to help create a more vibrant and sustainable North East Derbyshire. The Council's Corporate vision is that with a focus on the key aim of unlocking the district's growth potential:

“North East Derbyshire will be a place that is clean and attractive, a place where people are proud to live and work, where they will prosper and are safe, happy and healthy”.

- 3.3 The following vision for the Local Plan builds on this corporate vision and its growth aspirations, setting out how the Plan area will develop by 2034.

Local Plan Vision

“By 2034, everyone in North East Derbyshire will enjoy a high quality of life, with residents, businesses and visitors all benefitting from what the District has to offer.”

- 3.4 The District will have accommodated sustainable growth whilst the distinct character of different areas and communities will have continued to be preserved and promoted, creating safe,

integrated and healthy communities. This will be achieved by:

- growing and diversifying the local economy to create stability and prosperity, supporting businesses and regenerating the most deprived areas;
 - sharing in the economic benefits of regeneration and sustainable growth in the wider Sheffield City Region and D2N2 Local Economic Partnership areas;
 - encouraging rural diversification that recognises the District's tourism assets;
 - providing new housing with a range of house types and tenures which meets the needs of a growing and ageing population, including through neighbourhood regeneration of the most deprived areas;
 - requiring high quality design in new development which addresses climate change, creates and maintains a sense of place, improves local people's quality of life, and reduces the potential for crime and anti-social behaviour;
 - protecting and enhancing the natural, built, and historic environment;
 - protecting and creating open spaces to provide accessible green infrastructure and biodiversity networks which promote healthy lifestyles and provide realistic alternatives to the use of the private car.
- 3.5 In the North of the District, growth and expansion of the towns of Dronfield, Eckington and Killamarsh, will have met the development needs of communities in the northern part of the district

helping to deliver much needed affordable homes, and regenerate and renew their towns' centres. In planning for growth new high quality housing will have successfully integrated itself into these settlements minimising its impact upon the strategic functions of the Green Belt, and creating strong defensible boundaries for the future.

- 3.6 In the West, opportunities for tourism and farm diversification will have brought economic benefits to the District, strengthening its role as the 'Gateway to the Peak District', helping to secure the area's economic viability, whilst continuing to protect the high quality and open nature of the countryside. Some limited housing and employment development will have continued to support the vitality of rural villages and services, and provided affordable housing.
- 3.7 In the South of the District, Clay Cross will have secured its economic revival, founded on its proud heritage, and will have strengthened its role as a service centre for the surrounding network of villages. Flagship projects such as at the former Avenue and Biwaters sites will have delivered imaginative new developments to improve the local environment, enhancing facilities and providing employment benefits for local communities.
- 3.8 In the East of the District, sustainable growth in jobs and housing will have capitalised on the area's location close to the M1 motorway and the development of the business and distribution park with Enterprise Zone status at Markham Vale.

Local Plan Objectives

- 3.9 The following strategic objectives have been derived from the key issues identified in the spatial portrait and will help deliver the Plan's vision and guide development across the plan area to 2034. The objectives set out in more detail how the vision will be achieved providing a link between the key issues set out in Chapter 2, and the individual policies of the Plan in subsequent chapters.

District-wide Objectives

The Economy

D1 Sustainable Economic Growth:

To facilitate development and ensure sufficient land is made available that will support the growth of the local economy bringing about economic regeneration in North East Derbyshire, maximising the economic benefit of HS2, recognising the housing and employment needs of a growing population, supporting businesses, and seeking to narrow the gap between the more deprived areas and the more affluent areas.

D2 Jobs & Training:

To improve employment opportunities and, where possible, seek to ensure that education and training are better related to skill shortages.

D3 Tourism:

To support the District's tourism economy by developing assets, such as the Chesterfield Canal, and by strengthening the District's role as the gateway to the Peak District National Park.

The Community

D4 Sustainable Communities:

To support communities across the District and meet the needs of all people, by promoting social inclusion, providing or maintaining social, cultural, sport and recreation facilities, and improving personal health and well-being.

D5 Housing for All:

To meet the objectively assessed needs for market and affordable housing in the District ensuring there is an adequate mix of housing types, sizes and tenures to meet the needs of all sectors of the District's communities, including supporting housing-led neighbourhood regeneration opportunities.

The Environment

D6 Green Belt:

To protect the general area of the Green Belt and the purposes of including land within it taking account of the need to promote sustainable patterns of development across the District.

D7 Settlement Identity:

To protect the separation and identity of the District's settlements by identifying key areas of countryside where development should be restricted.

D8 Addressing Climate Change:

To address, mitigate and adapt to the effects of climate change on people, wildlife, and places by increasing energy efficiency, promoting renewable energy generation, securing green infrastructure, matching the vulnerability of land uses to flood risk, and managing surface water in the most sustainable way.

D9 Design and Place Making:

To create a safe, sustainable environment

by ensuring that new development is well designed, supports sustainability principles, delivers timely infrastructure and uses opportunities to redevelop previously developed land to assist the restoration of derelict and unstable land.

D10 Heritage Assets:

To protect and enhance the District's distinct historic environment and industrial heritage including Scheduled Ancient Monuments, Registered Parks and Gardens, Conservation Areas, Listed Buildings, archaeological sites and other locally important heritage assets and their setting.

D11 Natural Assets:

To recognise the value of natural assets by protecting, enhancing and expanding North East Derbyshire's network of green and blue infrastructure including its distinctive landscape character, open spaces and nature conservation sites in part by supporting opportunities to improve countryside access.

D12 Sustainable Transport:

To increase the opportunities for travel using sustainable forms of transport by securing improvements to public transport, walking and cycling infrastructure particularly to maintain and improve connectivity with the main urban areas within the Sheffield City Region and to the south and east of the District.

D13 Local Amenity:

To ensure that housing and employment growth takes place in a way that protects local amenity and does not undermine environmental quality.

D14 Strategic Co-operation:

To recognise potential cross boundary issues arising from new strategic development, and ensure a co-ordinated approach to delivering sustainable growth, working with neighbouring authorities and other partners in a constructive way.

Sub-area Objectives

The North

N1 Dronfield, Eckington and Killamarsh Town Centres:

To ensure the vitality and viability of Dronfield, Eckington and Killamarsh town centres by supporting improvements compatible with their local employment, retail and service functions and reflecting the scope that exists for physical change within them as defined through the Regeneration Frameworks.

N2 Countryside Recreation:

To encourage proposals that support countryside recreational pursuits, particularly those involving the provision of linear routes and the reinstatement of the Chesterfield Canal.

N3 Employment Land:

To improve the quality of employment land in the north of the District and address infrastructure deficiencies to allow for the expansion of existing sites, such as at Callywhite Lane, Dronfield.

The West

W1 Strong and Vibrant Communities:

To facilitate sustainable growth in settlements in the West of the District in order to support a level of service provision to meet both the settlement's needs and those of the wider area; elsewhere development will be limited.

W2 Countryside Character:

To conserve the character of the countryside, having regard to its proximity to the Peak District National Park.

W3 Diversifying the Rural Economy:

To encourage opportunities for farm diversification and tourist related activities, particularly where this will help secure the future economic vitality and viability of the area.

The South

S1 Clay Cross Town Centre:

To secure the economic regeneration of Clay Cross through supporting development which strengthens its role as a vibrant and successful town centre with a good range of everyday services and shopping requirements, and which promotes its unique historic character.

S2 Regeneration:

To recognise the role of key employment areas, including Chesterfield and the former Avenue and Biwaters strategic sites, as being pivotal in the successful regeneration of the sub area.

The East

E1 Regeneration:

To recognise and support the role that the east of the District, particularly around the A632 corridor, can play in delivering growth in supporting regeneration along the M1 corridor, including strategic sites and priority areas around the Markham Vale Enterprise Zone.

E2 Land Remediation:

To secure the regeneration and remediation of previously developed land in order to support sustainable growth, working with partners and neighbouring authorities to ensure effective delivery and enhancement of the wider area.

E3 Environmental Quality:

To ensure that any negative environmental impacts arising from the development of the HS2 railway line are effectively mitigated.

Relationship between Objectives and Policies

3.10 The objectives take forward the planning vision for the district and set out in more detail what the Plan is seeking to do. Whilst the principle aim of the Plan is to seek to achieve sustainable development the above Plan objectives set the framework for developing the policies in more detail.

3.11 The Plan's policies are the means of achieving the vision and objectives through the development management process. In relation to certain cross cutting issues such as climate change and wider sustainability matters there may be policies which works towards a number of the Plan's objectives. The matrix at Figure 3.1 sets out the relationship between the Plan's objectives and the policies.

Figure 3.1: Relationship between the Plan's Objectives and Policies

Plan's Objectives	Policy																			
	SS1	SS2	SS3	SS4	SS5	SS6	SS7	SS8	SS9	SS10	SS11	LC1	LC2	LC3	LC4	LC5	LC6	LC7	LC8	LC9
D1: Sustainable Economic Growth	✓	✓	✓	✓	✓	✓	✓	✓				✓			✓		✓			
D2: Jobs & Training	✓	✓	✓	✓	✓	✓														
D3: Tourism	✓																			
D4: Sustainable Communities	✓	✓					✓	✓			✓									
D5: Housing for All	✓	✓	✓	✓								✓	✓	✓	✓			✓	✓	✓
D6: Green Belt	✓	✓								✓										
D7: Settlement Identity	✓	✓					✓	✓			✓									
D8: Addressing Climate Change	✓	✓					✓	✓	✓											
D9: Design and Place Making	✓	✓					✓	✓	✓							✓				
D10: Heritage Assets	✓				✓	✓			✓											
D11: Natural Asset	✓	✓			✓	✓			✓											
D12: Sustainable Transport	✓	✓																		
D13: Local Amenity	✓	✓			✓	✓	✓	✓						✓		✓				
D14: Strategic Co-operation	✓	✓																		
N1: Dronfield, Eckington and Killamarsh Town Centres	✓	✓																		
N2: Countryside Recreation	✓																			
N3: Employment Land	✓	✓																		
W1: Strong and Vibrant Communitie	✓	✓												✓						
W2: Countryside Character	✓	✓																		
W3: Diversifying the Rural Economy	✓	✓																		
S1: Clay Cross Town Centre	✓	✓									✓									
S2: Regeneration	✓	✓	✓	✓																
E1: Regeneration	✓	✓			✓	✓														
E2: Land Remediation	✓	✓			✓	✓														
E3: Environmental Quality	✓																			

Figure 3.1: Relationship between the Plan's Objectives and Policies - continued

Plan's Objectives	Policy																		
	WC1	WC2	WC3	WC4	WC5	WC6	SP1	SP2	SP3	SP4	SDC1	SDC2	SDC3	SDC4	SDC5	SDC6	SDC7	SDC8	SDC9
D1: Sustainable Economic Growth	✓	✓	✓	✓	✓	✓					✓								
D2: Jobs & Training	✓	✓	✓	✓	✓	✓													
D3: Tourism				✓	✓	✓					✓								
D4: Sustainable Communities	✓	✓	✓	✓	✓	✓													
D5: Housing for All											✓								
D6: Green Belt																			
D7: Settlement Identity																			
D8: Addressing Climate Change																			
D9: Design and Place Making	✓	✓	✓	✓	✓	✓													
D10: Heritage Assets															✓	✓	✓	✓	✓
D11: Natural Asset												✓	✓	✓					
D12: Sustainable Transport	✓	✓	✓	✓	✓	✓													
D13: Local Amenity	✓	✓	✓	✓	✓	✓													
D14: Strategic Co-operation																			
N1: Dronfield, Eckington and Killamarsh Town Centres	✓	✓	✓	✓	✓	✓	✓		✓	✓									
N2: Countryside Recreation					✓	✓													
N3: Employment Land	✓	✓	✓																
W1: Strong and Vibrant Communities				✓							✓								
W2: Countryside Character					✓	✓						✓	✓						
W3: Diversifying the Rural Economy				✓	✓	✓					✓								
S1: Clay Cross Town Centre		✓	✓	✓	✓	✓		✓											
S2: Regeneration		✓	✓																
E1: Regeneration		✓	✓																
E2: Land Remediation		✓	✓																
E3: Environmental Quality																			

Figure 3.1: Relationship between the Plan's Objectives and Policies - continued

Plan's Objectives	Policy															
	SDC10	SDC11	SDC12	SDC13	SDC14	SDC15	ID1	ID2	ID3	ID4	ID5	ID6	ID7	ID8	ID9	ID10
D1: Sustainable Economic Growth							✓									
D2: Jobs & Training																
D3: Tourism																
D4: Sustainable Communities							✓			✓	✓	✓				✓
D5: Housing for All																
D6: Green Belt																
D7: Settlement Identity																
D8: Addressing Climate Change	✓	✓											✓			
D9: Design and Place Making			✓		✓											
D10: Heritage Assets																
D11: Natural Asset													✓	✓	✓	✓
D12: Sustainable Transport								✓	✓				✓	✓		
D13: Local Amenity				✓		✓										✓
D14: Strategic Co-operation																
N1: Dronfield, Eckington and Killamarsh Town Centres																
N2: Countryside Recreation													✓	✓	✓	
N3: Employment Land																
W1: Strong and Vibrant Communities																
W2: Countryside Character																
W3: Diversifying the Rural Economy																
S1: Clay Cross Town Centre																
S2: Regeneration																
E1: Regeneration																
E2: Land Remediation					✓											
E3: Environmental Quality				✓												

4. Spatial Strategy

Introduction

- 4.1 The purpose of this chapter is to set out the Spatial Strategy that the Council will follow to achieve its Vision and Objectives. The achievement of sustainable development forms the basis of the strategy approach which seeks to deliver new development and associated supporting infrastructure to meet future needs of the District in the locations where it is most needed whilst at the same time protecting valued assets and resources.

Sustainable Development

- 4.2 The purpose of the planning system is to contribute to sustainable development⁵. The goal of sustainable development is to enable all people to satisfy their basic needs and to enjoy a better quality of life, without compromising the ability of future generations to meet their own social, economic and environmental needs.
- 4.3 The Local Plan's vision and objectives are centred on sustainable growth, which means encouraging sustainable development as a means of protecting and enhancing the environment, growing the District's economy, and supporting the health and wellbeing of the District's communities.
- 4.4 Achieving sustainable development to create more sustainable patterns and forms of development in the district is the fundamental principle underpinning each policy in the Local Plan. Policy SS1 sets out the economic, social, and environmental dimensions of sustainable development and what this means in North East Derbyshire. In light of the rural nature of North East

Derbyshire this means focusing the majority of development in and around the most sustainable locations, where the best use can be made of existing infrastructure, services and facilities; whilst at the same time meeting the essential needs of smaller rural communities in an appropriate way. A hierarchy of settlements has been established to identify the relative sustainability of places and to focus development in the right places. Other policies in the plan clearly set out the scale and nature of development that is appropriate within the different settlement categories to ensure that development enhances the place it becomes part of.

- 4.5 The identification of settlement boundaries creates a clear distinction between areas that are considered to form part of the built form or wider environs of a settlement and are therefore considered suitable for planned or windfall development. Countryside policies apply to land outside of these settlement boundaries (unless allocated for other uses).



⁵ (Planning & Compulsory Purchase Act 2004 (S.39).

Policy SS1: Sustainable Development

In order to contribute to sustainable development in North East Derbyshire, development proposals will:

- a. Meet development needs within defined settlements or other allocated areas having regard to the defined settlement hierarchy and the need to enhance their role as a focus for new services and facilities (Policy SS2 & Table 4.2);
- b. Promote the efficient use of land and the re-use of previously developed land (including the remediation of contaminated land) buildings and existing infrastructure in sustainable locations (Policies SS2-4, SS6 & SS10);
- c. Locate development where there is access to a broad range of jobs, services and facilities which are accessible by foot, cycle or public transport with reduced reliance on the private car (Policy SS2);
- d. Support the local economy by contributing towards business expansion and growth, attracting and supporting a skilled labour force, and improving skills and access for local people to job opportunities including targeted recruitment and training, and the use of Local Labour Agreements (Policies WC1-3);
- e. Reduce the need for energy in new development and ensure that it can use energy efficiently through the life time of the development (Policy SDC12);
- f. Promote the social and economic wellbeing of North East Derbyshire's communities and contribute to reducing social disadvantages and inequalities (Policies LC2-4, LC9, WC1, WC3, WC5 and ID10);
- g. Create well designed places that are accessible, durable, adaptable and enhance local distinctiveness (Policy SDC12);
- h. Protect and enhance the character, quality and settings of towns and villages and heritage assets (Policies SS8, SDC1 & SDC5-9);
- i. Protect and/or enhance the character, quality and diversity of the District's green infrastructure and local landscapes, the wider countryside and ecological and biodiversity assets (Policies SS2, SS11, SDC3-4, ID1 and ID7-10);
- j. Protect the productive potential of the District's best quality agricultural land, and avoid sterilisation of mineral resources;
- k. Support the provision of essential public services and infrastructure (Policies SS2, ID1-4 and ID10);
- l. Play a positive role in adapting to and mitigating the effects of climate change, including through the use of sustainable drainage systems, to contribute to the health and wellbeing of communities and the environment through the location, design and operation of development (Policies SDC10-11);
- m. Take account of any coal-mining related land stability and / or other public safety risks, and where necessary, incorporate suitable mitigation measures to address the risk (Policies SDC14-15).

Housing, Employment and Retail Targets and Provision

Housing Target

- 4.6 The proposed housing target forms a central building block of the Council's Spatial Strategy in that it contributes to explaining how much residential development is planned during the plan period. A key starting point for the Local Plan is to establish the Objectively Assessed Need (OAN) for market and affordable housing over the plan period. The NPPF indicates that this should relate to the Housing Market Area (HMA). The North Derbyshire and Bassetlaw Strategic Housing Market Area makes up the appropriate HMA and comprises Bassetlaw District, Bolsover District, Chesterfield Borough and North East Derbyshire District Councils. This area was reviewed and confirmed as an appropriate HMA in the Strategic Housing Market Assessment (SHMA) in 2013. The 2013 SHMA was updated in 2017 to take account of the Government's 2014-based population figures and household projections (SHMA Update, October 2017). As advised by the NPPF the SHMA identifies the full, objectively assessed need for housing, both across the Housing Market Area and for each of the component authority areas.
- 4.7 The SHMA Update 2017 indicates a need for 1,184 homes per year across the HMA covering the period 2014-2034. It identifies North East Derbyshire's Objectively Assessed Housing Need at 283 homes per year. These figures use a methodology similar to the Government's proposed standard methodology. They take as a starting point the Government's 2014-based population figures and household projections i.e. the demographic need for homes and include an upward adjustment of 10%, for enhanced affordable housing delivery, along with an uplift to account for baseline employment growth.
- 4.8 In developing a realistic housing target (as opposed to baseline OAN), the Council must also have regard to the NPPF's need for positive planning, and to the Vision and Objectives of the Plan. This requires consideration of the District's ambitions for growth and the wider City-region and HMA context including the activities of the Sheffield City Region and D2N2 Local Enterprise Partnerships (LEPs). Both of the LEP Growth Plans and Economic Strategies are in development in relation to the understanding of their impact upon population and housing. However, the combined effects of these Growth Plans upon authorities which fall within both LEPs have not been clarified and there is no sub-regional breakdown. Consequently, it is difficult to determine whether there are any direct impacts of the LEP strategies upon the scale of housing in the Local Plan, although both strategies intend to assist with housing delivery. As they stand, their background information indicates that the job growth they aspire to would be possible from population growth already projected across the LEP areas.
- 4.9 The SHMA Update, 2017 modelled a housing provision for North East Derbyshire in line with Council's Growth Strategy and the wider LEPs' ambitions. This was based on a Scenario developed as part of the Council's Employment Land Review evidence. This 'Regeneration Scenario' takes into account the potential for higher growth in certain key sectors reflecting both the Council's and wider LEPs' Economic Development Strategies. The assumption used is somewhat conservative in that growth in these sectors could be anticipated at rates close to the baseline East Midlands'

regional growth rate. This provides employment growth of 3,000 jobs, which is 1,000 higher than in the District's Baseline, with a growth rate of 0.4% pa. This is still lower than the historical growth rate of 0.6% (between 1993 and 2014). The Growth Scenario in the SHMA translates these 3,000 jobs into a housing requirement of 332 dwellings per annum; this has been rounded to the nearest 10 dwellings.

- 4.10 The reason for adopting this 'Regeneration Scenario' is threefold.
- To reflect a realistic and reasonable future economic growth reflecting the context of the District and sub-region beyond it, including that of the LEPs.
 - To provide support and not constraint for economic growth and delivering regeneration in the District to align with the Local Plan and Growth Strategy objectives.
 - Delivery of more affordable housing. The District's OAN includes an upward adjustment to boost affordable housing delivery and a higher overall Plan figure than the OAN will deliver proportionately higher affordable housing to meet local needs.

- 4.11 As a result, when establishing a target for housing provision in line with the broader objectives, including a realistic level of economic growth, the Council has identified a minimum of 330 homes a year as the most appropriate target for the District, amounting to 6,600 dwellings over the plan period 2014 - 2034.

Baseline OAN - 283 per year
Housing Target - 330 per year

- 4.12 Table 4.1 sets out the components of the housing land supply. This comprises 1996 dwellings that have been built since 2014, and a further 3901 dwellings with planning permission that are considered to be deliverable and developable within the Plan period. These are also known as commitments, the majority of which are shown as allocations on the Policies Map. Some 1192 dwellings are not shown as allocations and this is due either to their small size, their location around settlements below level 2 in the settlement hierarchy, or because they secured planning permission during Examination of the Plan. 814 dwellings without planning permission are allocated (Appendix B provides a breakdown per settlement). Additional flexibility will be provided by windfalls, which are expected to provide for approximately 75 dwellings per year based upon past trends⁶. This will provide a 11% buffer in relation to the overall housing requirement of 6600 dwellings.

Table 4.1: Components of Housing Supply

Components of Housing Supply	Yield
Housing Completions 2014-2020	1996
Minor commitments at 31/03/2020 (minus 7% lapse rate)	417
Major commitments at 31/03/2020 (not allocated)	775
Allocations (with planning permission i.e commitments)	2709
Allocations (without planning permission)	814
TOTAL	6711

⁶ As set out at Section 6.3 of the Housing Topic Paper, (January 2018).

Employment Land Provision

- 4.13 The Local Plan aims to provide new jobs along with new housing, ensuring that a range of deliverable and marketable employment land is available both for indigenous firms and for inward investors, but at the same time recognising the relationship of the District with the Sheffield City Region, particularly with Sheffield and Chesterfield. In particular, it acknowledges the 61% of people who commute out of the District to work. About 19% commute to Sheffield, 18% to Chesterfield, and 3% each to Amber Valley, Bolsover, Derbyshire Dales and Rotherham (2011 Census).
- 4.14 In addition to the relationship with the Sheffield City Region which has strong links with the north of the District, the south of the District has a close economic relationship with the D2N2 economic area covering Derbyshire and Nottinghamshire. The Strategic Growth Plans of the LEPs (submitted to Government in 2014) provide the strategic context for the Council's own Growth Strategy, and for the Local Plan. The District's Growth Strategy & Action Plan seeks to unlock the capacity of major employment sites, maintaining an appropriate supply of suitably located employment land and premises and working with partners to develop, manage and enhance key strategic employment areas.
- 4.15 The District's economy is diverse and there is a need to plan for a range of different sizes and types of employment site. The Local Plan aims to provide employment land of various scales and types across the District along with new housing to provide opportunities for people to live close to their places of work. In particular, there is a need to unlock development and bring forward strategic and major sites for development to transform economic prospects, and to support regeneration of the district's towns.
- 4.16 The 2017 Employment Land Update (ELU) recommended that employment land provision for North East Derbyshire should be between 30ha & 43ha (2014-34). The bottom end of the range represents a level that links to 'baseline' employment forecasts. The upper end reflects forecasts related to a 'Regeneration' scenario. This is intended to represent the growth associated with the Local Plan's objectives and broad strategies in the District and beyond, including those of the LEPs; and is considered to be the most appropriate and realistic forecast on which to base the employment land target in the Plan. The target of 43ha would allow for significant losses of existing employment land but provide for an overall employment land increase in line with economic forecasts.
- 4.17 The employment land provision also has regard to guidance in the NPPF to avoid the long term protection of employment allocations. The ELU also suggests that the Council should consider whether existing employment sites in the District are no longer productive for employment use and "could be better placed to support non B class employment uses in the future." Consequently land allocations have been reviewed and certain sites, considered to fulfil the NPPF and ELU descriptions, have been reconsidered for how they may contribute value to the land portfolio for future employment.
- 4.18 The Local Plan aims to safeguard and improve existing successful and attractive employment sites, and to allocate new sites to improve the portfolio of available employment land within the District. New employment development for manufacturing

and distribution will take place on already committed sites to regenerate previously developed land and, where necessary and sustainable, on Greenfield land in accessible locations. It is recognised also that employment growth is increasingly provided by other, non-B use commercial and public sectors such as leisure and the health service. A wider definition of economic development has been reflected in National Planning Policy Guidance since 2012⁷. The Plan adopts a positive approach to sui generis and other non B class job-creating uses on certain employment sites, within prescribed criteria to ensure the use proposed is compatible and appropriate.

- 4.19 Opportunities have been explored to capitalise on development potential for new employment land in and adjoining employment areas with locational advantages of proximity to the M1 corridor and/or that create opportunities to regenerate previously developed land. The focus is on existing large sites, both within the public and private sectors including:

- The Avenue, Wingerworth
- Former Biwaters, Clay Cross
- Markham Vale Enterprise Zone



The Avenue, Wingerworth

- 4.20 The employment land provision target of 43ha (net) in policy SS2 allows for the improvement of the employment portfolio through the loss of existing, less marketable employment land, more diverse uses on some employment sites, and new employment land and mixed-use strategic sites.

- 4.21 New employment will also be encouraged in town and local centres, to support the objective of improving and enhancing their economic role.

Balancing Housing and Economic Growth

- 4.22 The Plan has an objective to support sustainable growth which brings about regeneration, recognising the housing and employment needs of a growing population. The North East Derbyshire Growth Strategy has been prepared in the light of the continued growth in population used in the Local Plan evidence base, including the Strategic Housing Market Assessment (SHMA). The results of the SHMA analysis of the housing provision and forecast growth in employment is that the level of housing planned for would be sufficient to accommodate the levels of economic growth anticipated.

- 4.23 The Council's Growth Strategy has the intention of raising job densities (jobs/worker) within the District, either through stronger improvements in economic participation (associated with greater access to local employment opportunities) or through lower levels of people commuting out of the area to work (or moving to the District to both live and work). Due also to the existing significantly low job densities, an increased growth in jobs would not directly lead to the need to increase planned housing provision.

⁷ Paragraph: 033 Reference ID: 2a-033-20140306

4.24 The housing and economic evidence presented above indicates that the proposed employment land provision and housing provision are well balanced, the latter providing sufficient population to support growth in the economy.

Retail Provision

4.25 The Local Plan recognises the role of its town centres in forming the heart of their communities and includes policies for the management and growth of centres over the plan period to support their viability and vitality to ensure they remain competitive. The evidence underpinning these policies is derived from the Retail Study (January 2018) which provides evidence on the health of town centres, shopping patterns and future retail needs. The Study defines Town Centre boundaries for Clay Cross, Dronfield, Eckington and Killamarsh as shown on the Policies Map, and confirms that these also represent the Primary Retail Area. A Local Centre is also defined in Dronfield. The Study also informs policy on the principles for retail development in and outside of the District's retail centres and the setting of local thresholds to trigger the need for retail impact assessments for any edge or out of centre retail proposals within the catchment of a designated centre, (further detail is in Chapter 6).



4.26 In terms of future retail needs the Retail Study provides forecasts for the likely future quantitative capacity for Convenience Shopping (predominantly food) and Comparison Shopping - (E.g. clothes, toys, white goods) up to 2033. These forecasts are based upon baseline population forecasts and take account of committed sites up to August 2016 and indicate the following:

- By 2033 the quantitative capacity for additional convenience goods floorspace is forecast to be between 2,000m² and 2,900m² (net). This is of a scale normally associated with discount foodstores, rather than large supermarkets.
- By 2033 there is estimated to be a negative quantitative capacity for comparison goods floorspace of between -100m² and -200 m² (net).

Distribution of Growth & the Settlement Hierarchy

4.27 In accordance with the fundamental principles of sustainable development and the criteria outlined in Policy SS1 the Local Plan aims to direct new growth to the district's most sustainable settlements based on the Settlement Hierarchy; and to Strategic Sites in suitable locations that promote the re-use of previously developed land. This will enable the integration of homes, jobs, services and facilities in the most accessible locations.

- 4.28 Table 4.2 below shows the Settlement Hierarchy, this is based on the findings of the Settlement Hierarchy Study (September 2017 update), which analyses the roles that different settlements perform for their communities. A settlement's position in the hierarchy reflects its relative sustainability derived from scores associated with population levels, facilities and services, employment opportunities and public transport provision.
- 4.29 **Level 1 Settlements** in the hierarchy comprise the four towns of Clay Cross, Dronfield, Eckington and Killamarsh. These towns are considered to be the most sustainable locations for new development in terms of the range of services and facilities they provide and support and because they generate the greatest needs for new housing, jobs, services and facilities. In 2011, these four towns contained almost 50% of the district's housing and 48% of the population.
- 4.30 The towns also have important roles in providing the economic, commercial and social hearts of the District and growth will be targeted to support and where possible enhance these roles. It is logical and reasonable therefore that we should look to these towns to maintain their importance and prominence and to seek to provide for a significant proportion of the District's housing growth requirements, to accommodate any required retail growth within their town centres and provide a focus for new employment growth.
- 4.31 It is however recognised that there are specific issues affecting the location of employment growth and the district's towns and regeneration sites do not necessarily provide the optimum locations for all types of employment development, particularly that which is attractive to a wider than local market.
- Sites in particularly accessible locations are also required in order to attract investment and compete effectively with neighbouring areas.
- 4.32 Three Strategic Sites are identified at the Former Biwaters Site, Clay Cross, The Avenue, Wingerworth and Markham Vale, Duckmanton. Between them these sites have the potential to deliver approximately 2000 dwellings, of which three quarters are expected to come forward within the lifetime of this Plan, along with 17.7Ha of employment land and approximately 2000 m2 of retail floorspace.
- 4.33 The level 1 Towns and Strategic Sites will be the focus for the District's growth requirements during the Plan period, accommodating housing and commercial development, including all the new employment land provision.
- 4.34 **Level 2 settlements** will provide the locations for the remaining planned housing growth. There will be no housing allocations in **Level 3 settlements** (over and above existing commitments), although windfall developments of appropriate scale may be acceptable in line with criteria based Policy SS7 or an adopted Neighbourhood Plan.
- 4.35 **Level 4 Settlements** are generally small in scale and lacking in services and facilities, there will be no allocations in these settlements. Development will be restricted to minor infill development to meet local needs, in line with criteria in Policy SS8 or an adopted Neighbourhood Plan.

Table 4.2: Settlement Hierarchy

Type of Settlement	Place
Level 1: Towns	Clay Cross
	Dronfield
	Eckington
	Killamarsh
Level 2: Settlements with good level of sustainability	Calow
	Grassmoor
	Holmewood
	Morton
	North Wingfield
	Pilsley
	Renishaw
	Shirland
	Stonebroom
	Tupton
	Wingerworth

Type of Settlement	Place
Level 3: Settlements with limited sustainability	Apperknowle
	Arkwright Town
	Ashover
	Barlow
	Commonside
	Barlow Village
	Cutthorpe
	Heath
	Higham
	Highmoor
	Holmesfield
	Holymoorside
	Kelstedge
	Long Duckmanton
	Lower Pilsley
	Marsh Lane
	Mickley
	Old Brampton
	Ridgeway
	Spinkhill
	Stretton
	Temple Normanton
	Unstone Crow Lane
	Unstone Green
	Wadshelf
	Walton
	Wessington
Level 4: Very small villages and hamlets with very limited sustainability	Alton
	Bolehill
	Brackenfield
	Cock Alley
	Fallgate
	Handley near Stretton
	Littlemoor
	Sutton Scarsdale
	Woolley Moor

Policy SS2: Spatial Strategy and the Distribution of Development

1. The Local Plan will promote prosperous and sustainable communities by delivering new development, whilst protecting the high quality environment that makes North East Derbyshire an attractive place to live and work.

Housing Provision

2. The Local Plan will make provision for the delivery of a minimum of 6,600 dwellings over the period 2014 - 2034
3. New housing development will be focused on:
 - The four Level 1 towns of Clay Cross, Dronfield, Eckington and Killamarsh;
 - The Avenue and former Biwaters Strategic Sites; and
 - Level 2 settlements as defined in the Settlement Hierarchy in Table 4.2.

Employment Provision

4. The Local Plan will make provision for 43ha of employment land for the period 2014-2034.
5. New employment development will be focused on Principal Employment Areas as identified in Policy WC2 and on Strategic Sites at: The Avenue, Former Biwaters and Markham Vale (Policies SS3-5).

Retail Provision

6. New convenience floorspace will be focussed within town centre boundaries as identified in Policy WC4.

Settlements

7. Policies for settlements will:
 - a. Support and enhance the role of the four Level 1 towns of Clay Cross, Dronfield, Eckington, and Killamarsh;
 - b. Support and facilitate the regeneration of the Level 1 towns and Level 2 settlements; and
 - c. Maintain the role of settlements by supporting their ability to sustain services and facilities through new development that is appropriate in scale and reflects their position in the Settlement Hierarchy.

Countryside

8. Land which lies outside a Settlement Development Limit and is not allocated for development, will be treated as 'countryside' where development will only be permitted in accordance with Policies SS1 (Sustainable Development) and SS9 (Development in the Countryside).

Housing Provision by Settlement

4.36 The Settlement Hierarchy is the basis for determining the appropriate level of new housing for each settlement, informed by the Sustainability Appraisal and the supply and availability of suitable sites in each area. The distribution of housing by settlement is also strongly influenced by the extent of commitments and Policies SS1 and SS2, in order to support regeneration and the creation of more sustainable communities.

Level 1 & Level 2 Settlements

4.37 Table 4.3 shows the housing distribution by Level 1 and Level 2 settlement and Strategic Sites. This is based upon commitments and allocations, which together with dwellings built since 2014 is sufficient to meet the minimum provision of 6,600 dwellings, as set out in Policy SS2.

Level 3 & Level 4 Settlements (Smaller Villages and Hamlets)

4.38 No specific housing requirements are proposed for these settlements and therefore no allocations are proposed. The policy approach to dealing with proposals for new housing on unallocated land in these settlements is set out in Policies SS7 & SS8.

Table 4.3: Housing Distribution by Level 1 & Level 2 Settlement⁸

Level/ Strategic Sites	Settlement	Housing Provision 2014 to 2034
Level 1 Settlements (Towns)	Clay Cross (+ Biwaters Strategic Site)	464 (+825)
	Dronfield	303
	Eckington	213
	Killamarsh	560
Towns Total		1540
Strategic Sites	The Avenue	731
	Former Biwaters	825
Strategic Sites Total		1556
Level 2 Settlements (Large Villages)	Calow	109
	Grassmoor	276
	Holmewood	484
	Morton	156
	North Wingfield	99
	Pilsley	140
	Renishaw	-3
	Shirland	193
	Stonebroom	144
	Tupton	362
	Wingerworth (+ The Avenue Strategic Site)	752 (+731)
Large Villages Total		2712
Remaining Area⁹		903
TOTAL		6711

⁸ Figures are based upon completions since 2014, current commitments and allocations (see Appendix B). They do not represent targets or maximum levels of housing.

⁹ Remaining Area - figure includes commitments in level 3 & 4 Settlements and countryside locations.

Strategic Site Allocations

4.39 In order to assist in the delivery of the Spatial Strategy (Policy SS2), the Plan allocates strategic sites which are considered critical to achieving the Plan's strategy. This includes three Strategic Sites which are considered capable of delivering development within this plan period. A further site at Coalite is also identified as a Priority Regeneration Area. Whilst this site is of strategic scale and has the benefit of planning permission, it is not identified as a strategic site. This is because the planning permission pre-dates the announcement for the revised route of HS2, which cuts across the eastern end of the site, creating uncertainty over the site layout and timescales for delivery.

The Avenue, Wingerworth

4.40 The Avenue site is located to the east of the A61, adjacent to Wingerworth and close to the administrative boundary with Chesterfield Borough. A significant proportion of the site comprises the former Avenue Coking Works which has been subject to a major remediation programme that completed in 2017.

4.41 The Avenue site was allocated for re-development in the previous District Local Plan (which covered the period to 2011). In 2013 the Council adopted the Avenue Area Strategic Framework as non-statutory planning guidance which is a material planning consideration in determining planning applications on the site. The Framework considers that the site is capable of delivering around 4-5 hectares of land for B1 (now E9g)¹⁰, B2 and B8 employment uses (in addition to employment uses currently on site) and up to 1100 new homes, along with ancillary facilities and infrastructure,

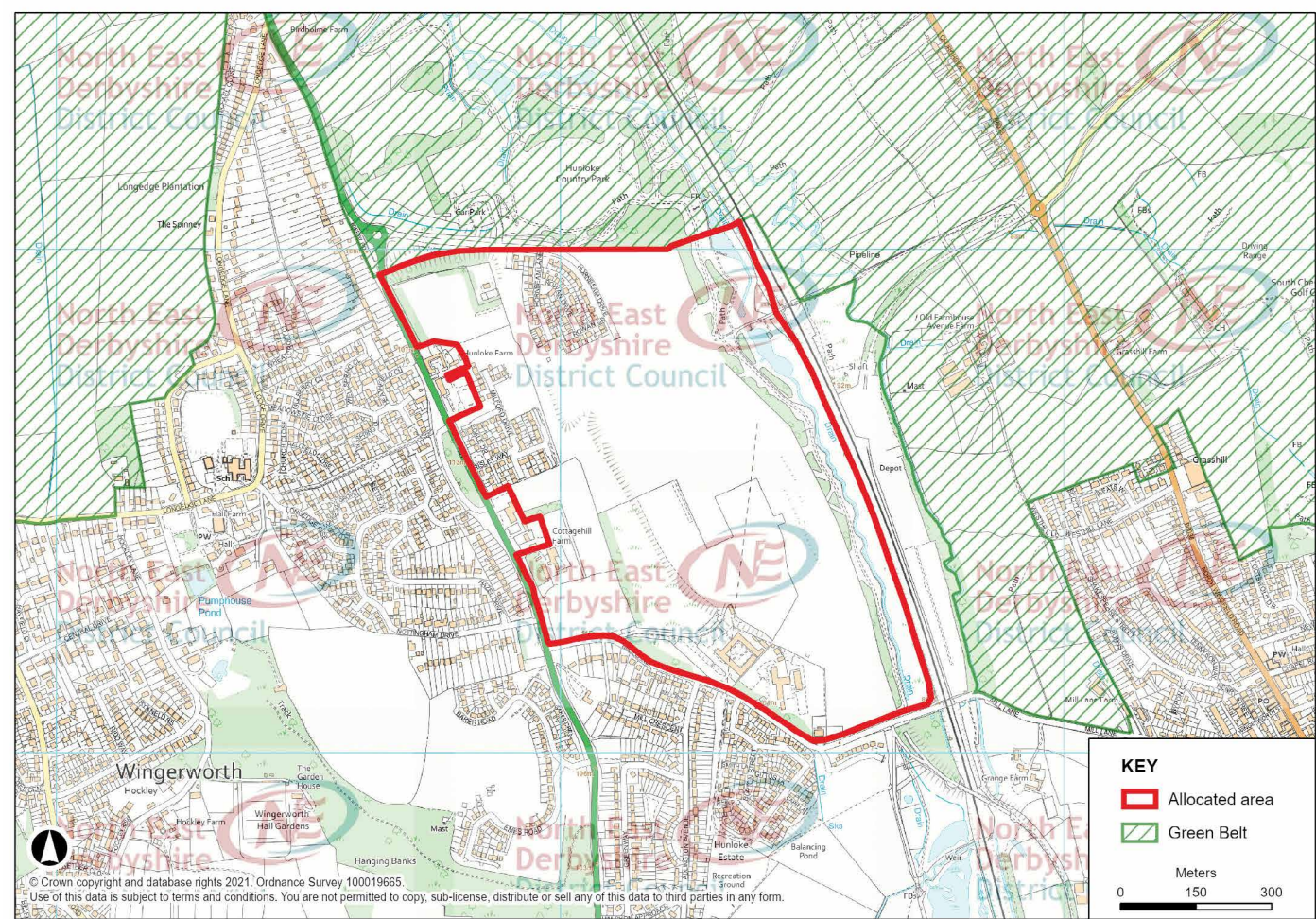
and public open space. Planning permissions are in place for much of the site and include the provision of approximately 700 dwellings. It is expected that the remaining site area will deliver beyond the plan period.

4.42 Given the scale of the site and its role in delivering the strategy of the Plan over the plan period, the land is identified as a strategic site. The site is allocated for mixed use development, comprising employment, housing, recreation and open space uses.

4.43 The Local Transport Plan sets out future proposals for new infrastructure and includes an A61-A617 Avenue link road as a longer term County Council project. Whilst it is important that development of the site does not prejudice the construction of a link road from the A61 to A617, currently there is no defined route for this link road and no likelihood of funding before at least 2024. For these reasons a definitive route cannot be safeguarded on the Policies Map.

¹⁰ The AASF predates The Town and Country Planning (Use Classes) (Amendment) (England) Regulations 2020, which deletes the B1 (Business) Use Class and incorporates those uses (offices, research & development and other industrial uses appropriate to a residential area) within category g of a broader use Class E - Commercial, Business and Service Uses.

Figure 4.1: Strategic Site Allocation - The Avenue



Policy SS3: The Avenue

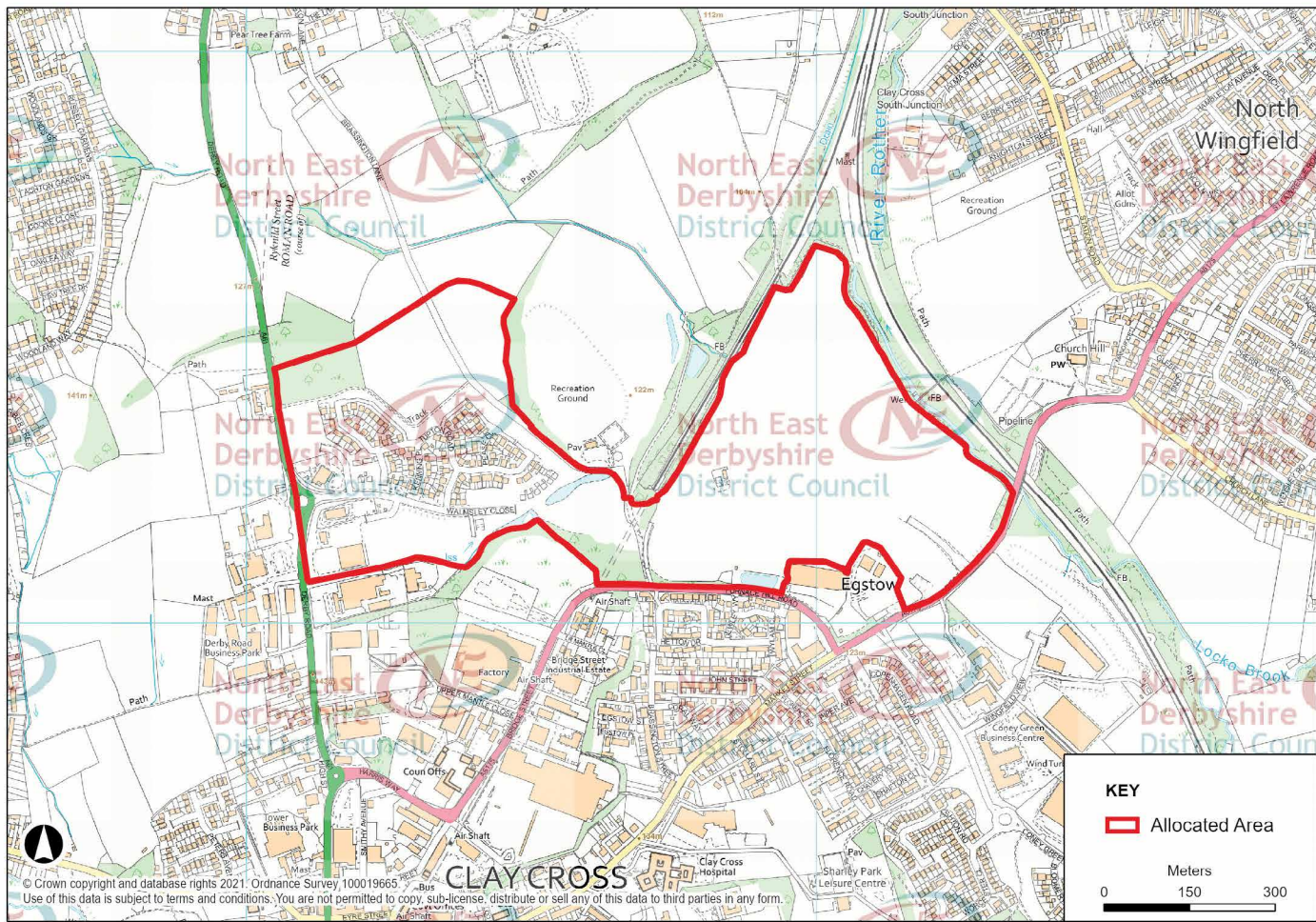
1. Land at the former Avenue site, as shown on the Policies Map, is allocated as a Strategic Site for mixed use development.
2. Proposals for the comprehensive mixed use development of this site will be guided by The Avenue Area Strategic Framework or any subsequent approved document and will be permitted where they:
 - a. Optimise the use of the site or make best use of land;
 - b. Provide up to 1100 new homes (approximately 700 within the period up to 2034);
 - c. Provide for a minimum of 4 hectares of additional employment land;
 - d. Include a range of local facilities, including a primary school retail, sport and recreation facilities;
 - e. Protect and/or enhance existing open space, sport and recreation facilities;
 - f. Promote and accommodate sustainable transport for pedestrians, cyclists, and public transport;
 - g. Provide effective pedestrian and cycle links to Chesterfield and nearby settlements, including through green infrastructure where this would not have an adverse impact on biodiversity;
 - h. Do not prejudice the construction of a link road from the A61 to A617;
 - i. Create development of the highest quality design and energy efficiency, with appropriate low carbon technologies;
 - j. Maintain and improve existing known areas of wildlife habitat and species, and include measures for habitat creation; and
 - k. Incorporate an appropriate mix of house types and tenures, to reflect housing need and market considerations.

Former Biwaters Site, Clay Cross

- 4.44 The former Biwaters site is located to the north east of Clay Cross town centre, adjoining Bridge Street Industrial Estate, and is closely related to Coney Green and the residential area between it and the town centre. It is well located in terms of access to services and facilities in Clay Cross. The site also benefits from potential access to the Midland Mainline railway lines to Nottingham and Derby, and access to the M1 via the A6175. Redevelopment of the site will be supported for a mixed use scheme incorporating employment, residential, commercial recreation and leisure uses.
- 4.45 Although part of the site to the eastern boundary lies within a high flood risk area, this land will not be built upon, instead creating a wildlife corridor and buffer zone to ensure minimum standards of flood defence are maintained, in accordance with the NPPF. The area of the Strategic Site has been extended to the north to enable the masterplanning for the site to respond effectively to current market conditions relating to housing density whilst retaining the overall scale and mix of land uses.
- 4.46 The site was originally allocated in the previous Local Plan (2001-2011). The landowner, working closely with the Council has a comprehensive strategy to bring forward development of the site.
- 4.47 Outline planning permission was first secured for the site in August 2010 and included site remediation, public open space, residential and employment development. Since then outline permission has also been secured for a foodstore and drive-through restaurant, as well as a full permission for a public house and reserved matters permission for the first phase of housing development. A revised outline scheme reflecting current market conditions was approved in August 2018 for the following development:
- a. **825 homes,**
 - b. **Approximately 8 ha of employment generating uses incorporating:**
 - i. B1 (now E9g))¹¹, B2 & B8 (up to 5ha),
 - ii. A local centre, A1, A2, A3, A4 and/or A5 (up to 2ha)
 - iii. Hotel/Care Home, C1 and C2 (up to 0.8ha)
 - c. **Open Space, and**
 - d. **Associated highway works including a link road between the A61 and A6175.**
- 4.48 Work has commenced on site with the construction of a roundabout on the A61, a road into the site; and a new public house and drive-through outlets and a retail store at the A61 site entrance. Construction is also underway on the housing development.

¹¹ To reflect the updated Use Classes Order

Figure 4.2: Strategic Site Allocation - Former Biwaters



Policy SS4: Former Biwaters Site, Clay Cross

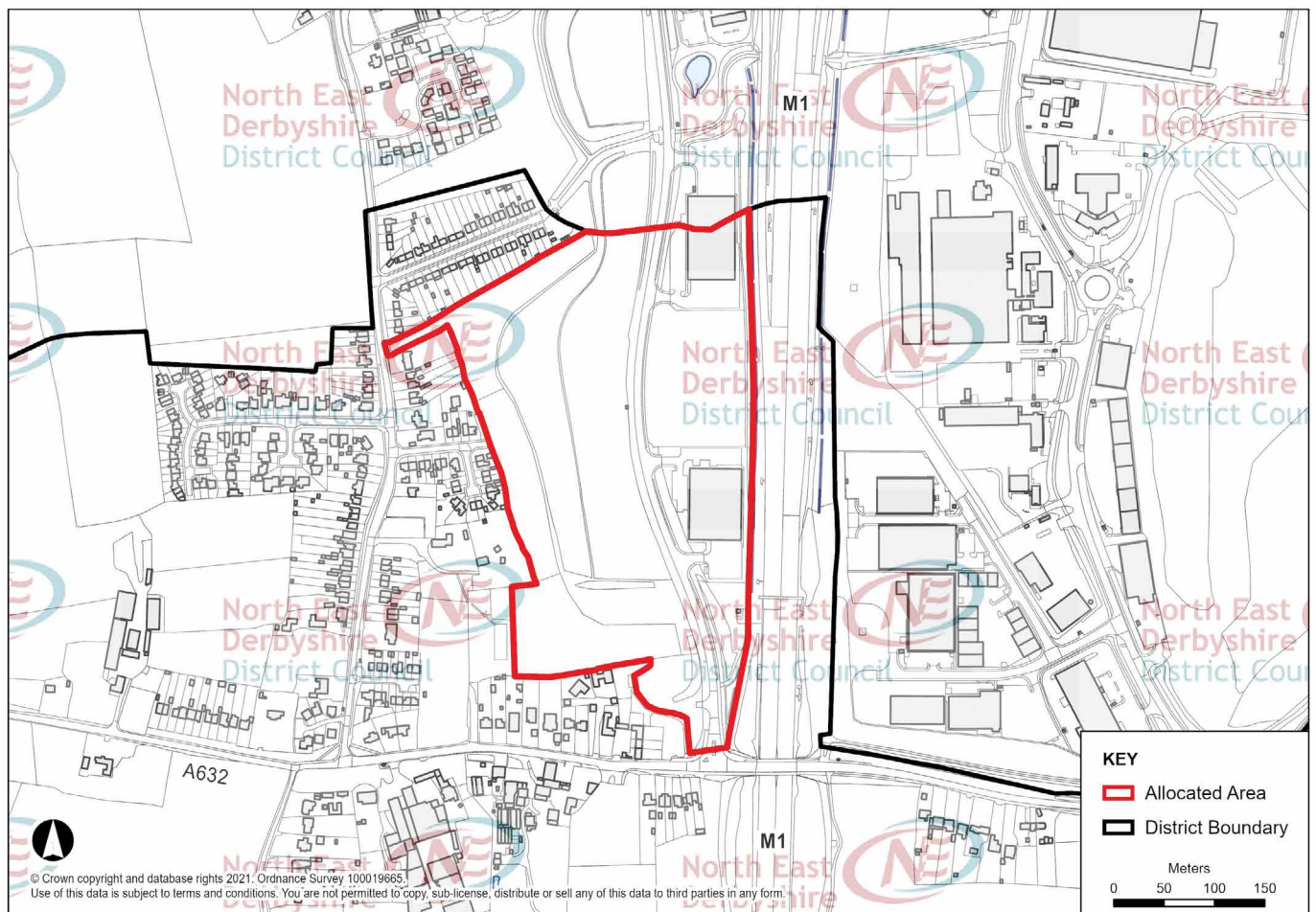
1. Land at Former Biwaters, Clay Cross, as shown on the Policies Map, is allocated as a Strategic Site, for mixed use development.
2. Development proposals for the comprehensive remediation and mixed use development of this site will:
 - a. Provide a high quality, sustainable, mixed use development that is well connected and has a functional relationship with Clay Cross;
 - b. Provide for upto 8 hectares of employment generating land uses to include provision for starter units and managed workspace;
 - c. Provide up to 1000 new dwellings (approximately 825 within the period up to 2034);
 - d. Protect existing open space, sport and recreation facilities and provide or enhance additional facilities to meet additional need generated by the development;
 - e. Locate the residential element to maximise accessibility to existing and new local facilities;
 - f. Promote and accommodate sustainable transport for pedestrians, cyclists, and public transport including the provision of a route through the site to provide pedestrian and vehicular access to a future off-site railway station;
 - g. Provide effective pedestrian access to Tupton Hall School;
 - h. Provide a through road from the A61 to Furnace Hill/A6175;
 - i. Sustain and enhance the significance of heritage assets in particular the Grade 1 listed St Lawrence Church in North Wingfield;
 - j. Provide a wildlife corridor and buffer zone along the River Rother to protect the biodiversity value of the river corridor and protect new development from the risk of flooding, and promote linkages to the wider green infrastructure network;
 - k. Provide structural landscaping, and public open space in accordance with Policies ID7, ID10 and SDC12; and
 - l. Incorporate an appropriate mix of house types and tenures, to reflect housing need and market considerations.

Markham Vale, Long Duckmanton

4.49 The Markham Vale project is an 85 hectare scheme based around the regeneration of the former Markham Colliery. The site area encompasses Bolsover District, Chesterfield Borough, and a 10 hectare area of land between Long Duckmanton and the M1 motorway in North East Derbyshire. Outline

planning permission for the scheme was granted by partner authorities in 2005, and the regeneration project commenced in 2006 with several phases of the development now completed. An approved joint Design Framework is in place to ensure development takes place in a manner that respects the location and mitigates impacts on local historic and environmental assets.

Figure 4.3: Strategic Site Allocation - Markham Vale



Policy SS5: Markham Vale

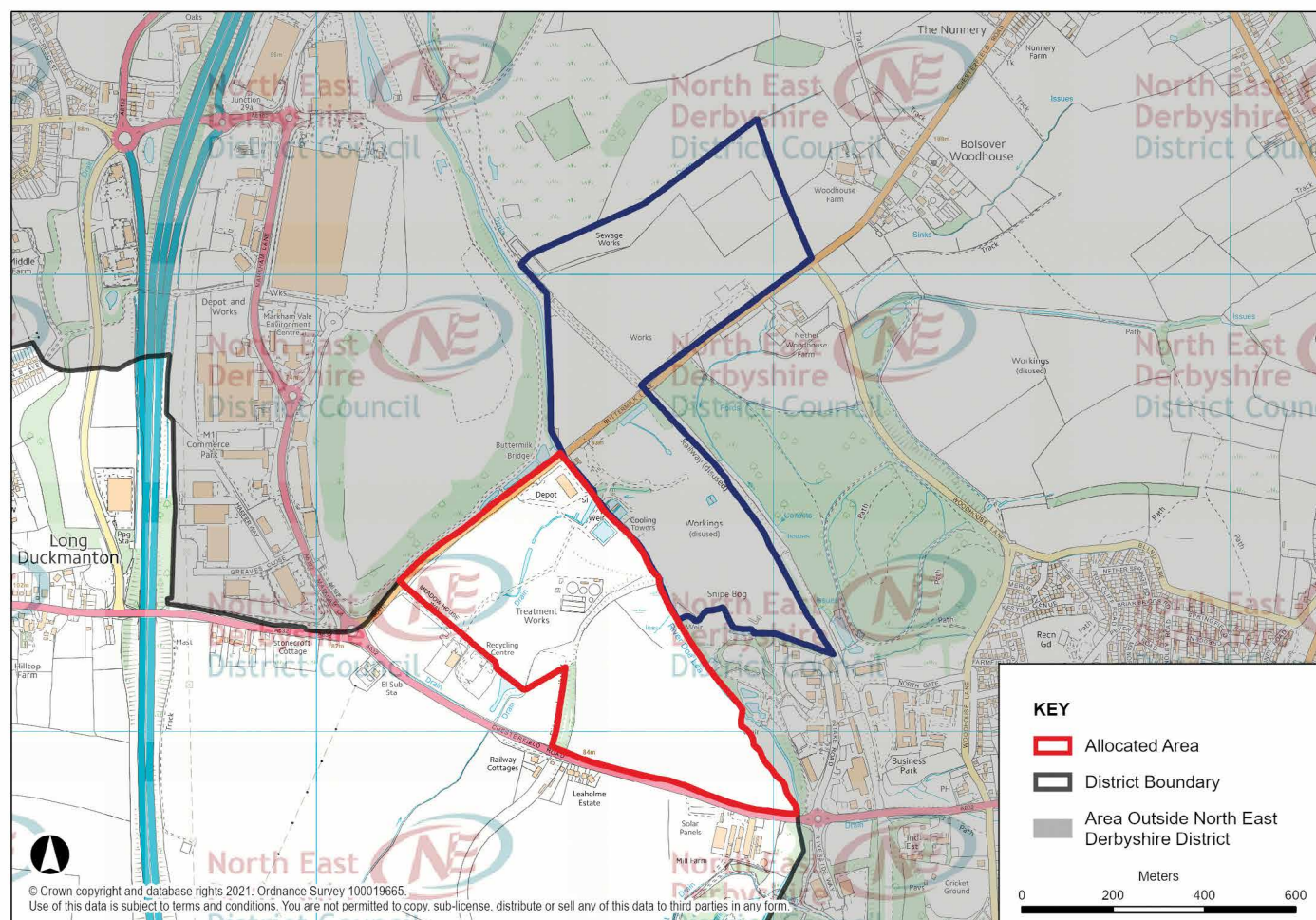
1. Land at Markham Vale, as shown on the Policies Map, is allocated as a Strategic Development Site for employment use.
2. Development proposals will be guided by the approved Design Framework or any subsequent approved document and permitted where they:
 - a. Take place as part of the comprehensive development of the whole Markham Vale scheme;
 - b. Promote and accommodate sustainable transport for pedestrians, cyclists, and buses in accordance with Policy ID2-3;
 - c. Provide structural landscaping, green infrastructure and public open space in accordance with Policies ID7 & ID10, and promote linkages to the wider green infrastructure network;
 - d. Incorporate sustainable design principles, in accordance with Policy SS1 and Policy SDC12; and
 - e. Sustain and enhance the significance of heritage assets, in particular the Grade 1 Listed Bolsover Castle.

Coalite Priority Regeneration Area

- 4.50 The Coalite Priority Regeneration Area comprises the 61 hectare former Coalite Chemical Works site. This large area of previously developed land is located to the east of Junction 29A of the M1 motorway and the Markham Vale Enterprise Zone, straddling the administrative boundary with Bolsover District Council and in close proximity to the boundary with Chesterfield Borough Council, making it an important cross-boundary strategic site.
- 4.51 The site is predominately brownfield with a legacy of contamination due to its historical uses associated with coal mining, and coal oil chemical processing. The site forms part of the setting of Bolsover Castle, and includes the Doe Lea Corridor and its important biodiversity, both of which would need to be effectively protected in any regeneration proposals. The site is being promoted by the land owner and outline permissions were secured with both North East Derbyshire and Bolsover District Councils in 2016 and 2015 respectively. The approved scheme includes remediation of the site, the provision of approximately 660 dwellings, 70,000 m2 employment land, a transport hub, energy centre, visitor centre/museum, local centre and land for a new primary phase school.
- 4.52 Since planning permission was secured on the site the Government has confirmed proposals for the realignment of the proposed route for HS2, such that it runs through the eastern end of the Coalite site affecting two proposed housing plots and a key roundabout access off Chesterfield Road. The impact of this creates significant uncertainty for the currently approved scheme within North East Derbyshire. Work has commenced on the clean-up of the site and the land owner has confirmed that they remain committed to the development of the entire site, but indicate that a revised scheme will be necessary to take account of the impacts of HS2.

- 4.53 In light of these uncertainties the Council cannot be confident in relying on the housing land proposed to contribute to the delivery of the Local Plan's housing target. However, the Council still strongly supports the site's remediation and development and in accordance with the regeneration ambitions of the Local Plan, the Council allocates the site as a Priority Regeneration Area.
- 4.54 It is acknowledged that a revised scheme for the land in North East Derbyshire will be required. The range of uses that form part of the approved schemes for the wider site remains broadly appropriate, accepting that the quanta of development types is likely to change. It is therefore considered that the site could accommodate the following uses up to and/or beyond the plan period:
- Residential development of up to 660 dwellings, incorporating a local centre and land for a primary school where appropriate, to meet the needs arising from the development of the site and where consistent with other policies in the Plan;
 - Employment development within use classes B2, B8 and E(g) for up to 28ha (gross);
 - Transport hub to serve the wider site; and
 - Open space.
- 4.55 This policy approach has been discussed and formulated jointly with Bolsover District Council to ensure that this strategic cross boundary site is addressed appropriately in line with the Duty to Co-operate.

Figure 4.4: Coalite Regeneration Area - Cross Boundary Strategic Site



Policy SS6: Coalite Priority Regeneration Area

1. Land at the former Coalite Chemical Works site as defined on the Policies Map is allocated as a Priority Regeneration Area within the Local Plan. As such, the site will be safeguarded from development which would jeopardise the comprehensive remediation, reclamation and redevelopment of the whole site (including the land in Bolsover District).
2. Proposals for the development of this Priority Regeneration Area will be guided by the approved masterplan for the site or any subsequent approved document and permitted where they:
 - a. Form part of a comprehensive masterplan for re-development on the whole site (including the land in Bolsover District) including infrastructure requirements and delivery;
 - b. Enable the full reclamation of the site in line with an agreed programme of work and delivery plan which should also ensure that no residential development takes place until the whole of the site has been fully remediated;
 - c. Sustain and enhance the significance of heritage assets, in particular the Grade 1 Listed Bolsover Castle and Sutton Scarsdale Hall;
 - d. Protect and enhance the biodiversity value of the Doe Lea Corridor within the site and promote linkages to the wider green infrastructure network where possible;
 - e. Protect the water quality of the River Doe Lea;
 - f. Protect development from the risk of flooding by avoiding placing vulnerable uses in the high risk flood zones within the site; and
 - g. Take account of any potential impacts arising from the implementation of High Speed 2.
3. The following are considered acceptable main uses for the site either individually or in combination, subject to meeting the requirements of 2 above:
 - a. Housing development for up to 660 dwellings, including where justified:
 - i. a local centre to serve the day to day needs of the site, and
 - ii. provision of a Primary School or land for a Primary School;
 - b. Employment development (comprising B2, B8 & E(g)) for up to 28ha;
 - c. Transport hub; and
 - d. Open space.

Settlement Development Limits

- 4.56 In addition to the development of sites allocated in the Plan, opportunities will exist throughout the plan period for additional development where it is sustainable development and is appropriate to the scale and function of the settlement in which it is located. Such opportunities will mainly comprise of residential development on previously developed land, as well as conversions and the redevelopment of existing buildings. It may also cover proposals for development such as live/work units, specialist accommodation, small scale retailing, and employment uses not covered by policies elsewhere in the Plan.
- 4.57 Settlement Development Limits enclose the built framework of settlements and determine the extent of the countryside beyond, by taking into account existing, committed and allocated development and land uses. Within Settlement Development Limits identified on the Policies Map the principle of development is acceptable provided it is in line with Policy SS7: Development on Unallocated Land within Settlements with defined Settlement Development Limits. Outside of these main built up areas there are some smaller villages and hamlets identified within Level 4 of the settlement hierarchy which do not have a Settlement Development Limit and are considered to lie in the open countryside. Within these villages limited infill development may be appropriate in accordance with Policies SS9: Development in the Countryside and SS10: North East Derbyshire Green Belt; or where this is allocated by an adopted Neighbourhood Plan as set out in Policy SS8: Development in Very Small Villages and Hamlets.
- 4.58 Outside Settlement Development Limits, countryside and/or Green Belt policies apply and all proposals for development will be considered against the requirements set out in Policies SS9: Development in the Countryside and SS10: North East Derbyshire Green Belt. This approach provides certainty to all those involved in the development management process and makes it clear which policies will apply.
- 4.59 This approach complies with the planned approach advocated in national policy (NPPF); since the Local Plan identifies sufficient housing provision for the District to meet both a five year supply of housing on adoption of the Plan and the development requirements for the Plan period. Further land outside Settlement Development Limits is therefore not required to meet this need.
- 4.60 It is acknowledged that in circumstances where the Council may not be able to demonstrate a five year supply of housing land, these policies may be considered to restrict the supply of housing in terms of the provisions of paragraph 49 of the NPPF. However these are important place shaping policies that are integral to the strategy of the Local Plan and achievement of sustainable development. Their purpose is to guide development to the right places, rather than constraining development and therefore should be given due weight in decision making in the event that no five year supply is demonstrated.

Policy SS7: Development on Unallocated Land within Settlements with defined Settlement Development Limits

All development proposals on sites within Settlement Development Limits that are not allocated in the Local Plan or in a Neighbourhood Plan, will be permitted, provided that the proposed development:

- a. Is appropriate in scale, design and location to the character and function of the settlement; and
- b. Does not result in the loss of a valued facility or service unless it can be demonstrated that it is no longer viable, or is not the subject of a Community Right to Bid; and
- c. Is compatible with, and does not prejudice any intended use of adjacent sites and land uses; and
- d. Accords with other policies of the Plan.

Policy SS8: Development in Very Small Villages & Hamlets

1. Within very small villages and hamlets (defined under Level 4 in the Settlement Hierarchy at Table 4.2) development will be restricted to limited infill development in accordance with Policies SS9 and SS10, and development allocated in an adopted Neighbourhood Plan.
2. Such development should respect the form, scale and character of the existing settlement and surrounding landscape, through careful siting, scale, design and use of materials.

Development in the Countryside

4.61 As a general principle, new development will be directed to sites within Settlement Development Limits, or sites allocated for development, whilst the countryside will be protected from inappropriate development, in accordance with Policy SS1 (Sustainable Development). Land which is not within a Settlement Development Limit, if not allocated for development, will be treated as 'countryside'.

4.62 As well as providing leisure and recreational opportunities the countryside is a constantly changing workplace. It is necessary to balance and integrate the requirement to

protect the countryside with the need to sustain and encourage the vitality and viability of the rural economy, including agriculture and tourism. Whilst many of the activities in the countryside are outside the scope of planning control, there are other forms of development which can be accommodated without detrimental effect on the countryside.

4.63 There is a range of buildings in the countryside which are no longer suitable for their original purposes. The majority are likely to be agricultural buildings, but there may be other buildings which are no longer in use for their original purpose and for which an alternative use is being sought. Many of these buildings make a positive

contribution to the character and appearance of the area. Provided that they are structurally sound, conversion of these buildings, for example to employment or community use, visitor accommodation or housing, can safeguard their future. By re-using existing resources, conversions can also meet the aims of sustainable built development. However there are some buildings which are not suitable for conversion, including those which are structurally unsound, roofless, missing substantial sections of wall, or

so ruined that only vestiges remain of the original structure; of temporary construction; eyesores which should be removed in the interests of landscape conservation; unsuitable in terms of size and forms of construction; or at risk of flooding.

- 4.64 New buildings should respect the style, and character of the locality. Proposals for new buildings in the countryside outside of existing settlements and not on land allocated for development will be strictly controlled.

Policy SS9: Development in the Countryside

1. Development proposals in countryside locations outside the Settlement Development Limits will be approved where it can be demonstrated to fall within one or more of the following categories:
 - a. It involves a replacement building for the same use and is not significantly larger than the building it replaces;
 - b. It involves the re-use of buildings and accords with policy SDC1;
 - c. It is necessary for the efficient or viable operation of agriculture, horticulture, forestry and other appropriate land based businesses, including the diversification of activities on an existing farm unit;
 - d. It involves small scale employment uses related to local farming, forestry, recreation, or tourism;
 - e. It involves new visitor accommodation, or extensions to existing visitor accommodation in accordance with Policies WC5 & WC6;
 - f. It involves the change of use, re-use, limited infilling or redevelopment of vacant, derelict or previously developed land which would not have a greater impact on the character of the countryside than the existing development;
 - g. It involves the use for a Traveller Site in accordance with Policy LC9;
 - h. It involves the provision, expansion, or improvement of social infrastructure and accords with Policy ID4, or relates to a development which has a demonstrable community and/or social benefit; or
 - i. It is in accordance with the policies of an adopted Neighbourhood Plan.
2. In all cases, where development is considered acceptable, it will be required to respect the form, scale and character of the landscape, through careful siting, scale, design and use of materials.
3. Where development falls within the Green Belt the provisions of Policy SS10: North East Derbyshire Green Belt apply.

North East Derbyshire Green Belt

- 4.65 The fundamental aim of Green Belt policy is to prevent urban sprawl by keeping land permanently open. The essential characteristics of Green Belts are their openness and their permanence, providing long term protection and certainty from inappropriate development, which is, by definition, harmful to the Green Belt. Green Belts can also assist in urban regeneration by encouraging the recycling of derelict and other urban land.
- 4.66 The North East Derbyshire Green Belt covers a substantial part of the District, located between Sheffield and Chesterfield in the north, Chesterfield and Wingerworth in the south, and also the land west of Chesterfield to the Peak Park boundary. It surrounds the towns of Dronfield, Eckington and Killamarsh and a number of villages. It was first drawn up in 1955, adopted in 1986 and carried forward in the North East Derbyshire Local Plan, (adopted 1999). The Green Belt was subsequently reviewed in the successor Local Plan (adopted 2005).
- 4.67 The North East Derbyshire Green Belt has been an effective planning policy tool assisting in focussing development on brownfield sites and undeveloped land within settlements boundaries. However over time there have been unintended impacts such as localised unmet housing need and demand, development pressure on green spaces and employment land, increased house prices and affordability pressures in those towns and villages constrained by the Green Belt. As a consequence pressure for growth has been redirected to other areas of the district.

Green Belt Review

- 4.68 National Guidance is clear that Green Belt boundaries should only be altered in exceptional circumstances, through the preparation or review of a Local Plan. In reviewing Green Belt boundaries authorities should have regard to their intended permanence in the long term, so they should be capable of enduring beyond the plan period.
- 4.69 Early work on the Local Plan sought to distribute development in a way that did not involve a review of the Green Belt. However it became evident that there was a significant mismatch between the strategy and the proposed spatial distribution of housing, land availability and demand; such that the level of growth being planned for across the District could not be accommodated in a sustainable way or where demand and viability were highest. Detailed evidence setting out the exceptional circumstances justifying the release of Green Belt land is set out in the Green Belt Topic Paper (January 2018). The key reasoning is based upon the fact that three of the District's four most sustainable settlements are tightly constrained by the Green Belt and evidence shows that:
- Housing land supply in these areas is limited, which combined with high demand has driven up land values and exacerbated housing affordability issues;
 - Employment land in these settlements should be retained for employment use;
 - Existing sports pitches and recreation facilities within these settlements are all required to be retained;
 - Increasing supply in other areas of the district would not support the strategy of the Plan.

4.70 The evidence led the Council to undertake a review of the Green Belt (Green Belt Review, 2017). This involved an objective assessment of the role of individual land parcels in fulfilling the purposes and objectives of the Green Belt. The review confirmed that all but a few parcels continue to perform a valid Green Belt function. Therefore in order to achieve a more sustainable pattern of development that is in line with the spatial strategy, and provide a sufficient level of development in the North of the District to meet needs, we must accept that this will have an impact on the Green Belt.

4.71 Further supplementary assessment of the Green Belt land parcels has taken place to identify those parcels that would cause least harm to the strategic functions of the Green Belt. These sites have also been taken through the Council's usual site assessment process and Sustainability Appraisal to ensure that they are suitable for development. The area of land removed from the Green Belt to meet the development needs of the District during this plan period (as allocated sites) or because they are not considered to perform a valid Green Belt function amounts to less than 1% of the Green Belt within North East Derbyshire. In line with the NPPF (paragraph 81) policies associated with the development of those areas of land released from the Green Belt will seek to enhance the beneficial use of the remaining Green Belt, such as

looking for opportunities to provide access; to provide opportunities for outdoor sport and recreation; to retain and enhance landscapes, visual amenity and biodiversity; or to improve damaged and derelict land. The remaining area of Green Belt will continue to be protected from inappropriate development by National Guidance in the NPPF and by Policy SS10.

Safeguarded Land

4.72 National guidance requires that when defining Green Belt boundaries authorities should have regard to their permanence in the long term, so that they are capable of enduring beyond the plan period¹². The identification of 'safeguarded land' between the urban area and the Green Belt can help to meet longer-term development needs that extend beyond the current plan period, thereby avoiding the need for a review of the Green Belt with each Local Plan review. However given the inherent uncertainty of accurately predicting development needs beyond the plan period, it is difficult to say how much land would be required and whether the locations selected now would be appropriate in the future. This makes it difficult to demonstrate exceptional circumstances for removing the land from the Green Belt for the purposes of safeguarding and therefore in the absence of clear evidence, the Plan does not identify any safeguarded land.

¹² National Planning Policy Framework, paragraph 85.

Policy SS10: North East Derbyshire Green Belt

1. Within the North East Derbyshire Green Belt as shown on the Policies Map, inappropriate development will not be approved except in very special circumstances.
2. The construction of new buildings will be regarded as inappropriate development and will not be permitted. Exceptions to this, where they accord with other policies in the Plan are:
 - a. Buildings for the purposes of agriculture or forestry; or
 - b. Provision of appropriate facilities for outdoor sport, outdoor recreation, and for cemeteries, which preserve the openness of the Green Belt and do not conflict with the purposes of including land within it; or
 - c. Extension or alteration to a building that does not result in disproportionate additions over and above the size of the original building; or
 - d. Replacement of a building provided the new building is in the same use and is not materially larger than the one it replaces; or
 - e. Limited affordable housing for local community needs in accordance with Policy LC3; or
 - f. Limited infilling or the partial or complete redevelopment of previously developed land which would not have a greater impact on the openness of the Green Belt and the purposes of including land within it than the existing development.
3. Other forms of development which may be appropriate in the Green Belt, provided it preserves the openness of the Green Belt and does not conflict with its purposes include:
 - a. Mineral extraction,
 - b. Engineering operations,
 - c. Local transport infrastructure which can demonstrate a requirement for a Green Belt location,
 - d. The re-use or conversion of buildings which are of permanent and substantial construction, and
 - e. Development brought forward under a Community Right to Build Order.

Local Settlement Gaps

- 4.73 Community 'identification of place' is an area of local concern and is a valid component of Sustainable Development. Issues in the south of the district are not strategic in extent, such that Green Belt designation would be appropriate. However, these issues are locally important and increasingly acute, such that a locally responsive policy mechanism is required to address this real and increasing threat to the character and identity of the plan area's communities. The NPPF's core principles recognise that different areas play different roles in supporting sustainable development, and within the plan area settlement identity and separation is a pressing concern which can be safeguarded through a positive plan-led approach across certain areas.
- 4.74 The southern sub-area, which does not benefit from Green Belt designation, is particularly vulnerable to settlement coalescence and identity loss. The rolling terrain of this part of the district sometimes emphasises the narrow and often narrowing separation between settlements and can exacerbate the perceptual and visual erosion of settlement identity and separation as villages and towns often fall within the same public views from elevated areas or across prominent hillsides.
- 4.75 The harm that erosion of settlement separation can have is not limited to visual character, cultural or historic identity effects. It can also erode environmental and community benefits afforded by accessible open space and outlooks from within the settlement. Where settlements are allowed to coalesce or separation is significantly reduced through urban growth, the remaining 'sense of place' can be harmed and important green infrastructure and recreational roles that green spaces around settlements play be eroded.
- 4.76 The designation of Local Settlement Gaps is a policy response to the issue. These limited, localised areas (set out on the Policies Map) have been identified as playing important roles in maintaining settlement identity. Development within them will be restricted to that which would not erode the wider functionality of the settlement gap.
- 4.77 The identification of these areas and restriction of significant development therein has not served to restrict or redirect objectively assessed need for development across the district nor result in less sustainable locations for growth. The protection of these Local Settlement Gaps helps deliver a more sustainable form of development across the plan area.

Policy SS11: Local Settlement Gaps

Within those areas identified on the Policies Map as Local Settlement Gaps, development proposals will be permitted where they:

- a. Maintain the functionality and undeveloped character of the Local Settlement Gap;
- b. Do not result in the coalescence of historically distinct settlements; and
- c. Do not result in the erosion of existing settlement separation and identity created by the undeveloped character of those spaces.

Figure 4.5: Key Diagram



5. Living Communities

Introduction

- 5.1 The Local Plan aims to ensure that a wide choice of good quality housing is provided in the District to meet the needs of all sections of the community. This chapter will identify housing allocations to support the levels of sustainable growth identified in the Spatial Strategy Chapter, policies which address the range of household needs, such as affordable housing, type and mix of housing, specialist housing and agricultural, forestry and other occupational dwellings. It also addresses the needs of Gypsies, Travellers and Travelling Showpeople.



Housing Allocations

- 5.2 Allocating a site in the Local Plan establishes the principle that the development of the site for housing is acceptable. Site allocations provide greater certainty both to developers and local people to help understand what may happen in their neighbourhood in the future. They also help the Council and infrastructure providers to look at the cumulative impact of development and plan for future needs, such as school places, transport improvements and water capacity.
- 5.3 The Local Plan must provide for a sufficient quantity, quality, and type of housing in the right locations, taking account of need and demand. Policy SS2: Spatial Strategy and the Distribution of Development in Chapter 4 sets out that the Local Plan will make provision for the delivery of a minimum of 6,600 dwellings over the period 2014-2034 (330 dwellings per annum), of which 3523 are allocated in the Plan.
- 5.4 Sites which have been allocated in the Local Plan to provide the supply of sites to meet the housing land requirement are listed in Policy LC1: Housing Allocations. The Housing Trajectory at Appendix C shows how these housing allocations are expected to be delivered during the plan period, including in the first five years.
- 5.5 Allocations have been made by balancing a range of considerations, such as the site's availability, suitability and deliverability, and also the findings of the Sustainability Appraisal process. They include sites with or without planning permission.
- 5.6 Although historically small windfalls have made a positive contribution to housing delivery in the District¹³, an allowance for future windfalls has not been factored into the calculation of housing supply. However, as explained in Chapter 4, they provide a flexibility allowance of approximately 75 dwellings per year to the housing supply.

¹³ 673 dwellings have been completed on small sites between 2011 and 2020.

- 5.7 The Plan will allocate only those housing sites which are capable of accommodating 10 or more dwellings. This threshold provides a good range of sites to be considered. Smaller sites can be allocated by Neighbourhood Plans, providing proposals conform to the relevant policies of the Local Plan.
- 5.8 The Council recognises that it is critical to monitor the delivery of allocated sites to ensure that sufficient housing is coming forward and that a five year supply of deliverable sites continues to be available. In line with the NPPF, the Council should identify and update annually a supply of specific deliverable sites, sufficient to provide 5 years' worth of housing against its housing requirement, with an additional buffer. This buffer may be set at 5% (moved forward from later in the plan period) to ensure choice and competition in the housing market, or 20% where there has been a record of persistent under delivery.
- 5.9 From the start of the Plan Period, there has been no significant underdelivery in relation to the Government's Housing Delivery Test and therefore the housing trajectory in Appendix C includes a 5% buffer within the first five years after adoption. If in future monitoring years, the Housing Delivery Test indicates that there is significant under delivery over the previous three years (below 85% of the requirement) the buffer should be increased to 20% in the five year housing land supply calculations. Where the Housing Delivery Test indicates that the delivery of housing was substantially below (less than 75% of) the housing requirement over the previous three years, or in situations where it is anticipated that the Council cannot demonstrate a rolling five year housing land supply, a review of the Local Plan, in whole or in part, will be triggered.

Policy LC1: Housing Allocations

The following sites are allocated on the Policies Map for housing to deliver the housing land requirement set out in policy SS2: Spatial Strategy and the Distribution of Development:

Settlement	Site	Approximate Capacity within Plan Period*	Other policy requirements (not an exhaustive list)
Clay Cross	SS4. Former Biwater Strategic Site	730	SS4
	CC1. Land at Stretton Road, Clay Cross	120	ID2, SDC4, SDC14
	CC2. Land North of Clay Lane, Clay Cross	25	ID3, SDC3, SDC4, SDC11, SDC14
	CC3. Land off Holmgate Road, Clay Cross	15	ID8
	CC4. Land at Broadleys, Clay Cross	10	ID3, SDC4, SDC5

Continued

Policy LC1: Housing Allocations

Settlement	Site	Approximate Capacity within Plan Period*	Other policy requirements (not an exhaustive list)
Dronfield	DR1. Land off Shakespeare Crescent & Chesterfield Road, Dronfield	160	ID2, ID3, ID7, SDC2, SDC3
	DR2. Land at Stubley Lane, Stubley Hollow, Dronfield	40	ID2, ID3, SDC2, SDC4
Eckington	EC1. Bradley Lomas Electrolok Ltd, Church Street, Eckington	20	
	EC2. Land at Staveley Lane, Eckington	39	
Killamarsh	KL1. Land at Westthorpe, Killamarsh	330	ID3, SDC3, SDC4, SDC14
	KL2. Land off Rotherham Road, Killamarsh	70	ID3, SDC14
	KL3. Land off Primrose Lane, Killamarsh	30	ID9
	KL4. Land at 30 Ashley Lane, Killamarsh	14	
	KL5. The Old Station, Station Road, Killamarsh	13	
	KL6. Land off Boiley Lane, Killamarsh	11	
Calow	CA1. Land at Churchmeadows, Calow	47	SDC4
Grassmoor	GR1. Land at Windwhistle Farm, Grassmoor	36	
Holmewood	H01. Land to the West of Chesterfield Road, Holmewood	225	SDC3, SDC12
	H02. Allotments at Hunloke Road, Holmewood	12	
	H03. Land South of 205 Chesterfield Road, Holmewood	40	
	H04. Land between 205 and 235 Chesterfield Road, Holmewood	14	
Morton	MO1. Land North of Stretton Road, Morton	100	ID3, ID7, SDC3, SDC14
Pilsley	PI1. Land North of Hallgate Lane, Pilsley	87	SDC12

Policy LC1: Housing Allocations

Settlement	Site	Approximate Capacity within Plan Period*	Other policy requirements (not an exhaustive list)
Shirland	SH1. Land at Hallfieldgate Lane, Shirland	65	
	SH2. Land North of Park Lane, Shirland	40	ID3, SDC4, SDC14
Stonebroom	ST1. Land to the rear of 14A to 54 High Street, Stonebroom	35	ID3, SDC4
Tupton	TU1. Land at Ankerbold Road, Tupton	203	ID3, SDC4, SDC14
	TU2. Land to the Rear of 10 to 52, Ashover Road, Old Tupton	6	
	TU3. Land South of Sunningdale Park, Tupton	42	
Wingerworth	SS3. The Avenue Strategic Site	688	SS3
	WW1. Land at Hanging Banks, Wingerworth	176	
	WW2. Land South of Mill Lane, Wingerworth	80	
TOTAL DWELLINGS		3523	

In order to off-set the effect of removing land from the Green Belt at allocation sites DR1, DR2, KL1 and KL2, compensatory improvements to the environmental quality or accessibility of the remaining Green Belt land will be required where appropriate.

*Remaining capacity at adoption of the Local Plan.

- 5.10 A brief description of the sites allocated for housing development is given below.

Clay Cross

SS4: Former Biwater Strategic Site

- 5.11 This strategic site is described in more detail at Policy SS4: Former Biwater Strategic Site.

CC1. Land at Stretton Road, Clay Cross

- 5.12 This site is located in the south of Clay Cross, is approximately 4.35

hectares in size and is expected to deliver approximately 120 dwellings towards the end of the plan period. The site may have potential ecological constraints which would need to be assessed. Furthermore, the site lies within an area that has been defined by the Coal Authority as high risk, containing potential hazards arising from former coal mining activity. A Coal Mining Assessment would need to be carried out.

- 5.13 In line with Policy ID2, development will be required to provide or contribute towards improvements to the A61 corridor, where justified.

CC2. Land North of Clay Lane, Clay Cross

- 5.14 This site is located in the south-west of Clay Cross, is approximately 1.42 hectares in size and is expected to deliver approximately 25 dwellings within the first ten years after adoption of the Local Plan. Options for the creation of suitable highway access need to be assessed. Furthermore, the site lies within an area that has been defined by the Coal Authority as high risk, containing potential hazards arising from former coal mining activity. A Coal Mining Assessment would need to be carried out.
- 5.15 The eastern part of the site comprises a potential traditional orchard, which is a UK BAP priority habitat type. Impacts would need to be assessed further. To the west of the site is Press Brook, which has a record for water voles, and is within Flood Risk Zones 2 and 3. Mitigation measures, such as a buffer between the brook and any development, should be implemented.

CC3. Land off Holmgate Road, Clay Cross

- 5.16 This site is located to the west of Clay Cross, near Holmgate, is approximately 0.58 hectares in size and is expected to deliver 15 dwellings towards the end of the plan period. The proposed Greenway running through the site will need to be accompanied within the design scheme of the development.

CC4. Land at Broadleys, Clay Cross

- 5.17 This building and grounds are located within the centre of Clay Cross, is approximately 0.36 hectares in size and is expected to deliver approximately 10 dwellings towards the end of the Plan Period. Options for the creation of suitable highway access need to be assessed. The site may also have

potential ecological constraints which would need to be assessed. It is located within Clay Cross Conservation Area and the design of any new development will need to reflect this.

Dronfield

DR1. Land off Shakespeare Crescent & Chesterfield Road, Dronfield

- 5.18 This site is located to the south east of Dronfield, is approximately 6.52 hectares in size and is expected to deliver approximately 160 dwellings. The majority is expected to be built within the first ten years after adoption of the Local Plan. The site has a considerable sloping gradient down to Chesterfield Road, as well as a difference in levels between the site and the highway. This would need to be given consideration in the layout and design of a development proposal. Green infrastructure should be provided to help new development integrate into the landscape. There are also trees protected by TPO No 7 along the north-western and western boundary of the site and in the southwest of the site. These should be retained within the layout of the development in line with policy SDC2. Any site layout should incorporate appropriate provision for the public right of way which is within the site area.
- 5.19 In line with Policy ID2, development will be required to provide or contribute towards improvements to key road junctions to support growth at Dronfield including the B6057 Chesterfield Road / B6158 Green Lane / Callywhite Lane, and A61 Bowshaw Roundabout, where justified. In order to off-set the effect of removing this land from the Green Belt, compensatory improvements to the environmental quality or accessibility of the remaining Green Belt land will be required where appropriate.

DR2. Land at Stubley Lane, Stubley Hollow, Dronfield

- 5.20 This site is located to the north of Dronfield, is approximately 1.18 hectares in size and is expected to deliver approximately 40 dwellings within the first ten years after adoption of the Local Plan. Options for the creation of suitable highway access need to be assessed. The site may also have potential ecological constraints which would need to be assessed.
- 5.21 In line with Policy ID2, development will be required to provide or contribute towards improvements to key road junctions to support growth at Dronfield including the B6057 Chesterfield Road / B6158 Green Lane / Callywhite Lane, and A61 Bowshaw Roundabout, where justified.
- 5.22 In order to off-set the effect of removing this land from the Green Belt, compensatory improvements to the environmental quality or accessibility of the remaining Green Belt land will be required where appropriate.

Eckington

EC1. Bradley Lomas Electrolok Ltd, Church Street, Eckington

- 5.23 This site is located within the north east of Eckington, is approximately 1.3 hectares in size and is expected to deliver 20 dwellings within the first five years. The site has planning permission.

EC2. Land at Staveley Lane, Eckington

- 5.24 This site is located to the south of Eckington, is approximately 4.21 hectares in size and is expected to deliver a further 39 dwellings within the first five years. The site has planning permission and is currently under construction.

Killamarsh

KL1. Land at Westthorpe, Killamarsh

- 5.25 This site is located to the south of Killamarsh, is approximately 15.6 hectares in size and is expected to deliver approximately 330 dwellings. The majority is expected to be built by the end of the Plan Period. A development proposal for this site would need to show that the nearby highway network has sufficient capacity for this scale of development, or that improvement works can be carried out. Consideration will also need to be given to the design of future junction(s).
- 5.26 The site may also have potential ecological constraints which would need to be assessed. Potential impacts on long distance views into the countryside to the south should also be mitigated and green space planning carefully considered to help integrate new development within the south of the site and the interface with the countryside. Furthermore, the site partially lies within an area that has been defined by the Coal Authority as high risk, containing potential hazards arising from former coal mining activity. A Coal Mining Assessment would need to be carried out.

- 5.27 In order to off-set the effect of removing this land from the Green Belt, compensatory improvements to the environmental quality or accessibility of the remaining Green Belt land will be required where appropriate.

KL2. Land off Rotherham Road, Killamarsh

- 5.28 This site is located to the north east of Killamarsh, is approximately 3.06 hectares in size and is expected to deliver approximately 70 dwellings within the first ten years after adoption of the Local Plan. A development proposal for this site would need to show that satisfactory highway access

can be achieved and that the nearby highway network has sufficient capacity for this scale of development, or that improvement works can be carried out. Furthermore, the site partially lies within an area that has been defined by the Coal Authority as high risk, containing potential hazards arising from former coal mining activity. A Coal Mining Assessment would need to be carried out.

- 5.29 In order to off-set the effect of removing this land from the Green Belt, compensatory improvements to the environmental quality or accessibility of the remaining Green Belt land will be required where appropriate.

KL3. Land off Primrose Lane, Killamarsh

- 5.30 This site is located to the north of Killamarsh, is approximately 2.87 hectares in size and is expected to deliver 30 dwellings within the first ten years after adoption of the Local Plan. The site is located in close proximity to the Chesterfield Canal. Development should protect the route of the canal and encourage proposals that enable the reinstatement of the canal in line with Policy ID9: Chesterfield Canal.

KL4. Land at 30 Ashley Lane, Killamarsh

- 5.31 This site is located within the east of Killamarsh, is approximately 0.47 hectares in size and is expected to deliver 14 dwellings towards the end of the Plan Period.

KL5. Old Station, Station Road, Killamarsh

- 5.32 This site is located within the east of Killamarsh, is approximately 0.43 hectares in size and is expected to deliver 13 dwellings within the first five years after adoption of the Local Plan. The site has planning permission and a start has been made on site.

KL6. Land off Boiley Lane, Killamarsh

- 5.33 This site is located to the south of Killamarsh, is approximately 0.53 hectares in size and is expected to deliver a further 11 dwellings within the first five years after adoption of the Local Plan. The site has planning permission for 13 dwellings and is currently under construction.

Calow

CA1. Land at Churchmeadows, Calow

- 5.34 This site is located to the west of Calow, is approximately 1.75 hectares in size and is expected to deliver 47 dwellings within the first ten years after adoption of the Local Plan. A large part of the site is also designated as a Local Wildlife Site. However it is considered difficult to attribute significant weight to the protection of the site as a designated site when the grassland species for which it merits this status has been repeatedly ploughed up. The site has outline planning permission for 47 dwellings.

Grassmoor

GR1. Land at Windwhistle Farm, Grassmoor

- 5.35 This site is located to the south east of Grassmoor, is approximately 6.82 hectares in size and is expected to deliver a further 36 dwellings within the first five years. The site has planning permission for 163 dwellings and is currently under construction.

Holmewood

HO1. Land West of Chesterfield Road, Holmewood

- 5.36 This site is located to the west of Holmewood, is approximately 19.80 hectares in size and is expected to deliver approximately 540 dwellings in total. However, it is anticipated

that only 225 of these will come forward within the Plan Period, with the remaining 315 dwellings post Plan period. The site has partly full and partly outline planning permission. The site is visually open and offers long distance views across the countryside to the north and west. The potential loss of these views should be mitigated by the sensitive design and layout of the development, which emphasises permeability and facilitates intermittent views through the new development. The design and layout should also protect the perceived sense of separation between the two historically separate settlements of Holmewood and North Wingfield and not give rise to further coalescence.

HO2. Allotments at Hunloke Road, Holmewood

- 5.37 This site is located in the centre of Holmewood, is approximately 5.86 hectares in size and is expected to deliver a further 12 dwellings within the first five years. The site has planning permission for 188 dwellings and is currently under construction.

HO3. Land to the South of, 205 Chesterfield Road, Holmewood

- 5.38 This site is located to the north west of Holmewood, is approximately 1.74 hectares in size and is expected to deliver 40 dwellings within the first five years after adoption of the Local Plan. The site has planning permission.

HO4. Land between 205 and 235 Chesterfield Road, Holmewood

- 5.39 This site is located to the north west of Holmewood, is approximately 0.49 hectares in size and is expected to deliver 14 dwellings within the first five years after adoption of the Local Plan. The site has planning permission.

Morton

MO1. Land North of Stretton Road, Morton

- 5.40 This site is located to the north west of Morton, is approximately 3.81 hectares in size and is expected to deliver approximately 100 dwellings within the first five years after adoption of the Local Plan. The site has outline planning permission.
- 5.41 Potential impacts on long distance views into the countryside to the west should be mitigated. Significant green infrastructure should be provided to help new development integrate into the landscape.

Pilsley

PI1. Land North of Hallgate Lane, Pilsley

- 5.42 This site is located to the north of Pilsley, is approximately 3.11 hectares in size and is expected to deliver approximately 87 dwellings within the first ten years after adoption of the Local Plan. The site has outline planning permission. High quality design should be provided to mitigate the impact of development on the character of the area and 'gateway' to the settlement.

Shirland

SH1. Land at Hallfieldgate Lane, Shirland

- 5.43 This site is located to the north of Hallfieldgate Lane, Shirland, is approximately 4.46 hectares in size and is expected to deliver a further 65 dwellings within the first five years after adoption of the Local Plan. The site has planning permission for 92 dwellings and is currently under construction.

SH2. Land North of Park Lane, Shirland

- 5.44 This site is located to the south east of Shirland, is approximately 1.43 hectares in size and is expected to deliver approximately 40 dwellings within the first ten years after adoption of the Local Plan. The site has outline planning permission.

Stonebroom

ST1. Land to the rear of 14A to 54 High Street, Stonebroom

- 5.45 This site is located to the south east of Stonebroom, is approximately 1.8 hectares in size and is expected to deliver approximately 35 dwellings. A development proposal for this site would need to show that satisfactory highway access can be achieved and that the nearby highway network has sufficient capacity for this scale of development, or that improvement works can be carried out. The site may have potential ecological constraints which would need to be assessed. The site has outline planning permission, with all matters reserved.

Tupton

TU1. Land at Ankerbold Road, Tupton

- 5.46 This site is located to the east of Tupton, is approximately 10.11 hectares in size and is expected to deliver approximately 203 dwellings within the first ten years after adoption of the Local Plan. The eastern part of the site has planning permission for 10 dwellings and the western part has planning permission for 193 dwellings.

TU2. Land to the Rear of 10 to 52, Ashover Road, Old Tupton

- 5.47 This site is located to the west of Old Tupton, is approximately 2.36 hectares in size and is expected to deliver a further 6 dwellings within the first five years after adoption of the Local Plan.

The site has planning permission for 68 dwellings and is currently under construction.

TU3. Land South of Sunningdale Park, Tupton

- 5.48 This site is located to the south of Sunningdale Park Tupton, is approximately 1.50 hectares in size and is expected to deliver a further 42 dwellings within the first ten years after adoption of the Local Plan. The southern part of the site has planning permission for 32 park homes and 2 houses. The northern part has planning permission for 14 dwellings and is currently under construction.

Wingerworth

SS3. The Avenue Strategic Site

- 5.49 This strategic site is described in more detail at Policy SS3: The Avenue Strategic Site.

WW1. Land at Hanging Banks, Wingerworth

- 5.50 This site is located to the south of Wingerworth and to west of the Adlington Estate, is approximately 10.79 hectares in size and is expected to deliver a further 176 dwellings within the first ten years. The site has planning permission for 222 dwellings and is currently under construction.

WW2. Land South of Mill Lane, Wingerworth

- 5.51 This site is located to the east of Wingerworth and the Adlington Estate, is approximately 8.94 hectares in size and is expected to deliver a further 80 dwellings within the first five years. The western part of the site has planning permission for 160 dwellings and has been completed. The eastern part of the site has planning permission for 80 dwellings and is currently under construction.

Housing Need, Range and Choice

- 5.52 National Planning Policy encourages the creation of sustainable, inclusive and mixed communities. This requires different types and tenures of housing to support the range of households expected to arise in the future; of different sizes, ages and incomes.

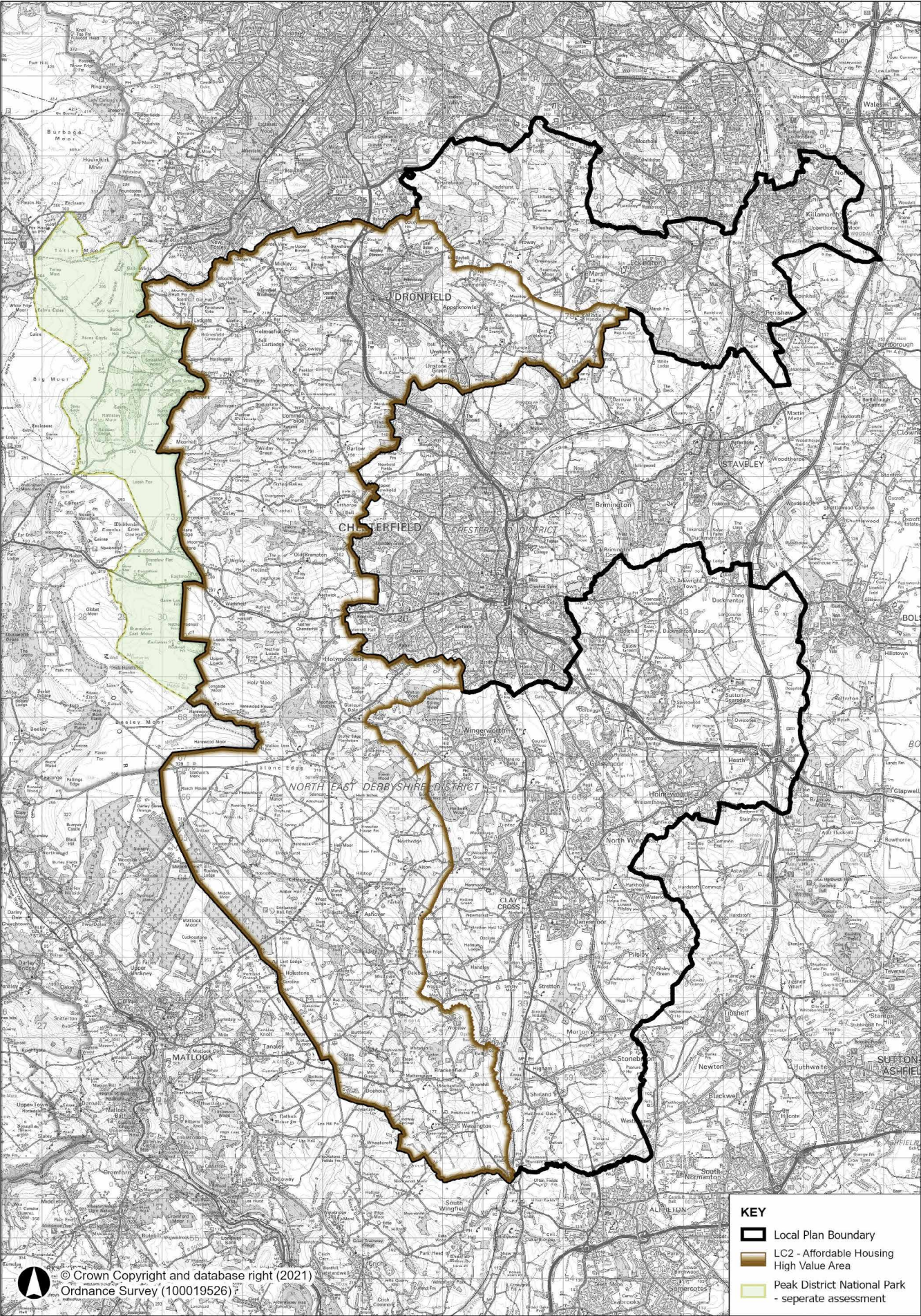


Affordable Housing

- 5.53 Many households in North East Derbyshire who lack any type of housing or live in unsuitable housing cannot afford to buy or rent housing at market rates. These households require affordable housing.
- 5.54 The Local Plan has been examined in light of the 2012 NPPF¹⁴, which defines affordable housing as including social rented, affordable rented and intermediate housing (both for rent and sale), provided to eligible households whose needs are not met by the open market. Eligibility is determined with regard to local incomes and local house prices.
- 5.55 The Housing and Planning Act 2016 has introduced a new legal framework for the delivery of Starter Homes. The Act defines Starter Homes as new dwellings only available for purchase by qualifying first-time buyers which are to be sold at a discount of at least 20 per
- cent of market value, and less than the price cap of £250,000 outside Greater London.
- 5.56 The Strategic Housing Market Assessment (SHMA) Update was undertaken in 2017 for all four authorities in the Housing Market Area, and should be read alongside the 2013 SHMA Report. These reports estimate what type and amount of housing is required in the District, including the need for affordable housing. The Updated analysis in the SHMA points to an overall need for affordable housing of 172 affordable units per annum in North East Derbyshire District.
- 5.57 In relation to the overall housing need for both market and affordable housing, the SHMA Update (2017) indicates that an adjustment to meet the full affordable housing need is neither realistically deliverable, nor justified. It therefore applies a 10% upward adjustment to the demographic need of 248 dwellings per annum in order to support enhanced affordable housing delivery, resulting in a level of 273 dwellings per annum. The District's OAN and housing target are both above this figure. As the SHMA states, a higher housing provision will do more to support both delivery of additional affordable homes and help improve the affordability of market housing. This will in turn help address the need for affordable housing.
- 5.58 The Council will expect provision to be made for affordable housing in relation to new build housing schemes, conversions and changes of use, in line with policy LC2. This policy sets out a requirement to provide 30% affordable housing within the high value area, and 20% in the remaining area of the District, as informed by the Whole Plan Viability Assessment 2018. The high value area is shown on the Policies Map as illustrated in Figure 5.1.

¹⁴ The 2019 NPPF includes a different definition of affordable housing. This will be addressed through a review of the Plan.

Figure 5.1: Affordable Housing - High Value Area



- 5.59 In applying affordable housing requirements, the Council will allow consideration of the development costs of the proposed development and the impact of this on the viability of any proposed scheme. In circumstances where the viability of the scheme is in question, the applicant will need to demonstrate, through an 'open book' procedure, that the required percentage of affordable housing would not be achievable. Should the Council be satisfied, a lower percentage of affordable housing will be negotiated. In such circumstances, and where the delivery on larger development sites may extend over a long period, within which market conditions may vary, a re-assessment of affordable housing provision on the site may be required in line with an agreed phasing plan. The requirement would not however, extend above the percentages set out in Policy LC2.
- 5.60 Affordable housing should be provided on site in most cases, but in some instances, it may not be possible or appropriate to do so. Examples could include where the provision of a very small number of affordable units may be difficult for a Registered Provider to manage, where off-site contributions would deliver more affordable housing than if provision is made on-site, and this provision is assured, or where the site is in an area where there is already an oversupply of affordable homes.
- 5.61 Sub-dividing a site or building so that the minimum threshold is not crossed will not avoid the requirement for affordable housing. Thresholds will be applied across the whole of the area to be developed. If there is a reasonable expectation that adjoining land will come forward, the Council will take account of the whole area in calculating any requirement, with each phase providing its share.

Policy LC2: Affordable Housing

1. Within the high value area identified on the Policies Map, all new housing proposals for 10 or more dwellings, or with a site area of 0.5 hectares or more, will be required to provide 30% affordable housing.
2. In the remaining area of the District all new housing proposals for 10 or more dwellings, or with a site area of 0.5 hectares or more, will be required to provide 20% affordable housing.
3. An agreed mix of affordable housing tenures will be determined through local evidence of housing need at the time of granting planning permission. The affordable housing should be provided in a tenure neutral way, in small groups or clusters distributed through the site. Sub-dividing a site or building so that the minimum threshold is not crossed is not permitted.
4. Where it can be demonstrated that it is not possible or appropriate to build affordable housing on-site, the development may provide a financial contribution towards the future provision of affordable housing of 'broadly equivalent value' to that which would have been provided on-site.
5. The provision of affordable housing may be varied where it can be demonstrated that the level of affordable housing sought would make the development unviable in light of changing market conditions, individual site circumstances and development costs. In circumstances where the viability of the scheme is in question, the applicant will need to demonstrate, through an 'open book' approach, that the required percentage of affordable housing would not be achievable. Provided that the Council is satisfied with the evidence provided, a lower provision may be negotiated. In such circumstances, and where the delivery of the site may extend over a long period, a re-assessment of affordable housing will be required in line with an agreed phasing plan.

Exception Sites for Affordable Housing

5.62 Exception sites, where planning permission may be granted for local needs housing on sites where residential development would not normally be allowed, are an established tool to provide affordable housing. The sites can help to maintain the viability and sustainability of rural communities. However, the availability of public funding for affordable housing has been reduced significantly in recent years. This has led to viability issues for registered providers. Therefore in order to bring about the delivery of affordable housing, in some limited

circumstances it may be appropriate to allow a small element of market housing in order to cross-subsidise the provision of affordable housing where this meets a local housing need. This will contribute to addressing the high level of affordable housing need identified in the SHMA Update.

5.63 Housing on rural exception sites must meet a genuine identified local need in areas where no other appropriate sites are available within the defined boundaries of the settlement. This need will have to be confirmed by an up to date¹⁵ survey carried out by the developer, in conjunction with the Council's Housing service, prior to the submission of a planning application. A

¹⁵ Not more than 5 years.

local survey may also include (parts of) settlements in neighbouring authorities, where appropriate.

5.64 Housing provided on exception sites must remain available for affordable local need in perpetuity. Planning Conditions and/or Section 106 agreements will be required to ensure this. As well as meeting local needs, exception housing should also reflect demand for particular sizes, types and tenure of houses, and be affordable in perpetuity¹⁶. The justification for housing development on such sites can only be made on the basis of pressing local need for affordable housing which cannot be met in other ways or elsewhere within the Settlement Development Limit.

5.65 Whilst Policy LC3: Exception Sites For Affordable Housing seeks to provide 100% affordable exception sites, it also allows for a subsidiary element of market housing on sites outside the Green Belt and in circumstances where it can be satisfactorily proven that this would facilitate the delivery of an identified local affordable housing need through a registered provider. Proposals for an element of market housing must be supported by a viability assessment which will be reviewed by the District Valuer to ensure that the proportion of market housing provided is no greater than that required to deliver the agreed amount of affordable housing without the need for public subsidy. The market units must at all times be subsidiary to the affordable housing element and therefore shall be less than 50% of the total number of dwellings on the development scheme.



¹⁶ This relates to all types of affordable housing, unless specifically exempted by the National Planning Policy Framework.

Policy LC3: Exception Sites for Affordable Housing

1. Development proposals for affordable housing which would be contrary to Policy SS9 (Development in the Countryside), and for limited affordable housing within the Green Belt will be permitted where:
 - a. They would provide affordable housing which would meet a proven need which is supported by an up to date local housing needs survey; and
 - b. It can be demonstrated that there are no suitable alternative development locations within the Settlement Development Limit; and
 - c. They are of a size, type, tenure, occupancy and cost suitable to meet identified local needs; and
 - d. They have a close association with the built up part of settlements within level 1 to 3 or neighbouring authority areas; and are in keeping with the form, size and character of the settlement, and local landscape setting; and
 - e. It can be demonstrated that the properties will be allocated to those who are in local housing need, and will remain affordable in perpetuity*; and
2. A subsidiary element of market housing of less than 50% of the total number of dwellings on the development scheme may be permitted on sites outside of the Green Belt, where it can be demonstrated that:
 - a. The market housing element is limited in proportion to that which is essential to enable the delivery of a viable affordable housing scheme to meet local needs, as demonstrated through a viability assessment; and
 - b. Proposals are of a size, type, tenure, occupancy and cost suitable to meet identified local needs and (where applicable) be designed to ensure the integration of affordable and market housing such that they differ only in terms of tenure, i.e. not design, type or size.

**This applies to all types of affordable housing, unless specifically exempted by the National Planning Policy Framework.*

Type and Mix of Housing

- 5.66 There is a need for a mix of homes of different types and tenures to meet the requirements of a range of household sizes, ages, and incomes across the District. There may also be an over or under supply of a particular house type in an area.
- 5.67 National policy is that local authorities should deliver a wide choice of high quality homes, widen opportunities for home ownership, and create sustainable, inclusive and mixed communities.

Mix of Housing

- 5.68 The joint Strategic Housing Market Assessment update (SHMA) identifies the need for specific types of housing and makes recommendations in relation to the mix of housing. It identifies that the key issue to buying a home in the Housing Market Area is about access to capital (eg for deposits, stamp duty, legal costs) as well as potentially some mortgage restrictions (eg where employment is temporary).

- 5.69 Although this Local Plan has been examined in light of the 2012 NPPF, the SHMA looked to foresee some of the requirements of the 2019 NPPF in relation to the provision of 10% of new housing for affordable home ownership¹⁷. In this situation, the SHMA analysis would suggest that shared ownership is the most appropriate option in the Housing Market Area. This is due to the lower deposit requirements and lower overall costs. However, the implications of securing a proportion of affordable housing as home ownership for scheme viability has not been tested through the Whole Plan Viability Assessment and it is anticipated that a future Plan Review will address this. In addition to the 10% of affordable home ownership, the Council would seek to provide additional rented housing, as this is cheaper than that available in the open market. The SHMA analysis does not suggest that there would be much difference between the cost to the occupant of either social or affordable rented housing. The actual tenure choice could possibly be determined by the availability of funding.
- 5.70 The SHMA recommends the following size mix for market housing, affordable home ownership and affordable rented housing.

Table 5.1: Size Mix for New Housing

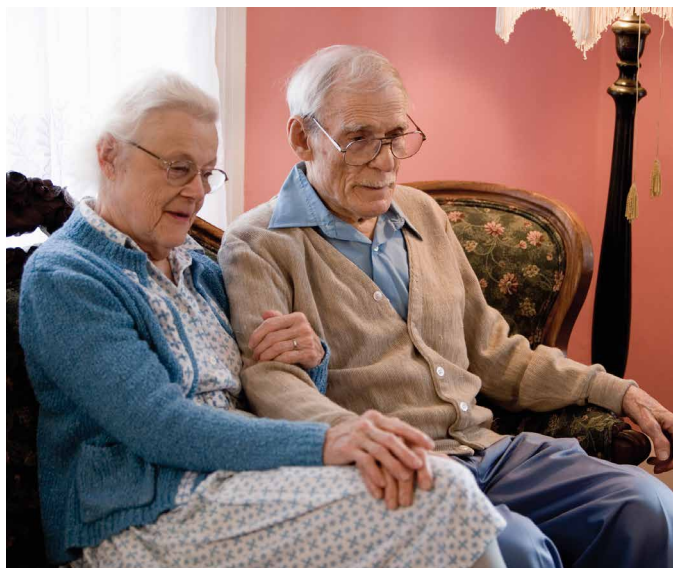
Bedrooms	Market Housing	Affordable home ownership	Affordable rented housing
1 bedroom	0-5%	10-15%	25-30%
2 bedrooms	30%	40-45%	45%
3 bedrooms	50%	35-40%	20%
4 bedrooms	15-20%	5-10%	5-10%

- 5.71 It should be noted that these figures are indicators against which delivery is monitored rather than a target for each individual site. On some sites, it will not be appropriate to be prescriptive on the housing composition for a single scheme, particularly on smaller sites where it may be impractical, or where there are specific physical site constraints that may limit the range of housing that is possible, or where there may be market demand or viability issues. Such issues will always be considered and explored in negotiation with developers using the latest information from housing need studies as a basis.
- 5.72 In cases where mobile homes, residential caravans and chalets are occupied as a main residence, it will be subject to the same planning considerations as conventional housing. These dwellings require essentially the same range of services and utilities for their proper functioning as conventional housing. As a result, planning applications for this type of accommodation will be judged against the same Local Plan policies as applications for conventional dwellings in similar locations.

¹⁷ As suggested in the 2017 Housing White Paper.

Specialist Housing

5.73 The District has an ageing population, with large increases predicted in the population of over 65 years and particularly those over 85 years to 2035, with the total number of people aged 65 and over expected to increase by 40.6%. The number of people with dementia and mobility problems is expected to increase significantly in the future as a result of the growing older population. There is a projected 86% rise in the number of people with dementia along with a 65% increase in the number with mobility problems up to 2035. Furthermore, the number of people with a long-term health problem or disability is expected to rise by 20%.



5.74 Given this ageing population and higher levels of disability and health problems amongst older people, there is likely to be an increased need for specialist housing options for older people. Within the overall housing need, the SHMA identifies a need of 61 units per annum for the District, and a suggested broad tenure split of 40% rented housing (affordable housing) and 60% in the market. The SHMA further identifies a need for 23 registered care bedspaces per annum.

5.75 The Council will seek to ensure that the housing needs of older people and people with disabilities are met, across tenure, and that these groups are not restricted in their choice of housing. This can include level access dwellings, sheltered housing or extra care schemes, nursing homes and residential facilities. Due to the high need for specialist housing for older people, the Council would, as an exception, allow for specialist housing in countryside locations. Proposals for specialist housing which would not meet any of the categories set out in Policy SS9 would be allowed if they meet the criteria in Policy LC4(2).

Accessible and Adaptable homes

5.76 Many older people, or people with disabilities, wish to be cared for in their own homes. This is increasingly made possible, particularly with the development of assistive technology such as telecare, use of appropriate aids or adaptations to the dwellings and new models of housing related care and/or support services. In order to support this further, the Council



encourages all new dwellings to be made accessible and adaptable. For development proposals of 10 or more dwellings, the council expects 20% of all homes to be accessible and adaptable by meeting requirement M4(2) of the Building Regulations, unless viability evidence indicates it is not possible.

- 5.77 The Council will also be sympathetic to households needing to extend or adapt their existing homes in order to care for older relatives, where any related impacts are acceptable.

Self and Custom Build Homes

- 5.78 The Council is keen to encourage self and custom build development within the District. The Self-Build and Custom Housebuilding Act 2015 (as amended by the Housing and Planning Act 2016) defines self-build and custom housebuilding as the building or completion by individuals, associations

of individuals or persons working for them. These individuals or groups of individuals should be directly involved in the design process of their house, rather than decisions being made for them.

- 5.79 The Council has set up a register of individuals and associations who are looking for serviced plots of land in the district on which to build their own homes. At August 2017, only 7 people expressed an interest in this type of house building in North East Derbyshire. As the register has only recently been set up (April 2016), the demand information shown by it should be treated with some caution. It is expected that most new delivery would be on small windfall sites. However, the Council also encourages developers of larger schemes to designate parts of these as plots available for self and custom build.



Policy LC4: Type and Mix of Housing

Mix of housing

1. Development proposals for new housing should seek to ensure an appropriate mix of dwelling types, tenures and sizes, taking account of existing imbalances in the housing stock, site characteristics, and viability and market considerations.

Specialist Housing

2. The Council will support the provision of housing for older people and specialist housing provision, across all tenures, including level access dwellings, sheltered housing or extra care schemes, nursing homes and residential facilities, in appropriate locations, close to services and facilities. Development proposals for specialist housing in the countryside will be permitted where there is an identified need and where they have a close association with the built up part of settlements within levels 1 to 3 of the settlement hierarchy or neighbouring authority areas; and are modest in scale, in keeping with the form and character of the settlement, and local landscape setting.

Accessible and Adaptable Homes

3. Development proposals for 10 or more dwellings should provide 20% accessible and adaptable dwellings. These accessible and adaptable dwellings should meet requirement M4(2) of the Building Regulations 2015 or any subsequent government standard.

Self and Custom Build Homes

4. The development of self and custom build dwellings will be encouraged, in line with Council's Self and Custom Build Register.

Residential Extensions

5.80 Additional space created by an extension to a dwelling and the erection or alteration to outbuildings and other structures, are recognised as acceptable means of meeting changes in household space requirements. However, extensions can also have a significant impact on the neighbours' enjoyment of their property, as well as having an impact on character and appearance of the area.

5.81 Extensions should be properly integrated with the existing dwelling and respect the character of neighbouring properties and the street scene in general, whilst safeguarding the privacy and amenity of neighbouring properties.

5.82 In some instances, additional accommodation is required for a dependant person to enable them to live alongside a carer. This can take the form of an extension to the carer's dwelling, the conversion of a suitable outbuilding or the erection of a separate self-contained unit of accommodation. All the normal policy provisions will apply to all applications for ancillary accommodation. However, standards of privacy and amenity may be relaxed in relation to the main dwelling, but not in relation to neighbouring properties. In such circumstances the occupation of the accommodation will be tied by condition to the occupation of the main dwelling.

Policy LC5: Residential Extensions

1. Extensions and alterations to dwellings or outbuildings which are ancillary to the main residential use, will be permitted provided that the proposals:
 - a. Respect the scale, proportions, materials and overall design and character of the existing property;
 - b. Do not harm the street scene or local area, including the loss of characteristic boundary features and landscaping;
 - c. Avoid significant loss of privacy and amenity for the residents of neighbouring properties; and
 - d. Do not significantly and demonstrably harm highway safety.
2. Outside Settlement Development Limits, proposals which either individually or cumulatively involve a significant change in the scale and character of the original dwelling will be assessed as a proposal for a new dwelling.

Agricultural, Forestry, and other Occupational Dwellings in the Countryside

- 5.83 Much of the district is rural in character. In many instances it will be possible for workers in agricultural and land-based occupations to live in a town or village near to their business location. However, occasionally the nature of agricultural and other rural businesses make it essential for someone to live on, or in close proximity to the business.
- 5.84 Such dwellings should be commensurate with the needs of the holding and not the person requiring the accommodation. Unusually large dwellings in relation to the needs of the unit, or expensive construction in relation to the income it can sustain, will not be permitted.

- 5.85 Where a new dwelling is permitted, this will be the subject of a condition ensuring the occupation will be limited to a person solely or mainly working, or last working in the locality in agriculture, horticulture, forestry, equestrian activities or other rural business (or a surviving partner of such a person, and any resident dependents).



Policy LC6: Agricultural, Forestry and Other Occupational Dwellings in the Countryside

1. Planning permission for a new dwelling in the countryside based upon the essential needs of rural businesses shall be permitted where all of the following criteria are met:
 - a. An independent appraisal is submitted with the application demonstrating that there is a functional need for the proposed dwelling which cannot be met by existing suitable accommodation available in the area;
 - b. The size of the proposed dwelling is appropriate to its functional need;
 - c. A financial test is submitted to demonstrate the viability of the business proposed or as proposed to be expanded;
 - d. The dwelling cannot be provided by adapting or converting an existing building on the holding;
 - e. The proposed dwelling is located on the holding;
 - f. The proposed dwelling does not involve replacing a dwelling disposed of as general market housing;
 - g. The design of the proposed dwelling is in keeping with the landscape character type and appearance of the countryside; and
 - h. Occupancy is limited by way of a planning condition or obligation.
2. Any proposal for an occupational dwelling shall be subject to planning obligations to tie the dwelling to the adjacent land and buildings to prevent them being sold separately.

5.86 In order to retain the property for its intended use, a restrictive condition will be included on any planning approval for a dwelling allowed under Policy LC6: Agricultural, Forestry and Other Occupational Dwellings in the Countryside limiting its occupation to a person solely or mainly, or last working in agriculture, forestry or a rural enterprise.

5.87 However, it is accepted that there will be circumstances where these dwellings are no longer required for the purpose for which they were originally intended. Any application to remove a restrictive occupancy condition for any dwelling in the countryside will need to demonstrate that the need

for which the dwelling was approved originally, no longer exists. Policy LC7 below sets out the criteria the Council will apply to any application to remove a restrictive condition to ensure that such dwellings can remain available. An applicant would be expected to appropriately market the dwelling for a reasonable period at a realistic market price for an agricultural tied dwelling to establish whether it could meet the existing functional needs of another local farm or rural business. Evidence demonstrating how this requirement has been investigated will need to be included to support any application to vary or remove a restrictive occupancy condition.

Policy LC7: Removal of Agricultural and Other Occupancy Conditions

Planning permission for the removal of a restrictive occupancy condition for an agricultural, forestry or other similar worker on a dwelling will only be given where it can be evidentially shown:

- a. That there is no longer a continued need for the property on the holding or for the business;
- b. There is no long term need for a dwelling with restricted occupancy to serve a need in the locality;
- c. The property has been marketed locally for an appropriate period (minimum 12 months) at an appropriate price and evidence of appropriate marketing is demonstrated.

Traveller Sites

- 5.88 National Policy, 'Planning Policy for Traveller Sites' (PPTS) aims to ensure that local authorities increase the number of sites in suitable locations in their plan making; principally to address under provision, but also with the intention of reducing unauthorised encampments, and tensions between the settled community and traveller communities.
- 5.89 Local Plans need to provide for the likely permanent and transit site accommodation needs of travellers in their area, working collaboratively with neighbouring authorities. In producing the Plan a local authority should identify a five year supply of deliverable sites and a six to ten year supply of developable sites. The Local Plan also should include fair, realistic and inclusive policies.
- 5.90 The estimated need for Gypsies, Travellers, and Travelling Showpeople in North East Derbyshire is set out in the Gypsy and Traveller Accommodation

Assessment (GTAA)¹⁸, a study prepared jointly with neighbouring local authorities. It sets out a requirement for 15 additional pitches between 2014-2034; of these, 6 will be needed between 2014-2019, with 3 for each five-year period to 2034. The evidence recommends smaller, family-sized sites with 3 to 4 pitches¹⁹ to accommodate single or extended family groupings with good access to the strategic road network, services and facilities.

Allocation of Traveller Sites

- 5.91 Land ownership and owners' intentions are critical to identifying deliverable sites. Experience in the District and feedback from the Derbyshire Gypsy Liaison Group (DGLG) confirm that potential, viable and available traveller sites are generally identified from within the traveller community or on public land. The viability of site development is also problematic without subsidy or a commitment from the land owner. For these reasons the pool of potential sites is limited.

¹⁸ Derby, Derbyshire, Peak District National Park Authority and East Staffordshire Gypsy and Traveller Accommodation Assessment 2014, Final Report, June 2015.

¹⁹ GTAA pitch definition: A pitch size of at least 500sqm would accommodate the following on-pitch facilities: hard standing for 1 touring/mobile caravan and 1 static caravan; 2 car parking spaces; 1 amenity block; Hard standing for storage shed and drying; garden/amenity area.

5.92 The Council in consultation with the Derbyshire Gypsy Liaison Group (DGLG) has explored the suitability of potential sites and general locations from the traveller community's perspective. Of the sites subjected to detailed assessment, some were put forward by the traveller community and others were identified following a review of Council-owned land (including Derbyshire County Council). In addition, opportunities to increase capacity at or adjoining existing Traveller sites have been investigated.

5.93 Policy LC8 of the Plan allocates two traveller sites, a brief description of these sites is given below.

The Old Potato Store, Dark Lane, Calow:

5.94 This site is located to the south of Calow and is expected to deliver 2 pitches. The allocation would be an extension to the existing traveller site at Dark Lane and is expected to be developed within the first five years after adoption of the Local Plan. The following mitigation measures will need to be addressed through the planning application process:

- Measures to identify and address the risk of surface water flooding from the site;
- Additional screening along site boundaries is required to minimise impacts on adjoining residential properties;
- No commercial activities on the site to minimise impacts on adjoining residential properties;
- Careful design and layout of pitches due to the presence of high voltage overhead cables;

- Improved visibility splays at the access; and
- A Phase 1 contaminated land assessment should be undertaken due to potential risks arising from any contamination that may be present.

Dark Lane, North Wingfield:

5.95 The site is situated to the east of North Wingfield in close proximity to the edge of the settlement. The site lies opposite an existing traveller site and is expected to deliver 3 pitches. It is expected to be developed within the first five years after adoption of the Local Plan. The following mitigation measures will need to be addressed through the planning application process:

- Improvements to the existing access track including the provision of passing places;
- Surface water runoff from the site to be addressed to protect a brook to the east of the site;
- A bat assessment to be undertaken if the existing buildings are to be demolished or renovated;
- If the hedgerows bordering the site are likely to be adversely affected a survey should be undertaken and measures identified to minimise any adverse impact;
- A Phase 1 extended habitat survey may be required to ensure that no protected species or habitats are affected; and
- A Phase 1 contaminated land assessment should be undertaken due to potential risks arising from any contamination that may be present.

Policy LC8: Allocation of Traveller Sites

The following sites are allocated for Traveller Sites as shown on the Policies Map to provide towards the requirement as established in the current Gypsy and Traveller Accommodation Assessment:

Site:	Expected pitch provision:
a. The Old Potato Store, Dark Lane, Calow	2
b. Dark Lane, North Wingfield	3

Provision for Traveller Sites

- 5.96 Policy LC8 of the Plan allocates two traveller sites with a combined capacity for 5 pitches. Whilst this does not meet the full requirement for traveller sites established by the GTAA, there is a recognition of the difficulties in identifying specific deliverable sites in National Policy Guidance. The Council will also therefore, rely on a positive criteria based policy as set out in Policy LC9: 'Provision for Traveller Sites' to meet the full identified needs.
- 5.97 Where development proposals for traveller sites are in countryside locations, i.e. outside the Settlement Development Limits, Policy LC9 should be read in conjunction with Policy SS9: Development in the Countryside, which clarifies that such uses are acceptable in principle. This however, is provided they are not located in the open countryside away from an existing settlement or in Green Belt locations as indicated in the PPTS (paragraphs 24 & 25) and addressed in paragraph 3 of Policy SS9.
- 5.98 In terms of accessibility to local amenities and services including schools, shops, health services, public transport and other community facilities, the Council considers that the quality of the surrounding road network plays an important role. The Council will consider development proposals to be 'reasonably accessible' where the existing road network is appropriate for caravans in terms of road width and for walkers and cyclists in terms of pavements, road lighting, etc.
- 5.99 The effect of proposals on the amenity of occupiers of dwellings in the vicinity of the site will be addressed through Policy SDC12: High Quality Design and Place Making.
- 5.100 In assessing a development proposal, the Council will also consider the location of a new or extended traveller site in relation to the settled community. Regardless of the proposal's location within or outside a Settlement (with or without a Settlement Development Limit), the scale of the proposal in terms of area will be considered in relation to the nearest settled community or surrounding built-up area.
- 5.101 Proposals for traveller provision will need to be considered against other policies in the plan, including those aimed at achieving sustainable patterns and forms of development (Chapter 8).
- 5.102 Where traveller sites are to be allocated or permission is sought for new or extended sites consideration will be given to measures to mitigate the impact of the proposal in order to overcome any issues that might otherwise prevent that use of the site. This process may include consultation with the travelling community, discussion with applicants and community representatives and solutions may include legal agreements (for example relating to access arrangements or limits on activities).

Policy LC9: Provision for Traveller Sites

1. The Council will seek to ensure the provision of further sufficient pitches within the District to meet the full accommodation needs of gypsies and travellers as assessed through the current Gypsy and Traveller Accommodation Assessment (or its replacement).
2. Development proposals will be granted for sites for travellers including gypsies and travelling showpeople where the proposed development:
 - a. Is reasonably accessible to local amenities and services including schools, shops, health services, public transport and other community facilities;
 - b. Provides adequate space for on-site facilities, including storage, in particular for equipment for Travelling Showpeople and, where appropriate, mixed use yards to allow for on-site business use; and
 - c. Is reasonable in scale in relation to the nearest settled community or surrounding built-up area.

6. Working Communities and Economic Development

Introduction

- 6.1 The Local Plan aims to support the District's economy, an important contributor to the sustainable development of the District and the prosperity and quality of life of its residents. Economic development can help increase employment opportunities, regenerate communities and economic investment. As well as identifying new locations for employment and the means of protecting existing employment of all types, the Plan also supports the District's town centres and tourism economy. Evidence for this chapter of the Plan has been provided primarily by reports commissioned by the Council from 2013 through to 2017²⁰ as well as papers produced by the Council²¹.
- 6.2 The Plan sets a target of 43 hectares (ha) of employment land including that within the strategic sites identified in Chapter 4: Spatial Strategy. Existing employment sites will be protected for such uses, with some safeguarded principally for B2, B8 and E(g) uses under Policy WC2, reflecting the importance of the industrial sector to the District's economy. In general non-employment uses on protected employment sites will not be allowed. Town centre uses will be encouraged in town centres, and elsewhere only where it would support the economic, community, and social role of town centres. In rural areas policies will support small-scale development aimed at diversification of the economy. It is also recognised that development can benefit the local labour market

and economy, by raising skills and supporting the local workforce. Measures can be attached to planning permissions through local labour agreements to help deliver a wide range assistance, including vocational opportunities and apprenticeships, work placements and childcare. Policy SS1 allows for such agreements in support of the local economy.

Background

- 6.3 North East Derbyshire is part of the Sheffield City Region which has strong links with the north of the District, and the D2N2 economic area covering Derbyshire and Nottinghamshire. The Strategic Growth Plans of the LEPs (submitted to Government in 2014) provide the strategic context for the Council's own Growth Strategy, and for the Local Plan. North East Derbyshire also surrounds Chesterfield, which effectively acts as a commercial centre to the District.
- 6.4 There have been significant changes to the local economy and business base following the decline of traditional engineering and mining-related activities in the 1980s, although the District's economy still contains significant manufacturing, construction and agricultural sectors. There has been growth in the business, professional services and the public sector (Education and Health), but starting from a low base. Thus, overall, the percentage of North East Derbyshire's workforce based in these sectors is still relatively low.

²⁰ These are the 2008 Employment Land Review, the 2013 and 2017 Employment Land Update and the 2014 and 2017 Employment Sites Review.

²¹ Employment Report and Employment Land Assessment (NEDDC) 2017.

- 6.5 North East Derbyshire District lost a net total of 500 workforce jobs in the 15 years to 2015, made up of losses in the B2 industrial sectors, public administration and construction, but with growth elsewhere, including land transport, storage and administration & professional services. However this is in a local economy with a relatively low base of employment. The significance of local workplace jobs is tempered by the low job density figure²² which reflects that many residents take up jobs in nearby employment centres such as Sheffield, Chesterfield and the M1 corridor.
- 6.6 Take-up of employment land since 1991 has totalled 53 ha but tailed off significantly between 2008 & 2013, recovering since then, with around 7.5 ha developed in the past 3 years. Almost all of the take-up since 2008 has been at Coney Green, Clay Cross. This is all in the context of earlier significant losses of large industrial and mining sites recognised in the allocations made in the 2005 Local Plan.
- 6.7 In terms of commercial demand there are strong levels of demand particularly driven by local SMEs looking for existing new and secondary premises to purchase or lease, rather than development plots. A shortage in supply is keeping vacancy levels low, despite companies ‘making do’ in poor quality secondary stock. The picture for office space is more mixed, though again there is poor quality secondary office space.
- 6.8 In terms of policy and strategy the District’s Growth Strategy & Action Plan (2014)(a)²³ and its Housing and Economic Development Strategy 2015-2020 (b) together aim to support growth in the District. Relevant objectives from these strategies include:
- Developing and promoting the districts as competitive business locations (a);
 - Work towards maintaining an appropriate supply of suitably located employment land and premises (a).
 - Unlocking the potential of major employment and housing sites (b);
 - Town centres: realise the vitality and viability of town centres (b);
 - Supporting the rural economy, including tourism (b).
- 6.9 These strategies identify major employment sites and locations for employment along the M1 Strategic Growth Corridor, the A61 Growth Corridor and at:
- Callywhite Lane, Dronfield
 - Former Biwaters Site, Clay Cross
 - The Avenue site, Wingerworth
 - Markham Vale
 - Former Coalite Site
- 6.10 The Local Plan will therefore need to provide for economic development that meets the objectives of the strategies by identifying sufficient land for anticipated growth in attractive and sustainable locations; and protecting sites in order to maintain and improve the attractiveness of the Council’s employment land portfolio. Recognising the advice in the NPPF a review of land used and allocated for employment has been carried out through an Employment Land Availability Assessment, informed by the 2014 & 2017 Employment Sites Review.

²² North East Derbyshire’s job density is 0.50, compared to 0.75 for the East Midlands.

²³ Joint with Bolsover District Council.

Economic Growth and Employment Land Provision

- 6.11 As described in Chapter 4 the Local Plan and its employment land provision will accommodate growth in line with wider strategies providing more positive support and not constraining economic growth but delivering regeneration in the District. The Plan accounts for the Council's Economic Development Strategy and also acknowledges the wider market, City-region and HMA context, wherein the District serves other nearby employment centres.
- 6.12 The 2017 Employment Land Update assessed likely future growth reflecting the context of the District and sub-region beyond it, including that of the LEPS. This is considered to be a realistic and reasonable forecast and the most appropriate for the Plan to adopt. The forecast identified several core growth sectors to be promoted and supported in the years ahead in North East Derbyshire. These are Digital and Creative Industries, Advanced Manufacturing, Food and Drink, Construction and Environmental Industries, and finally Social Enterprises. By uplifting growth in these sectors a 'regeneration' forecast was prepared as the one most closely reflecting the District's strategy and a reasonable assessment of future growth. This has indicated growth of around 3,000 jobs. Based on this forecasting the 2017 Update Report identified a likely future net increase in B1 (now E(g)), B2 & B8 employment land of 18ha (2014-34).
- 6.13 An employment land provision, of around 42.66 ha was recommended by the 2017 Employment Land Update. This would allow for the significant (20ha) anticipated losses of existing employment land but still provide for this overall employment land increase.

It would also allow for a small flexibility margin of 3.9ha which is equivalent to 2 year's supply. This figure reflects the forecast related to the 'Regeneration' scenario²⁴. Chapter 4 describes how this level of employment land is aligned with the housing provision in the Plan. This recommended figure (rounded to 43 ha) is being used as the starting point for establishing the employment land provision.

- 6.14 Take-up for the period 2014-17 has provided an increase of 3.49 ha and losses of 0.81 ha, giving a net change of 2.68 ha.

Available Employment Land

- 6.15 The Clay Cross/Holmewood Corridor is currently the main location for industrial and commercial development land in the South & East. Markham Vale is the most significant sub-regional employment location, of which the employment land allocation within the District (approx. 7ha) remains mostly undeveloped, whereas outside the District, in Chesterfield and Bolsover, almost all of the available land has been developed. Dronfield and Killamarsh are the main focus for employment (E(g) & B2) in the North, but with limited land immediately available.

Providing for losses in the Provision & Protection of Employment Land

- 6.16 The most significant element of the recommended range of employment land requirement in the District is to address anticipated losses. The 2017 update estimates a losses figure of approximately 20 ha for the 20 year plan period. This is based on previous trends, and as the report states, this reflects low rates of losses in recent

²⁴ Other scenarios are presented in the Report to provide a context/reality check.

years (compared to the previous report). The Employment Land Update suggests that “the Council should also consider the scope to which existing legacy estates and sites in the District are no longer productive for employment use and could be better placed to support non B-class employment uses in the future.”²⁵

6.17 The employment land provision also has regard to the guidance in the NPPF to “avoid the long term protection of sites allocated for employment use where there is no reasonable prospect of a site being used for that purpose.” Consequently land allocations have been reviewed and certain sites that could fulfil the NPPF description, or with limited value to the land portfolio have been considered with regard to their future employment use.

6.18 As a result some sites are recognised as having a variety of development issues relating to access, flood risk, marketability, etc and while they are currently retained as employment allocations, development for B2, B8 or E(g) uses over the Plan period is uncertain. While not providing for the loss of any specific sites, it is recognised that better quality, more sustainable replacement sites may be considered in any future review of the Plan provision, with undeveloped sites appropriate for de-allocation. This is not considered appropriate at the present time as no suitable sites have presented themselves through the Assessment of prospective employment land.²⁶

6.19 Employment opportunities are not confined to B2, B8 and E(g) uses, and employment growth is increasingly provided by other commercial and public sectors such as leisure and the health services. This wider definition of economic development was reflected in

the NPPF and National Planning Policy Guidance in 2012.²⁷ The 2005 Local Plan pre-dated this change and policies limited such uses on employment sites. In adjoining districts more recent Local Plans reflect the National Planning Policy Guidance relating to the increasing diversity of employment generating uses.

6.20 The types of location sought after by different sectors, including each non-B/E(g) use class will differ according to the needs of each use. It is possible that such uses will seek to locate on either allocated employment land, or to recycle sites within existing employment areas. The Plan aims to adopt a positive approach to sui generis and other non-B/E(g) use class job-creating uses on employment sites provided the use proposed is compatible with the predominant uses on the site, and it is appropriate in terms of its scale, nature and form. Such employment uses would be considered under Policy WC3 (General Employment Areas).

6.21 In light of the above it is not possible to predict where or how much loss of employment land to non-employment uses will occur. The Plan, recognises this, and guided by the Employment Land Update, makes provision accordingly. Fewer losses than anticipated may occur in future, or there may be significantly more losses than anticipated. In addition, suitable land, currently not identified, may come forward in strategic and sustainable locations to improve the District’s employment land portfolio. Any of these situations could trigger a review of employment provision and policy, and this situation will be monitored.

²⁵ 2017 Employment Land Update para 6.13 (pt).

²⁶ 2017 Employment Land Assessment, NE-Derbyshire.

²⁷ Paragraph: 033 Reference ID: 2a-033-20140306 and NPPF Glossary.

- 6.22 The employment land provision target of 43ha set out in Policy SS2 would allow for up to 20 ha of losses of B2, B8 and E(g) uses, as estimated in the Employment Land Review Update in order to achieve the anticipated net increase in (B2, B8 and E(g)) employment land over the Plan period of 18 ha.

Employment Land Provision

- 6.23 To meet the future additional provision for office and industrial space in North East Derbyshire, the Council is guided by the employment studies referred to above. These reports have identified issues with poor quality stock and an imbalance in the location of the portfolio of sites, with further land needed in areas of stronger demand (such as in closer proximity to the M1 junction); and to cater for the continued demand for B2 floorspace (particularly from indigenous companies).
- 6.24 The NPPF and Planning Practice Guidance suggest a policy approach to positively plan to support the District's employment needs so that the local economy is not unduly constrained over the plan period, but also recognises the issues around land supply and competing pressures on available development sites. The 2017 reports have also highlighted the physical constraints of the District's potential land supply which would preclude a step-change in delivery.²⁸
- 6.25 The Employment Land Update refers to both indigenous growth needs as well as a degree of footloose demand within a wider sub-regional market. It suggests that the Plan needs to consider how the delivery of B-class employment land (including former B1 uses now within Class E(g)) can be prioritised in

particular areas and for particular uses, drawing upon the growth opportunities provided by the principal employment centres with good access to the strategic road network. These are Markham Vale, including the former Coalite cross-boundary site, plus the strategic sites of the Avenue and the former Biwater site.²⁹

- 6.26 Additional employment sites, mostly brought forward through consultation, have been assessed by the Council. Additional employment sites have been assessed on their availability, suitability and deliverability through the Employment Land Availability Assessment, and as part of the Sustainability Appraisal. None have been demonstrated to meet the sustainability requirements of the Plan. Further information on the process can be found in the Employment Land Assessment.³⁰
- 6.27 The Plan allocations provide for 35.74 ha of employment land on the sites described at Table 6.1. A proportion of this provision is on the strategic sites set out in Chapter 4. The strategic sites in particular will provide a significant improvement to the quality of the employment land portfolio of the District. A number of sites are within existing partially developed employment areas, the most significant of which is Coney Green, Clay Cross. There is also further potential employment supply associated with the Dronfield Regeneration Area (Policy WC1) which is safeguarded for long-term employment provision in the North of the District; and the Coalite Priority Regeneration Area (Policy SS6) which has potential for the delivery of significant levels of employment land. However, these sites are not included in the supply within Table 6.1 due to uncertainties over delivery.

²⁸ 2017 Employment Land Update.

²⁹ 2017 Employment Land Update para 6.13 (pt).

³⁰ 2017 Employment Land Assessment; NE-Derbyshire.

6.28 The amount of employment land allocated in Policy WC2 and set out in Table 6.1 amounts to 35.74ha. Taking account of 2.68ha net take-up from 2014-17 there is a shortfall of 4.58ha against the Plan target of 43ha. As stated above, the potential that further

land may come forward adds some flexibility to supply. Consequently the Council will undertake robust monitoring of employment land supply and losses on an annual basis to ensure sufficient land is available to meet identified needs.

Table 6.1: Local Plan Employment Land Availability

Existing Employment Sites and Strategic Sites	Sites	Area (Ha)
Existing Employment Sites and allocations with development land remaining	Coney Green, Clay Cross	9.03
	Derby Rd, Upper Mantle Close, Clay Cross	0.89
	Westthorpe Business Centre, Killamarsh	0.35
	Land adj Norwood Industrial Estate	5.40
	Markham Vale (West of M1), Long Duckmanton	4.00
	Markham Vale (Part former Coalite land) Long Duckmanton	1.25
	Renishaw Industrial Estate	2.50
	Hepthorne Lane, Tupton	3.32
Sub-Total		26.74
Strategic Sites	The Avenue, Wingerworth	4.00
	Former Biwaters Site, Clay Cross	5.00
Sub-Total		9.00
Total Provision		35.74

6.29 The following employment land was considered for allocation and retention:

- The Strategic Sites at the Avenue and the Biwaters Site are described in Chapter 4.
- Coney Green, Clay Cross: Remaining plots from a large, successful mixed employment area. Recent development in this location constitutes the whole of the District's take-up, 2009-16.
- Derby Rd, Upper Mantle Close, Clay Cross: Lying to the North of Clay Cross town centre, this plot remains undeveloped within a small estate

containing a broad mix of industrial uses.

- Westthorpe Business Park, Killamarsh: The remaining single plot of a Derbyshire CC employment estate.
- Markham Vale (Part former Coalite): This site is an area remaining from the large cross boundary Markham Vale Economic Growth Zone, covered by an outline planning permission. It is partly developed.
- Markham Vale (South-West of M1J29a): This site is an area remaining from the large cross

boundary Markham Vale Economic Growth Zone, covered by an outline planning permission. It is partly developed.

- Renishaw Industrial Estate (Part): Two parts of a long-established employment area. The Western part (known also as Renishaw Business Park or Ravenshorpe Commercial Park) contains small-scale workshop units, and includes permissions for non-B employment uses. The larger employment area was submitted as a potential housing site (ECK/902) but is considered unsuitable.
- Land South of Norwood Industrial Estate: This is the amount of employment land remaining from a 2005 Plan mixed-use allocation, partly developed with housing. A satisfactory access cannot easily be achieved for the remainder of the land. The development of the site may also impinge on education and recreation land.
- Hepthorne Lane, Tupton: This remaining section of a former railway sidings adjoins North Wingfield but lies mostly within a flood plain & has some access issues. Although suitable employment uses would be acceptable prospects for development are limited.
- Former Callywhite Lane Extension, Dronfield: This is a long-standing allocation from the 2005 Adopted Plan, the northern end of which has been partly developed. Despite lack of progress on this site it represents an important extension to a valuable industrial area and a potential significant business park opportunity in the North Sub-Area. Issues over access in particular need to be resolved and were, until recently associated with the electrification of the East Midlands Main Line. As this work through Dronfield is now associated with the longer term HS2 project, such issues will be resolved much later. The development of the site will have to account for designated flood risk areas associated with the River Drone which runs through the area. Development is only likely towards or beyond the end of the Plan period. The land is thus safeguarded under Policy WC1 as a regeneration area and it is expected to contribute around 6ha of land in employment use. In view of the nature of prospective development, any future employment use on the land will be protected under Policy WC3 (General Employment Areas). Consequently this land is not included in the Plan's employment land supply at Table 6.1.

Policy WC1: Dronfield Regeneration Area

1. Land shown on the Policies Map for the extension of Callywhite Lane Industrial Estate, Dronfield is safeguarded as a Regeneration Area within the Local Plan. As such, the land will be safeguarded for development in order to deliver the comprehensive development of the area. It will be protected for future employment use under Policy WC3 (General Employment Areas).
2. Any development area will take account of impact and vulnerability to flood risk in relation to designated flood risk areas in the vicinity.

Protection of Principal Employment Sites

- 6.30 Although future losses of employment land are accounted for in the overall employment land target set in Policy SS2 these losses must nevertheless be subject to some control. The Plan recognises that many existing sites provide an important contribution to the local and strategic portfolio of employment sites and should be retained.
- 6.31 The Plan seeks to secure and retain the sites identified for employment use. These areas, which are existing employment sites and allocations, have been identified as the most appropriate employment locations and will be safeguarded from potential redevelopment or change of use to a non-employment use, for example housing or retail. Certain sites, listed

under Policy WC2, are identified as being particularly important for the retention of the District's B-class employment base, either strategically, or locally for a particular settlement.

Ancillary Development on Employment Sites

- 6.32 The Council will support development proposals which are ancillary to, or support the economic viability of employment sites and the local economy. Therefore ancillary development including workplace nurseries and catering facilities, education and training facilities, and other sui-generis uses which create jobs will be supported. However care will be taken to ensure such development does not prejudice the operation of neighbouring employment activities and sites.

Policy WC2: Principal Employment Areas

1. The following sites as shown on the Policies Map are protected for general industrial uses (Use Class B2), storage and distribution uses (Use Class B8) and office, industrial and research and development uses (Use Class E(g)):

Clay Cross/Danesmoor

- CC/01: Coney Green Industrial Estate
- CC/02: Bridge Street Industrial Estate/Upper Mantle Close
- CC/03: Pilsley Road
- SS4: Former Biwaters Site

Corbriggs

- CO/01: Industrial Estate, Mansfield Road

Dronfield

- DR/01: Callywhite Lane Industrial Estate
- DR/02: Stubley Lane/Wreakes Lane Industrial Estate

Eckington

- EC/01: Rotherside Road

Holmewood

- HO/01: Holmewood Industrial Estate
- HO/02: Holmewood Industrial Park
- HO/03: Holmewood Business Park

Killamarsh

- KL/01: Norwood Industrial Estate
- KL/02: Rotherham Close
- KL/03: Westthorpe Fields, off Green Lane
- KL/04: Sheffield Road Industrial Area

Long Duckmanton

- LD/01: Markham Vale, NE of Chesterfield Road (part former Coalite works)
- SS5: Markham Vale

Renishaw

- RW/01: Renishaw Industrial Estate (Ravenshorn Commercial Park)

Temple Normanton

- TN/01: Temple Normanton Business Park

Wingerworth

- SS3: The Avenue

2. Within the above areas proposals for other employment generating uses (not falling within Use Classes B2, B8 and E(g)) will only be permitted where the proposed use:
 - a. Would be ancillary to the main use on site; and
 - b. Would not prejudice the future functioning or viability of employment uses on the site or nearby employment sites by reason of conflicting activities, access arrangements or movements of traffic or people.

General Employment Sites

- 6.33 Other sites currently in use are considered appropriate for employment uses using a broader definition, rather than to retain solely for B2, B8 or E(g) uses. This is for two main reasons; to be in line with Government Guidance and the NPPF, which introduced a wider definition of economic development, and accounting for

the Plan's Objectives to support the District and local economy. Therefore, redevelopment for other appropriate employment generating uses will be considered under Policy WC3. These uses are specifically to include care homes (if sufficient employment is provided) and traveller sites, where it is accepted that an element of employment is incorporated in the use of land.

6.34 Importantly, proposals for main town centre uses will need to support, rather than damage, the vitality and viability of the District's, and other nearby town centres. In this respect, the scale of the proposal and size of settlement,

and the market being served by the proposal would be considered. Planning decisions would therefore need to take account of policy WC4, Retail Hierarchy and Town Centre Uses.

Policy WC3: General Employment Areas

1. The following areas on the Policies Map are protected as General Employment Areas for employment uses³¹.

Clay Cross

- CC/04: Derby Rd (East & South)
- CC/05: West of Derby Road
- SS4: Former Biwaters Site*

Dronfield

- WC1: Dronfield Regeneration Area
- DR/03: Gunstones Bakery, Stubble Lane
- DR/04: Sheffield Road

Eckington

- EC/02: Littlemoor Business Park

Killamarsh

- KL/05: Land South of Norwood Industrial Estate

Morton

- MO/01: Morton Industrial Estate

Stonebroom

- ST/01: Stonebroom Industrial Estate

Tupton

- TU/01: Hepthorne Lane

Wingerworth

- SS3: The Avenue*

³¹ As defined in the Plan Glossary as Economic Development.

2. Within these General Employment Areas the Council will support development proposals for employment uses where:
 - a. They demonstrate that they will maintain or increase local employment opportunities and maximise opportunities for developing skills; or
 - b. The proposed use would be ancillary to, or will directly support the functioning of the application site, or an adjoining, related site for employment purposes.

In all cases proposals must not significantly prejudice the future functioning or viability of existing uses on the site or nearby employment sites by reason of conflicting activities, access arrangements or movements of traffic or people.
3. Proposals for Main Town Centre Uses on these sites will also be considered against policy WC4.
4. Development involving the full or partial loss of sites or buildings to a non-employment use within 'General Employment Areas' will only be permitted if the applicant can demonstrate that:
 - a. The land or building is no longer physically suitable for employment uses and there is no realistic prospect of re-use or redevelopment for such uses, this should include evidence that describes measures taken and explains how development problems that prohibit re-use for employment cannot be overcome; and
 - b. There is no demand for the building or redevelopment of the site by providing evidence of unsuccessful active marketing for employment use over a period of 2 years, including an advertising board placed in a visible location on the site and online marketing, a list of reasons as to why enquirers found the site unsuitable; and
 - c. The proposed use does not prejudice the future development of the viable existing uses on the site or nearby employment sites by reason of conflicting activities, access arrangements or movements of traffic or people.

*The precise areas of land set aside for general employment purposes on The Avenue and Former Biwaters Site are not identified by a boundary on the Policies Map, to allow for flexibility of layout.

Retail and Town Centres

- 6.35 Strong, vibrant town and local centres are vital to creating a thriving District. It is important to have a good retail offer in the District to reduce leakage of retail expenditure to shops outside of the District, whilst recognising the role of the District's centres within a wider network, including Sheffield and Chesterfield. The retail sector provides a plentiful supply of employment which needs to be utilised for the District's local economy.



- 6.36 The National Planning Policy Framework requires local authorities to quantify the need for additional retail development and then identify locations for such development by applying a sequential approach which prioritises town centre locations, in order to ensure the vitality and vibrancy of town centres.
- 6.37 A Retail and Centres Study for Chesterfield, Bolsover and North East Derbyshire was produced in 2018.³² This report has modelled future retail expenditure growth for the District up to 2021, 2026, 2031 and 2033 and the potential implications of new floorspace.
- 6.38 The Retail and Centres Study is important in developing policies and defining the limits for the town centres of Dronfield, Clay Cross, Eckington and Killamarsh. The study reveals capacity figures for the whole of the district; it states that for Convenience Goods³³ there would be a potential floorspace capacity of at least 2,000 sq. m up to 2,900 sq. m until the end of the plan period. However, for Comparison Goods there would be a negative floorspace capacity which ranges from -100 sq. m to -200 sq. m. In order to provide for additional capacity for convenience goods. To address this the study identifies the 'Bridge Street Triangle' in Clay Cross as the most suitable opportunity to deliver a retail-led development in the district. This area is bounded by the A61 to the west, Harris Way to the north-east and Eldon Street to the south. Extending the Town Centre into this area would help deliver a key priority of the Clay Cross Regeneration Framework as a modern retail and services area, including town centre uses, a combination of comparison goods retailers or a further foodstore.

Town Centre and Local Centre Boundaries

- 6.39 The town centre boundaries of the four main towns in the 2005 adopted Local Plan were re-assessed through the Retail Study and are to be amended following further detailed work by the Council. In all four town centres the study recommends that amended town centres should also serve as the primary shopping area and would not require separately designated primary and secondary frontages.
- 6.40 The Study indicates that Dronfield's town centre boundary should be significantly refined, on the basis that "Dronfield does not provide a compact or coherent centre". The study suggests contracting the town centre boundary to cover the proposed area from the Sainsbury's in the north-west, to the Forge Shopping Centre in the east. The town centre boundary is amended accordingly. The shopping parade along Sheffield Road/Chesterfield Road, as shown on the Policies Map is designated as a 'Local Centre'.
- 6.41 The Clay Cross town centre boundary is amended accordingly to include the Bridge Street Triangle in the north-west and the former Clay Cross Junior School and an undeveloped field next to it to the south.
- 6.42 Eckington's town centre boundary will be retained subject to minor amendments. Killamarsh's town centre boundary will be extended in the east to include the Community Campus with Killamarsh Sports Centre, the library and church.

³² Bolsover, Chesterfield and North East Derbyshire: Retail and Centres Study, January 2018.

³³ Superseded Planning Policy Statement PPS 5: Retailing and Town Centre defines 'Convenience Goods' broadly as 'food, drinks, tobacco, newspapers, magazines, cleaning materials, toilet articles.' 'Comparison Goods' are therefore 'Other goods not classified as convenience goods.'

Retail Development outside Centres

- 6.43 In line with the overall approach to support economic growth and sustainable communities, the Plan allows small scale retail and other town centre use development to serve the needs of local communities in locations

outside centres. Evidence set out in the Retail Study update has not identified any further retail centres, but has set out local thresholds for retail and leisure development, beyond which an impact assessment would be required to ensure that development is of a scale appropriate to its location.

Policy WC4: Retail Hierarchy and Town Centre Uses

Retail Hierarchy

1. The Council will support the following hierarchy of Towns, and Local Centres in the District:
 - a. Town Centres - Dronfield, Clay Cross, Eckington and Killamarsh.
 - b. Local Centre - Sheffield Road/Chesterfield Road, Dronfield

Development in Centres

2. To ensure the vibrancy and economic health of the District's centres, development will be permitted where it will:
 - a. Contribute to the diversity of leisure and cultural attractions;
 - b. Help to create an active, well used and safe evening environment, with acceptable impacts on residential amenity;
 - c. Help to address vacant, under-used or derelict buildings within centres; and
 - d. Contribute to an appropriate mix of licensed premises.
3. Proposals for retail and other town centre uses in the District's Centres should contribute to their vitality and viability and:
 - a. Be consistent in scale with the size and function of the centre; and
 - b. Safeguard the retail character and function of the centre.
4. Any quantitative expansion or new provision within the District's Centres should contribute to enhancing their public realm.

Development outside Centres

5. A sequential approach will be taken to assessing development proposals for the main town centre uses as defined in the NPPF, in line with the retail hierarchy set out in this policy and in accordance with the local thresholds for impact assessment.
6. Small scale retail and other town centre use developments, serving the day to day needs of local communities, will be permitted within Settlement Development Limits where they are below the local thresholds for impact assessment set out below.
7. The loss of shops and other services will be resisted, in line with Policy ID5 (Social Infrastructure).

continued

Local Thresholds for Impact Assessment

8. An impact assessment will be required for retail and leisure proposals in edge-of centre or out-of-centre locations which propose additional floorspace above the following thresholds:
- a. 200 m² (gross) for proposals within the catchment (500m) of the Local Centre defined above;
 - b. 280 m² (gross) for proposals within the catchment (500m) of the Town Centres defined above; and
 - c. 500 m² (gross) for proposals across the remainder of the District.

Tourism and Rural Employment

6.44 The Plan aims to support the District's role as a visitor/tourist destination, building on and adding to, the strength of existing attractions, townscapes and landscapes, encouraging the development of new visitor attractions and accommodation, capitalising on the District's role and location on the Peak Fringe. Sustainable rural employment and diversification will be supported in villages and within the countryside where this does not conflict with other local plan policies. Employment generating developments of a scale appropriate to a small settlement and / or rural surroundings will be supported in rural areas where the development or activities are related to farming, forestry and other activities which need a rural location. Proposals will also be supported where the business has no negative implications for the area and will help to support a sustainable rural economy and contribute to rural environmental or social regeneration. Proposals for employment development in the countryside other than for tourism will be considered under Policy SS9: Development in the Countryside; that policy and Policy SDC1: Re-use of Buildings in the Green Belt and

Countryside may also be apply to certain minor tourist developments.

- 6.45 A healthy tourism economy can help sustainable economic growth in the District, building on both North East Derbyshire's proud heritage and its location on the fringe of the Peak District. The visitor economy is a significant, growing and a resilient part of the District's economy, supporting around 1,800 jobs and with annual expenditure well in excess of £100m.³⁴ A strong tourism economy will help to support and maintain communities and community facilities, especially in rural areas, and maintain attractive environments.



³⁴ North East Derbyshire Housing & Economic Development Strategy 2015-2020.

- 6.46 The Local Enterprise Partnership strategies both give attention to growing the tourism economy. In particular the visitor economy is one of eight key sectors of the D2N2 Growth Plan. D2N2 is working on developing the visitor economy by increasing opportunities and markets. It is supporting 'Visit Peak District and Derbyshire' which has developed 6 aims within its own Growth Strategy.
- 6.47 The rural and tranquil nature of much of the District's countryside is an important asset for residents and visitors. Therefore, development within the countryside needs to be compatible with its location in order to protect the area's special character. It is important to ensure that all heritage and environmental assets are both protected and supported in appropriate ways to enable them to flourish. In particular, proposals should have regard to Policies in Chapter 8, Sustainable Development and Communities.
- 6.48 New tourist attractions will be directed to accessible and sustainable locations, particularly the main towns and larger settlements in order to expand the tourism offer in the District and encourage visitors to stay longer. Tourist development in settlements



Sutton Scarsdale Hall

- and on employment sites will be considered in the same way as other development, according to appropriate policies. Where it is appropriate, tourism development in less accessible locations will be resisted, except for small-scale accommodation, which should be focussed on the conversion of existing buildings and developments that contribute to rural diversification, enjoyment of the countryside, and access to heritage.
- 6.49 The Local Plan seeks to support sustainable rural tourism development which can be shown to benefit rural communities and businesses, and which respect the character of the countryside. Planning for tourism in rural areas of the District should make the most of the area's rural assets, enriching and enhancing them, rather than harming the very character, quality and beauty that makes them attractive to visitors and residents. This can be achieved by ensuring that developments and levels of visitor activity are not likely to significantly affect key assets, including protected sites and species, landscape character and historic buildings and conservation area.
- 6.50 Visitor accommodation in rural areas, in suitable locations, can have a positive impact on the local economy. Appropriate conditions restricting this accommodation to holiday use will be applied, to avoid unsustainable residential development, or the provision of owner occupied second homes which are economically less beneficial and do not positively contribute to sustainable communities.

Policy WC5: Visitor and Tourism Development

1. Proposals for visitor and tourism development will be permitted where they would:
 - a. Enhance the tourism offer within towns and villages;
 - b. Assist in the restoration and enhancement of the Chesterfield Canal;
 - c. Support the promotion of the District's industrial heritage;
 - d. Support links with the Peak District National Park;
 - e. Extend and/or upgrade the District's Green Infrastructure and network of multi-user trails; or
 - f. Provide a viable and appropriate use for under-used buildings.
2. In all cases proposals will be expected to:
 - a. Be well located in relation to the local transport network and accessible by public transport;
 - b. Be of a scale that is compatible with the role of any nearby settlement;
 - c. Ensure that visitor numbers can be accommodated without detriment to the environment or the vitality of existing centres;
 - d. Respect local landscape character and the character and appearance of the open countryside;
 - e. Respect the site's location through careful siting, scale, design and use of materials; and
 - f. Not have a significant adverse impact on any environmental designation.
3. Outside the Settlement Development Limits in countryside locations, proposals for new or extensions to existing visitor accommodation will be permitted where it is not used for permanent residential occupation.
4. Where development falls within the Green Belt the provisions of Policy SS10: North East Derbyshire Green Belt apply.

Camping, Chalets, Caravans and Lodges

6.51 The provision of visitor accommodation in the form of camping, chalets, lodges and caravans is an appropriate use within the Countryside and is subject to policy WC6. However, sites need to be well screened throughout the year, and designed and laid out to reduce their

impact upon the countryside, landscape and neighbouring residents. They should ideally be located in areas that provide easy access to nearby settlements, which can also help to support local shops and services. Storage sites for touring caravans help to remove caravans from residential properties where they are often unsightly.

Policy WC6: Camping, Chalets, Caravans and Lodges in the Countryside

In addition to the requirements of Policy WC5, proposals for new and extensions to existing sites for camping, chalets, static (non-dwelling) and touring caravans, lodges and for caravan storage, will only be permitted where:

- a. They are adequately screened all year round; and
- b. They are laid out in a manner which would not adversely affect the character of the area; and
- c. The materials and colour of the chalets and caravans, services and infrastructure are appropriately designed to reduce the visual impact of the proposal on the landscape; and
- d. They do not significantly adversely affect the amenity of local residents.

7. Sustainable Places

Introduction

- 7.1 This chapter presents the most sustainable places within the district which are the towns of Clay Cross and Dronfield, Eckington and Killamarsh. It shows their specific characteristics and needs and points out their strengths and challenges.

Dronfield

- 7.2 Dronfield is the largest town in North East Derbyshire, and the only one with a railway station. Historically, Dronfield developed as two settlements; the principal one being on the hillside around the Parish Church and the secondary, more industrialised township, in the valley below, strung out along the River Drone and Chesterfield Road/Sheffield Road. It is highly constrained by the Green Belt that helps prevent Dronfield from merging with Unstone and in the wider context with Chesterfield, to the south, and Sheffield, to the north. As a retail and service centre it serves the needs of local residents and residents of the villages between the two major centres of Chesterfield and Sheffield. Dronfield also attracts passing trade from the B6057, although this is limited due to the A61 Dronfield-Unstone bypass.
- 7.3 Dronfield has many positive assets, including two Conservation Areas (the town centre and a small area in Dronfield Woodhouse), together with a further Conservation Area in Coal Aston. The town also has a significant number of listed buildings, and low levels of deprivation, which together with the countryside setting make it an attractive place to live and work. The railway station is a highly valued transport facility both within Dronfield



- and for the district as a whole, providing excellent links to Sheffield and Chesterfield as well as locations further afield.
- 7.4 The Local Plan aims to direct new growth to the district's most sustainable settlements based on the Settlement Hierarchy, and to Strategic Sites in suitable locations. Dronfield is the largest of the four towns within the district, and is an area of high demand for growth. The tight constraints of the Green Belt have restricted development in recent years leading to rising house prices and unmet housing needs. The lack of available land within the existing settlement means that meaningful levels of housing growth could only be accommodated by looking around the edge of the town within the Green Belt. Two land parcels have been released from the Green Belt on the basis that they would cause least harm to the strategic functions of the Green Belt while delivering around 200 dwellings by 2034. When adding completions and commitments this will amount to approximately 300 dwellings in total within the plan period.

- 7.5 Dronfield has got a reasonable mix of house types, although is perhaps lacking smaller properties (the proportion of terrace housing is below the district average). In terms of tenure, there is an imbalance, with only 10% social rented which is half the district average. This will be addressed through housing provision in order to establish a more balanced mixed and sustainable community.
- 7.6 The Recreation Survey 2017 shows that Dronfield is lacking in green space, children's play spaces, outdoor youth facilities and allotment provision. This means that existing green spaces and recreation sites including large green spaces such as Sindelfingen Park, will need to be protected and new provision encouraged.
- 7.7 The Playing Pitch Strategy 2017 reveals for this area that present and future demand for all formal pitch sports either can be met or there is a small shortfall. In particular, there is no surplus of grass pitch provision in the north analysis area. In the main, shortfalls expressed can be met by improving pitch quality and through pitch reconfiguration. This means that existing outdoor sport facilities should be protected and in some cases the quality of sport facilities should be improved.
- 7.8 Dronfield Sports Centre was refurbished in early 2017 when the existing leisure facilities were extended by a new two-storey fitness suite. This helps to meet increasing demand for health and fitness activities from local residents. The Indoor Sports Facilities Strategy 2017 recommends a continued programme of investment at Dronfield Sports Centre to ensure facilities remain as good as they can for as long as possible.

Dronfield Town Centre

- 7.9 Based on Experian GOAD³⁵ Data 2016, the Retail and Centres Study³⁶ assessed the vitality and viability of Dronfield Town Centre in November 2016 which includes 34 retail units. Within the redefined town centre boundary as shown on the Policies Map, there are 5 convenience stores which provide for more than half of all retail floorspace due to the large Sainsbury's which is popular across the area. Dronfield also provides 12 comparison units and 15 service units. There were only two vacant units with 2.7% of the total floorspace recorded which is below the UK average of 9%. The Dronfield Sports Centre is particularly popular which is the second most popular leisure centre across the study area.
- 7.10 Almost 33% of respondents from Zone 4 (Dronfield) of the NEMS household survey³⁷ identified that they undertook their last main food and grocery shopping at the Sainsbury's. Dronfield's town centre is also popular for going out to bars, pubs, nightclubs and social clubs which is demonstrated by the fact that Dronfield is identified as the third most popular location in this category, behind Chesterfield and Sheffield. 74.5% of the respondents said that they would travel to Dronfield by car, 5.5% by bus and 14.7% walked into the town centre.
- 7.11 Dronfield Heritage Trust and the Town Council are both active and the initiatives such as the Barn project are positive additions to the town's heritage and attractions. The market and historic aspects to the town are real opportunities, but the condition of the civic centre needs addressing in order to maintain the vitality and viability of the town centre.

³⁵ Experian GOAD is a retail property intelligence system.

³⁶ Bolsover, Chesterfield and North East Derbyshire: Retail and Centres Study, January 2018.

³⁷ NEMS Market Research Ltd household survey, November 2016.

Dronfield Regeneration Framework

7.12 In January 2017 the Council adopted a Regeneration Framework for Dronfield. This document was prepared together with local residents and identifies key opportunities for improvement within the town, sets a strategic approach to

delivering improvements and attracting investment. It will also be used to coordinate the delivery of projects and ensure that they are of the highest quality. The Local Plan draws on the recommendations of the Regeneration Framework. Table 7.1 shows the Framework's key themes and proposals:

Table 7.1: Dronfield Regeneration Framework Key Themes and Proposals

1. Access and movement

- Improvement of public transport through linked ticketing and timetabling between bus and rail as well as review of bus services within the town
- Improvements to Callywhite Lane Industrial Estate through improvement of the junction at Callywhite Lane/Chesterfield Road and provision of a new link road between the eastern end of Callywhite Lane and Chesterfield Road.
- Improvement of routes for safe walking and cycling.
- Improved public realm for High Street and Church Street, the Civic Centre and Dronfield Bottom - Station and Sheffield Road.
- Improved balance between car space and pedestrian space. This could be achieved through audit of vehicle speeds in town centre, improved facilities for pedestrians and an increase of the number of pedestrian crossings.
- Improvement of car parking through connection of the two town centre car parks and work with Network Rail to facilitate improvement of the station car park.

2. Green routes and spaces

- Improve green routes and facilities through
 - Mapping and auditing of existing cycleways and greenways
 - Developing a 'Connection Strategy'
 - Improved lighting and surfaces
 - Carrying out a feasibility study for a cycle route to new attractions such as Peak Resort
 - Improvement of the walking/cycling route to the station

3. The Town Centre

- Improve the Civic Square through:
 - Improving the market offer
 - Moving the Post Office to the Civic Centre
 - Re-surfacing and considering the planting of trees and shrubs
 - New street furniture and improved lighting
 - A new canopy to the shopping precinct.
 - An increase of social use of the Civic Square.
 - A wholesale redevelopment of the shopping precinct.

4. Heritage and Character

- Make more of existing heritage assets through:
 - Review and consolidation of previous audits and studies of the town's historic assets.
 - Identifying historic buildings and spaces that would benefit from new uses.
 - Making Dronfield's history come alive for children and other residents and visitors, using on-line and other resources.
- Make the heritage assets work together through:
 - Improving connections between the key clusters of buildings and spaces in the historic centre of Dronfield,
 - Improvement of quality of streets and spaces to match the quality of historic buildings.

5. Community and Social Networks

- Raise awareness and increase participation through:
 - A town team to maximise the benefits arising from the Peak Resort and Callywhite Lane Industrial Estate expansion proposals.
- Improve co-ordination for smarter working through:
 - Development of a virtual 'platform' for groups and networks to book rooms and physical space
 - Connecting groups to allow more integration between them and to share/use resources more efficiently.

7.13 Within the Dronfield Regeneration Framework new walking and cycling routes were considered which could run from the town centre to surrounding areas and within Dronfield to improve connectivity of the settlement. In line with that, Derbyshire's Key Cycle Network identified two potential walking and cycling routes which are considered for delivery through the D2N2 Sustainable Travel Programme. These new routes are:

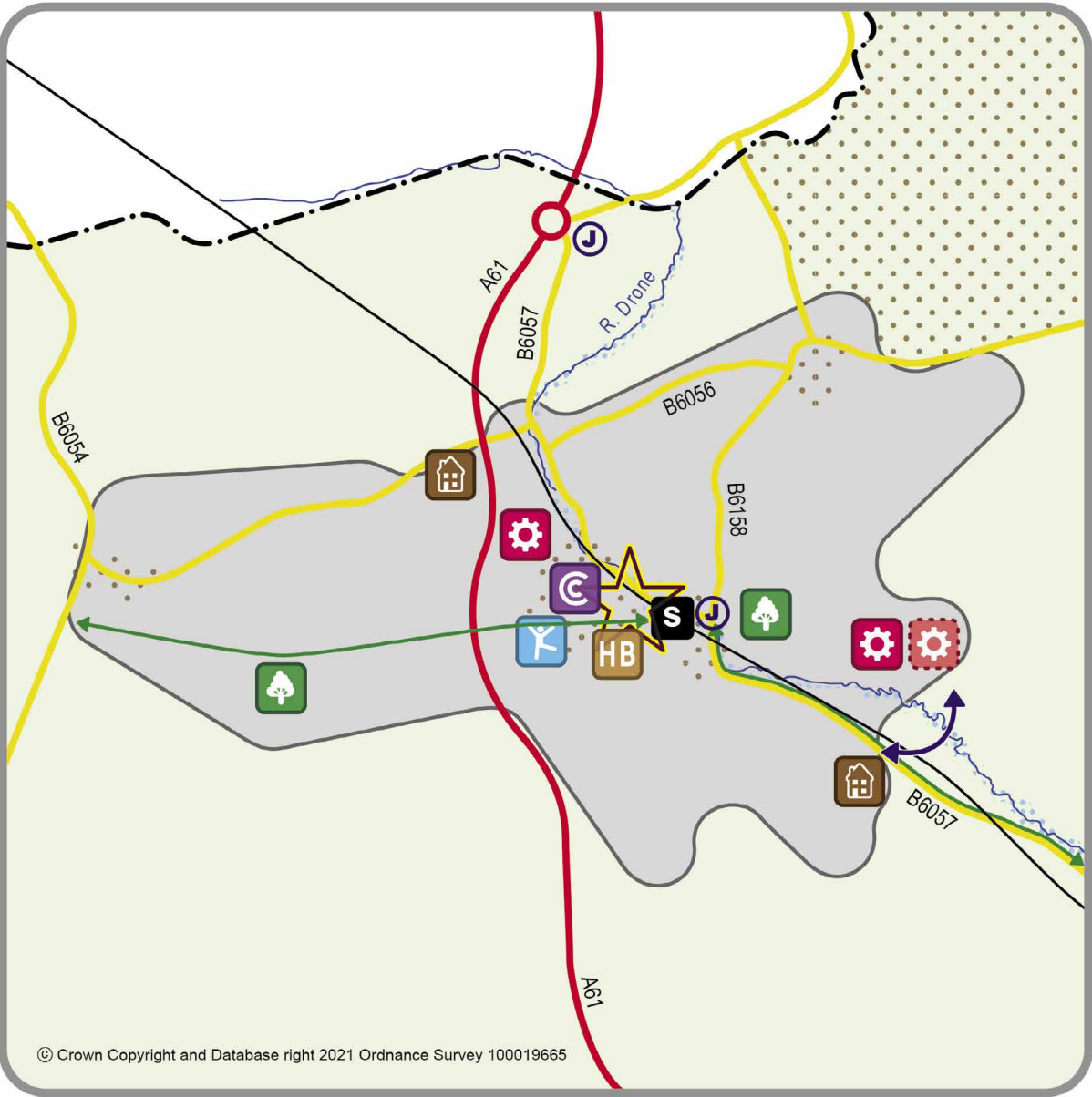
- East-west alignment from Callywhite Lane to Sindelfingen Park. This route would provide good connectivity between residential neighbourhoods, the town centre, railway station and Callywhite Lane Industrial Estate.
- North-south alignment along the B6057 between Dronfield and Unstone. This route would provide good connectivity between the town centre, Unstone and the planned Peak Resort. It could potentially link into the Callywhite Lane extension.



Policy SP1: Dronfield

1. Dronfield will maintain its role as the social and economic focus of the North of the District.
2. Provision for new housing will be made in line with Policy SS2 and employment land in accordance with Policies WC1, WC2 and WC3.
3. The efficient reuse of previously developed land within Dronfield will be encouraged, including sites within the Town Centre where such development would help to meet housing needs, including living above shops.
4. The Council will seek to facilitate the development of land for housing and employment, and will support proposals that provide infrastructure improvements required to unlock the development potential of sites.
5. In order to maintain Dronfield's role, the Council will:
 - a. Support proposals that maximise the benefits from, and protect and improve access to, the railway station;
 - b. Help to re-balance the local housing market through the provision of affordable housing in line with Affordable Housing Policies (LC2 & LC3);
 - c. Protect and enhance existing green space, children's play spaces, outdoor youth facilities and allotments and outdoor and indoor sport facilities to meet identified demand;
 - d. Encourage proposals that facilitate the provision of new green space, children's play spaces, outdoor youth facilities and allotments to meet identified shortfalls; and
 - e. Encourage uses within the town centre that enhance the offer of the town as an evening destination, particularly leisure facilities.
6. Where appropriate development proposals will be expected to demonstrate how they contribute to the successful delivery of the Dronfield Regeneration Framework's key themes and proposals set out in Table 7.1. In particular, the Council will support proposals that:
 - a. Improve the highway junctions at B6057 Chesterfield Road / B6158 Green Lane / Callywhite Lane and A61 Bowshaw Roundabout and provide a new link road between the eastern end of Callywhite Lane and Chesterfield Road to improve access to Callywhite Lane;
 - b. Improve the public realm for High Street and Church Street, the Civic Centre/ Square and Dronfield Bottom - Station and Sheffield Road;
 - c. Extend the existing station car park and connect the lower civic centre car park so it becomes the town centre main parking area;
 - d. Improve the existing network of footpaths and cycleways and link into the north-south alignment along the B6057 between Dronfield and Unstone and the east-west alignment from Callywhite Lane to Sindelfingen Park; and
 - e. Encourage suitable new uses for historic buildings which are unused or underused.

Figure 7.1: Dronfield Town Map



- KEY**
- ★ Town centre
 - Ⓢ Civic centre with improved civic square & connected town centre car parks
 - Ⓜ Leisure centre / swimming pool
 - ⚙ Protected employment sites
 - ⚙ Regeneration opportunity area
 - HB New uses for historic building
 - ⋯ Conservation area
 - Ⓢ Railway station with car park
 - Railway line
 - Ⓜ Potential highway junction improvement at Callywhite Lane / Chesterfield Road and Bowshaw Roundabout
 - ↗ New link road between Callywhite Lane / Chesterfield Road
 - ⬜ Settlement development limit
 - 🏠 Provision for new housing (major site)
 - 🌿 Green Belt
 - 🌳 Main parks
 - ↔ Improvement of existing footpaths and greenways
 - 🌊 River
 - ⋯ Zone 3 flood risk
 - ⋯ District boundary

Clay Cross

- 7.14 Clay Cross is located on the main A61 corridor between Chesterfield and Alfreton, bordered to the east by the Midland Mainline railway, and the River Rother. To the west, there is very attractive and sensitive Peak fringe landscape, which is a recreational, visual and biodiversity asset.
- 7.15 Clay Cross has many positive assets with a good range of services and facilities, excellent bus routes and frequency of services, local employment opportunities, and a choice of development sites. It is a relatively modern town but with a rich heritage dating back to the nineteenth century and the development of coal mining and its links with George Stephenson. The town benefits from a historic core of Victorian buildings, with the best preserved historic buildings along High Street and Market Street, together with Clay Cross Hall and its parkland setting, protected with Conservation Area designation. There are larger commercial buildings to the north of the town which is where the former Biwaters site is located. The eastern and south eastern areas of the settlement are mainly residential in character. Sharley Park is a large attractive green space to the east of the town centre and a focus for recreation, containing a leisure centre, and sports facilities. It is also the location of a community hospital.
- 7.16 The A61 is subject to congestion as it passes through Clay Cross, especially during peak hours and whenever there is congestion or disruption on the M1 motorway. In 2010 protected schemes (in the Local Transport Plan) for a Market Street diversion in Clay Cross were 'rescinded', meaning that the County Council no longer intends to promote them and will not seek the protection of any land against other forms of development.



- 7.17 Whilst Clay Cross Railway Station is included in the Local Transport Plan 3 as a project for further appraisal as a County Council scheme, it is not being actively pursued and is not included in the Derbyshire Infrastructure Plan. However, there may be opportunity to review the business case and realise the long term aspirations for a station at Clay Cross as the town grows in the future. As such the Plan through Policy SS4 seeks to ensure that the development of the Strategic Site Allocation at the former Biwaters site does not preclude the provision of rail access should the case for the station be established in the future.
- 7.18 Clay Cross is the second largest town within the district and is an area of high demand for growth. Future residential development would also support and accelerate the regeneration of the town centre as laid out in the Clay Cross Regeneration Framework. A meaningful level of growth can be achieved by allocating housing sites within the settlement in close proximity to the town centre. When adding completions and commitments this will amount to approx. 460 dwellings until the end of the plan period. This figure excludes 825 new houses on the Biwaters Strategic Site.

- 7.19 There is a significantly above average (District and national) percentage (31.4%) of social rented housing in Clay Cross, as set out in the Settlement Role and Function Study (2013 Update). A good balance of different housing types and tenures is important in maintaining a sustainable community. This could be achieved through implementation of the Biwaters scheme to the north and new housing development proposed in the south of Clay Cross. The town falls within the top 20% nationally of most deprived communities as identified in the national Indices of Multiple Deprivation. There are also issues that need addressing, including high unemployment despite the proximity of jobs, traffic congestion and better management and maintenance of some areas.
- 7.20 Clay Cross has an open space and recreation provision of 3.48 ha per 1000 population. This figure is well above the district wide average. Clay Cross has a surplus of provision in terms of allotment gardens and green spaces; however, there is a shortfall in terms of informal recreational fields (and a slight shortfall of children play spaces and outdoor youth facilities). With the exception of Rugby Union, current and future demand for playing pitches is being met within the south analysis area. At Sharley Park, there is a new football playing pitch available for community use. However, overall there is not a surplus of provision.
- 7.21 At present Sharley Park Leisure Centre is adequate in terms of its quantitative provision meeting community needs today; however, quality and condition are another matter. The current facility is old and in need of investment if the Council is to maintain the current level of provision in the future. This might mean refurbishment or provision of a new facility.

Clay Cross Town Centre

- 7.22 In 2016, there were 84 retail units in the Town Centre of Clay Cross, compared to a total of 97 shops and services in 2008. Both, the numbers of convenience units (food) and comparison shops (non-food) have gone down. However, these figures do not include the latest retail developments of Tesco Extra at Bridge Street and the Aldi foodstore at High Street as they are not included in the Experian GOAD data map. Tesco Extra is a larger store which attracts many customers from Clay Cross and the surrounding area and was identified as being busier than the rest of the town centre. Currently, there are 44 service units in the centre which is a reduction of 3 units since 2008. The leisure services sector is the strongest, particularly food and drink provision (19 units). The retail study identified that the number of vacant units has reduced from 9 to 7 units (8.3%) since 2008 but found that there were still some areas which were run down.
- 7.23 However, local people asked about the town centre were generally content with shopping in the town. Almost half of the respondents of the NEMS household survey said that the main reason for visiting the town centre was the choice and range of shops. 89% of respondents indicated that they travelled by car to Clay Cross. When asked about what measures would encourage visits to Clay Cross more often, 11.4% identified a better environment.

Clay Cross Regeneration Framework

- 7.24 In 2013, the Council adopted the updated Regeneration Framework for Clay Cross, with the vision that “Clay Cross will capitalise upon its unique location within the Sheffield City Region

and proximity to the Peak District National Park to create a successful independent town.” The Local Plan draws on the recommendations of the Regeneration Framework which identified 5 action areas:

1. Town Centre: consolidating strengths.

2. High Street: reinforcing gateways.

3. Bridge Street Triangle: develop potential.

4. The former Biwaters site: delivering 21st century communities.

5. Coney Green: growing employment opportunities.

Table 7.2: Clay Cross Regeneration Framework Key Priorities and Projects

- Regeneration of the land and buildings north of Market Street.
- Revision and improvement to the bus station to create an enhanced pedestrian environment.
- Provision of a market square to create a hub to pedestrian routes.
- Better physical links between public buildings - adult education centre, library, job centre and Citizens Advice Bureau.
- Creation of a ‘Community Campus’ - grouping of civic and amenity facilities, hospital and leisure centre provide an important community hub facing onto Market Street.
- Arts/cultural and heritage/youth facilities if viable and sustainable.
- Protection of existing urban quality in the conservation area.
- High quality landscaping.
- Quality office space to maintain existing and attract new businesses.
- Implement town centre pedestrian priority.
- Implement town centre parking accessed directly off A61.
- A new route for the A6175 through the former Biwaters site to provide a direct link to the Coney Green end of Market Street.
- Developing town centre gateways on the A61 and Market Street.
- Opportunity to improve the public realm and the shop fronts including personalising shops and restoring advertising signs.
- Proposals for short term/temporary uses for vacant sites and shops will be encouraged and a flexible approach to uses will be taken where proposals offer street scene improvements.
- Protection of the church of St. Bartholomew’s, including views.
- Address the narrowness of the pavements on High Street.
- Consistent improvements to boundary treatments and a common approach to business signage.

- Develop Bridge Street Triangle as a retail and services area.
- Develop additional outdoor sports and leisure facilities at Sharley Park.
- Build upon the sports role of Egstow Park.
- Extend Kenning Park up to Clay Lane providing improved connections to the town centre.
- Secure the Railway Esplanade to deliver a high quality public realm spine planted with an avenue of trees that recreate the railway tunnel through the town.
- Focus public realm improvements including public spaces on the key movement routes, regeneration areas, and parks.
- Preparation of development briefs for key sites.

One Public Estate Programme

7.25 The One Public Estate initiative is a national programme funded by the Cabinet Office and the Government Property Unit and delivered in partnership with the Local Government Association. It aims at supporting and funding councils to deliver property-focused programmes and getting more from a Council's collective assets. The programme's main objectives are creating economic growth, delivering more integrated, customer-focused services and generating efficiencies through capital receipts and reduction of running costs. Derbyshire County Council is the lead authority for the North Midlands One Public Estate Programme (OPE) which also covers North East Derbyshire.

7.26 In October 2017, North East Derbyshire District Council and Derbyshire County Council secured funding for the OPE programme for an appraisal/feasibility study for Clay Cross Town Centre. The project area is centred around the town centre with the majority of the land and buildings in public ownership. It brings together the relevant public stakeholders (DCC, NEDDC, Clay Cross Parish Council, Rykneld Homes, Derbyshire Community Health Service, etc.) and looks at the existing services including the Leisure

Centre, Library, Social Services, Adult Education, Countryside Services, Thriving Communities, Health and the Third Sector. It is considered that OPE funding presents an opportunity to rationalise the public estate through a locality review.

7.27 This work could be delivered through an appraisal/feasibility study which would be based on the findings of the Regeneration Framework. It would fully take into account the town centre's heritage assets whilst welcoming potential contemporary additions to the built environment. The appraisal/feasibility study would not only be about service delivery but will also have a strong focus on place-making and town centre regeneration.

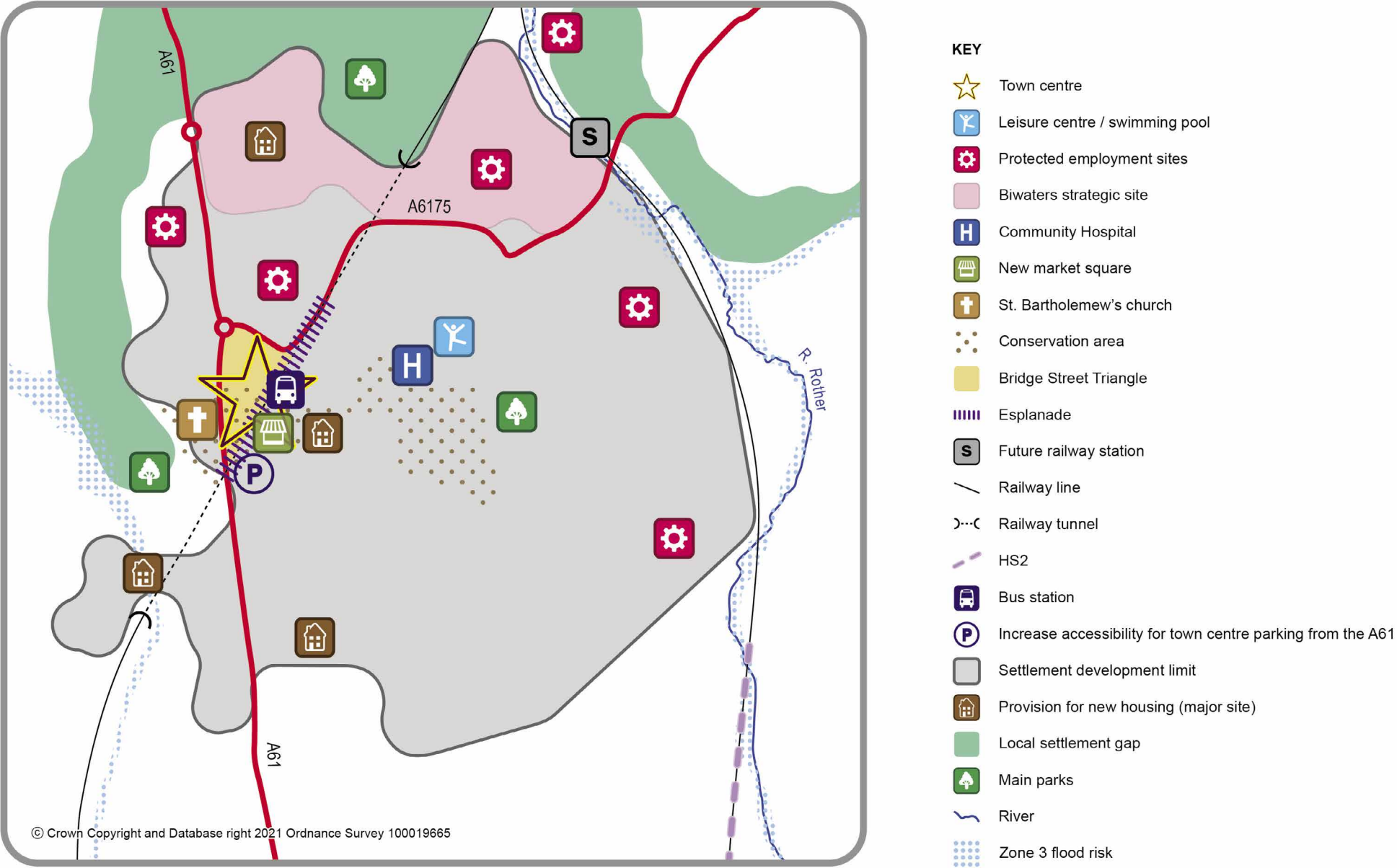


Clay Cross

Policy SP2: Clay Cross

1. Clay Cross will maintain its role as the main social and economic focus of the South of the District.
2. Provision for new housing will be made in line with Policy SS2 and employment land in accordance with Policies WC2 and WC3.
3. Where appropriate, development proposals will be expected to demonstrate how they contribute to the successful delivery of the Clay Cross Regeneration Framework's key priorities and projects set out in Table 7.2 and the One Public Estate's regeneration and service programme. In particular, the Council will support proposals that:
 - a. Reuse previously developed land within and on the edge of Clay Cross where appropriate, including sites within the Town Centre and living above shops;
 - b. Contribute to the refurbishment or re-development of Sharley Park Leisure Centre;
 - c. Protect and provide outdoor sport facilities, children play spaces and outdoor youth facilities to reduce current shortfall;
 - d. Protect, implement and maintain the route of the esplanade as shown on Map 7.2;
 - e. Promote public transport and do not preclude the future provision of rail access;
 - f. Protect and enhance the church of St Bartholomew's including views to and from the church;
 - g. Protect the existing urban quality within the conservation area;
 - h. Increase accessibility to town centre parking from the A61;
 - i. Develop Bridge Street triangle as a retail-led opportunity area in accordance with Policy WC4;
 - j. Take a flexible approach to uses to encourage proposals for development that will help to secure the regeneration of land north of Market Street;
 - k. Improve the Public Realm by focusing on key movement routes, regeneration areas and the bus station;
 - l. Encourage uses within the town centre that enhance the offer of the town as an evening destination, particularly arts and cultural uses and social/leisure facilities for young people; and
 - m. Continue to work with partners to deliver regeneration and place-making projects and innovative service delivery for the town centre to benefit the most deprived members of the community.

Figure 7.2: Clay Cross Town Map



Eckington

7.28 Eckington is a small town, located to the east of Dronfield, close to the boundary with Sheffield to the north. The town centre serves the retail and service needs of residents from the town itself, as well as surrounding villages including Mosborough, Renishaw and Marsh Lane. The town centre has benefited in recent years from many improvements, including the resurfaced market street. The town also benefits from many historic buildings, protected by the Eckington and Renishaw Conservation Area. The town is surrounded by the Green Belt which limits development opportunities.

7.29 Although there is a significant need for affordable housing in the Northern sub area, there is above average (District and national) percentage (29%) of social rented housing in Eckington, as set out in the Settlement Role and Function Study 2013 Update. There is a good balance of house types in Eckington, which will need to be maintained. In order to try to redress the imbalance in tenures it is very important to achieve the best mix on any sites that do come forward, either as allocations or windfalls.

7.30 Eckington is an area of high demand for growth. The tight constraints of the Green Belt have restricted development in recent years leading to rising house prices and unmet housing needs. The lack of available land within the existing settlement means that meaningful levels of housing growth could only be accommodated by looking around the edge of the town within the Green Belt. Allocations, completions and commitments within the settlement will amount to approximately 210 dwellings within the plan period.



7.31 Eckington has an open space and recreation provision of 3.03 ha per 1000 population which is above the district wide average. The town has a surplus with regards to allotment provision and informal recreational fields compared to the Local Standard but a slight deficit of green space, children's play spaces and outdoor youth facilities. For all pitch sports current and future demand is either being met or there is a small shortfall (at present only for Cricket). There is no surplus of grass pitch provision in the north analysis area. This means that the existing green space, recreation sites and outdoor sport facilities will need to be protected. The Playing Pitch Strategy also shows that the quality of some pitches should be improved in the future.

7.32 In Spring 2017, Eckington Swimming Pool was refurbished and re-opened to the public. The Indoor Sports Facilities Strategy recommends ensuring that programming at Eckington Swimming Pool complements other water facilities in the area (by focusing on swimming clubs, etc.) and that investment is continued to ensure that the facility is improved to better cater for modern standards.

Eckington Town Centre

- 7.33 Since the 2008 Retail Study the total number of shops and services dropped from 65 in 2008 to 51 in 2016. Despite losses of convenience shops and comparison units, retail services (mainly within the health and beauty category) have gone up by three units. Eckington's town centre is anchored by a single Co-operative Food Supermarket store which is one of only three convenience units (food) in the town centre. In the same period, the amount of vacant units has gone down from 16 units in 2008 to 7 units in 2016. Overall, Eckington has a well-structured pedestrian focused main street which creates a welcoming urban environment.
- 7.34 The NEMS household survey reflects the limits of the Eckington convenience and comparison offer; only 1.7% of respondents from Zone 5 (Eckington/Killamarsh) said that they last went to

the Co-operative Food Supermarket in town. The majority of respondents travelled to Eckington by car as the driver (66.9%) but notably 17.7% walked to the town centre. NEMS identified that the main reasons for visiting the town centre was choice of services (33.6%), how close it was to home (20.1%) and the choice or range of shops (19%).

Eckington Town Centre Development Framework

- 7.35 The Eckington Town Centre Development Framework, adopted as a Supplementary Planning Document (SPD) in May 2012, provides the context for the spatial approach to new development in the town centre taken by the Local Plan. The revitalisation of the town centre is the principal aim of the Eckington Framework. The Local Plan builds on the recommendations of the Framework and Table 7.3 shows the Framework's Strategic Objectives.

Table 7.3: Eckington Framework Strategic Objectives

- To encourage the revitalisation of Eckington town centre with a distinctive and robust retail core.
- To promote the heritage and tourism offer within Eckington whilst strengthening local identity and civic pride.
- To create an attractive and legible network of streets, footpaths and spaces.
- To encourage activity throughout the day within the town centre.
- To promote a democratic centre - accessible to all and with facilities for all.
- To provide diversity of compatible uses within the town centre.
- To support local employers and employment initiatives which can stimulate development.
- To integrate the town into its context through public transport and green links.

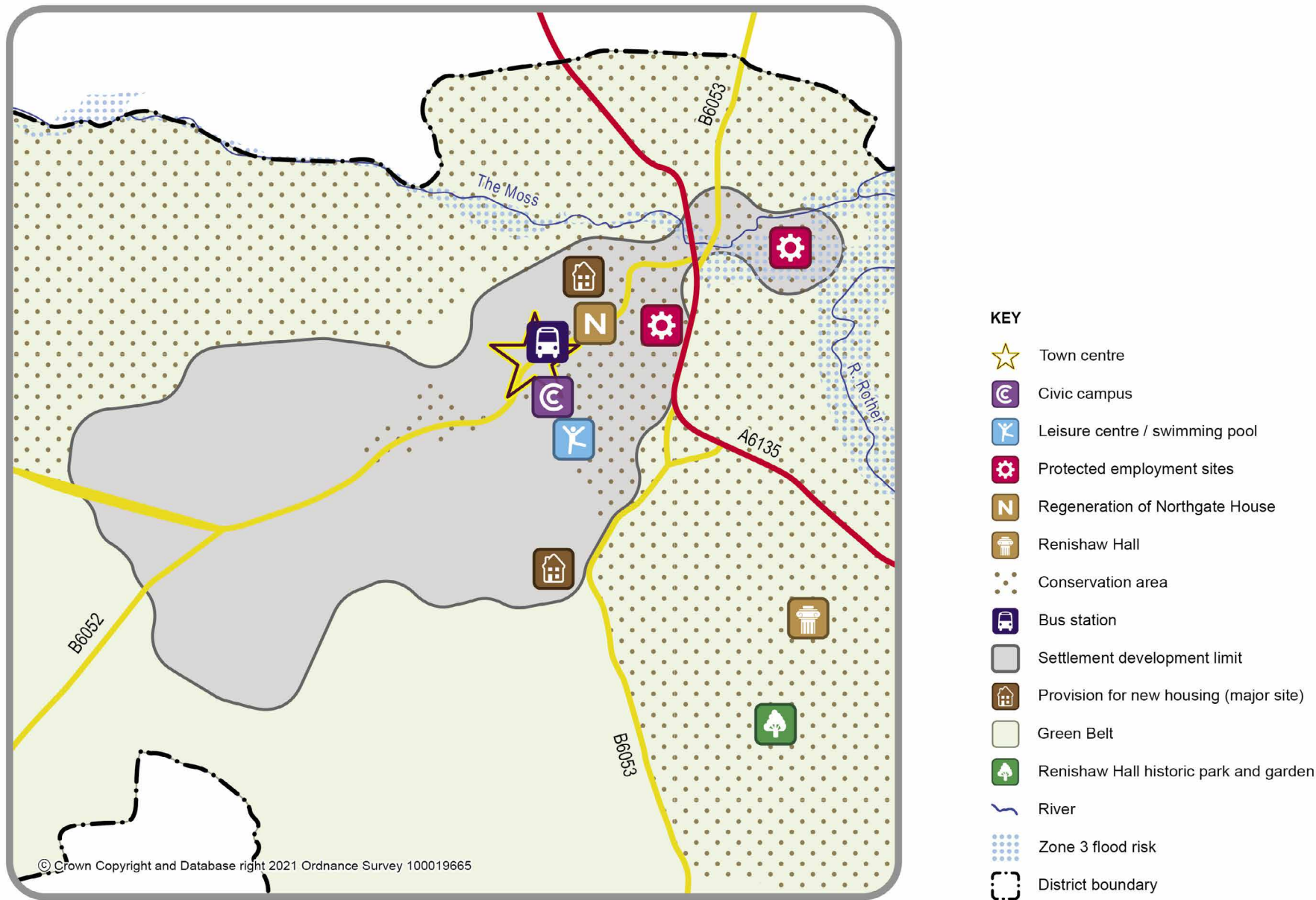
7.36 The Eckington Framework identifies the main town centre development opportunities as the redevelopment of Northgate House, a reorganisation of the bus station to free up land off Pinfold Street, perhaps incorporating this with the land to the rear of Market

Street, the Market Street (Foxes Yard) car park and rationalisation of the 'civic campus' area (library, swimming pool etc.). It is important that these opportunities are capitalised upon within the Local Plan.

Policy SP3: Eckington

1. Eckington will maintain its role as one of the towns in the northern sub-area of the District providing local services to its wider rural catchment area.
2. Provision for new housing will be made in line with Policy SS2 and employment land in accordance with Policies WC2 and WC3.
3. In order to maintain Eckington as a sustainable town, the Council will support proposals that:
 - a. Protect and enhance existing green space, children's play spaces and outdoor youth facilities; and
 - b. Protect and enhance indoor and outdoor sports facilities
4. Where appropriate development proposals will be expected to demonstrate how they contribute to the successful delivery of the Eckington Town Centre Development Framework's Strategic Objectives set out in Table 7.3. In particular, the Council will support proposals that:
 - a. Provide a mix of housing tenures including open market, private rented and affordable housing;
 - b. Improve the accessibility of the town centre for pedestrians and cyclists;
 - c. Incorporate public realm improvements within the town centre;
 - d. Protect and enhance the role of the Civic Campus;
 - e. Facilitate the regeneration of Northgate House; and
 - f. Promote, protect and enhance heritage assets including historic buildings and sites and their setting.

Figure 7.3: Eckington Town Map



Killamarsh

7.37 Killamarsh is a small town, located in the north-east of the district, close to the boundaries with Sheffield and Rotherham. The town is well served by public transport, with regular buses to and from surrounding large urban areas of Sheffield, Rotherham, Chesterfield and Worksop. There are good links to the Super Tram network with buses to Crystal Peaks and Halfway in Sheffield.

7.38 The Chesterfield Canal, which was routed through Killamarsh, opened in 1777 and played an important part in the social and economic development of Killamarsh up until its closure in the 1950's. Currently, the canal route through Killamarsh is not navigable and some sections have been built upon. However it continues to act as an important recreation and green infrastructure route, along with the Trans Pennine Trail to the west of Killamarsh. The Council alongside other Partners (through the Chesterfield Canal Partnership) is committed to protecting the Chesterfield Canal as a recreational route and restoring it to full navigation, acknowledging the economic and regeneration benefits this can bring to communities along its length.

7.39 In 2004, the Chesterfield Canal Partnership commissioned a study to analyse the social, environmental and economic costs and benefits of possible alternative routes through Killamarsh. Following extensive public consultation a preferred route to the east of the town centre was identified and was subsequently safeguarded in the 2005 Local Plan, in order to protect the route from development that could prejudice the restoration of the Chesterfield Canal.

7.40 The Chesterfield Canal Partnership has subsequently assessed the eastern alternative route which showed that



problematic and extensive engineering requirements would be necessary. Consequently, a western alternative route has been identified which takes advantage of the re-development of the Tarran Bungalows. Following public consultation the Chesterfield Canal Partnership confirmed its preference for the new 'western' alternative route. As a consequence, both the original route through Killamarsh and the western alternative route are safeguarded in line with Policy ID9.

7.41 Killamarsh is an area of high demand for growth due to its close proximity to Sheffield. The tight constraints of the Green Belt have restricted development in recent years leading to rising house prices and unmet housing needs. The lack of sufficient available land within the existing settlement means that meaningful levels of housing growth could only be accommodated by looking around the edge of the town within the Green Belt. Following a review of the Green Belt a selection of land parcels have been released from the Green Belt. These were selected on the basis that they would cause least harm to the strategic functions of the Green Belt while delivering approximately 400 dwellings by 2034. When adding allocations within the settlement as well as completions and commitments this will amount to approximately

560 dwellings in total within the plan period.

- 7.42 The current housing stock is well balanced, with both type and tenure broadly in line with the district average. It is important to maintain this balance to ensure a sustainable community.
- 7.43 With regards to open space and recreation Killamarsh shows the lowest provision figures of the four towns with 1.57 ha per 1000 population. Except for informal recreational fields and children's play spaces which are above or in line with the Local Standard there is a considerable shortfall in green space, outdoor youth facilities and allotment provision. For all pitch sports current and future demand is either being met or there is a small shortfall. There is no surplus of grass pitch provision within the north analysis area. This means that the existing green space, outdoor youth facilities, allotments and playing pitches will need to be protected and if possible new provision added.
- 7.44 Within the Indoor Sport Facilities Strategy Killamarsh Leisure Centre is rated as above average quality. The primary issue is ensuring its ongoing availability to the general public at the requisite level of quality and maintaining the quality and variety of the programme of activities provided.

Killamarsh Town Centre

- 7.45 The Retail and Centres Study states that since 2008, retail and service units in Killamarsh Town Centre have gone up slightly from 53 to 55 in 2016. There were five convenience shops in the town centre which is relatively small in size; the main foodstores were the Co-operative Food Supermarket, Aldi and Fulton Foods. 14.3% of respondents within Zone 5 of the NEMS household survey said that they last undertook

their main food and grocery shopping at Aldi. Compared to 2008, the number of comparison shops (non-food) has dropped from 14 to 9 units (16.4%; UK average: 32.0%) which shows a lack of comparison goods variety. The town centre provides 31 services units in total; 11 of 17 retail service units are accounted to the health and beauty category. In 2008, there were 9 retail and service units vacant compared to only 6 vacant units in 2016.

- 7.46 81.8% of respondents of the NEMS household survey travelled by car to the town centre compared to 12.4% who travelled by foot. NEMS identified that the main reasons for visiting Killamarsh were the choice and range of shops (31.5%), the strength of the supermarket provision (25.7%) and how close it was to home (21.6%).

Killamarsh Regeneration Framework

- 7.47 In January 2017 the Council adopted a Regeneration Framework for Killamarsh. This document was prepared together with local residents and identifies key opportunities for improvement within the town, sets a strategic approach to delivering improvements and attracts investment. It will also be used to coordinate the delivery of projects and ensure that they are of the highest quality. The Local Plan draws on the recommendations of the Regeneration Framework. Table 7.4 shows the Framework's key themes and proposals.

Table 7.4: Killamarsh Regeneration Framework Key Themes and Proposals

1. Access and movement

- Improved public realm for Sheffield Road and Bridge Street through removal of clutter, improved lightening/street furniture and re-surfacing.
- Speed reduction measures to the east and south of the town.
- Improvement of car parking in the town centre.
- Improvement of footpath quality through housing areas through review of condition of surfaces and maintenance, lightening and litter.
- Improvement of facilities for pedestrians and cyclists through audit of pavements and pedestrians crossings, improvement of access for people with mobility issues and identification of improvements of the street scene.

2. Green routes and spaces

- Improvement of access to Rother Valley Country Park through audit of existing routes and identification of improvements.
- Creating and connecting greenways through and around the village, in particular a major new greenway around the western edge of the town.
- Improvement of parks and green spaces through audit of green spaces and play spaces, preparation of a programme of improvements and creation of a “family activity” area on the east side of the town.

3. The Town Centre

- Improvement of appearance and attraction of the centre through promoting the ‘Cleaner Killamarsh’ campaign, increase of police presence, promotion of a face-lift of the precinct and local business support.
- Improved environment of the Community Campus through re-introduction of a direct access to the Sports and Community Centre from Sheffield Road, new street furniture, signs and lighting and preparation of a tree planting and landscape scheme.
- Comprehensive re-development of the Community Campus. This could be achieved if other uses such as affordable or sheltered housing would be included.
- Provision of additional facilities for younger people through a new youth shelter at the skate park and creation of a drop-in centre/youth club/skills and training centre.

4. Heritage and Character

- Promotion and interpretation of Killamarsh’s heritage through co-ordination of local knowledge.
- Improvement of key aspects of Killamarsh’s industrial heritage to bring historic buildings back in to use and identify funding.
- Development of a western greenway to interpret the heritage of the town.

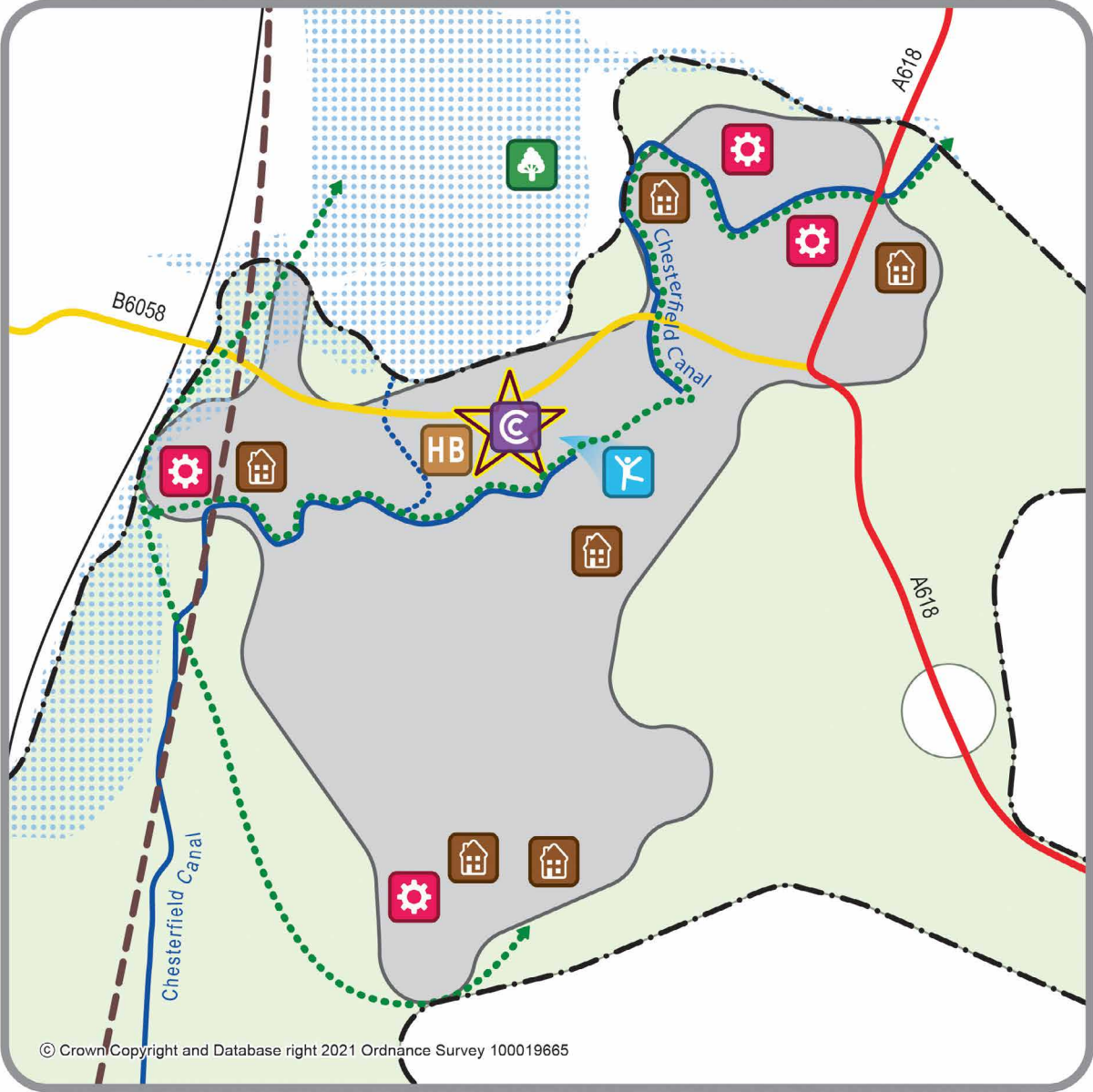
5. Community and social networks

- Raising awareness, connecting groups and increasing participation.
- Link levels of local government and other service providers.
- Support community action to preserve local history and heritage.
- Address environmentally and socially negative behaviour.

Policy SP4: Killamarsh

1. Killamarsh will maintain its role as one of the towns in the northern sub-area of the District providing local services to its wider rural catchment area.
2. Provision for new housing will be made in line with Policy SS2 and for employment land in accordance with Policies WC2 and WC3.
3. In order to maintain Killamarsh as a sustainable town with a healthy vibrant centre, the Council will support proposals that:
 - a. Protect and facilitate the provision and improvement of green space, outdoor youth facilities, allotments and outdoor sport facilities to address identified deficiencies; and
 - b. Facilitate the restoration of the Chesterfield Canal and upgrade the towpath through Killamarsh along the original route or the western alternative route as defined by Policy ID9.
4. Where appropriate development proposals will be expected to demonstrate how they contribute to the successful delivery of the Killamarsh Regeneration Framework's key priorities and projects set out in Table 7.4. In particular, the Council will support development that would:
 - a. Improve the public realm for Sheffield Road, Bridge Street and the Community Campus;
 - b. Improve the appearance and maintenance of the Town Centre;
 - c. Support new social infrastructure on or the comprehensive redevelopment of the Community Campus;
 - d. Promote more efficient use of car parking in the town centre;
 - e. Secure improvements to pavements, pedestrian crossings, footpaths and cycleways to encourage walking and cycling in and around the town centre and connect to the Canal and Rother Valley Country Park;
 - f. Secure a major new greenway around the western edge of Killamarsh; and
 - g. Support initiatives/projects to bring historic buildings back into use.

Figure 7.4: Killamarsh Town Map



- KEY
- Town centre
 - Community Campus
 - Leisure centre / swimming pool
 - Protected employment sites
 - New uses for historic building
 - Railway line
 - Settlement development limit
 - Provision for new housing (major site)
 - Green Belt
 - Main parks
 - New / existing greenways & multi-user routes
 - Trans Pennine Trail
 - Chesterfield Canal
 - Chesterfield Canal western alternative route
 - Zone 3 flood risk
 - District boundary

8. Sustainable Development and Communities

Introduction

- 8.1 National planning policy makes it clear that local plans should reflect the presumption in favour of sustainable development and Policy SS1 in Chapter 4 responds to this requirement.
- 8.2 This chapter supplements this policy by setting out the Council's planning approach on a range of issues underpinned by the principles of sustainable development. This includes a number of policies in relation to protecting and enhancing the environment, addressing climate change, and delivering successful development to achieve sustainable patterns and forms of development at the local level.

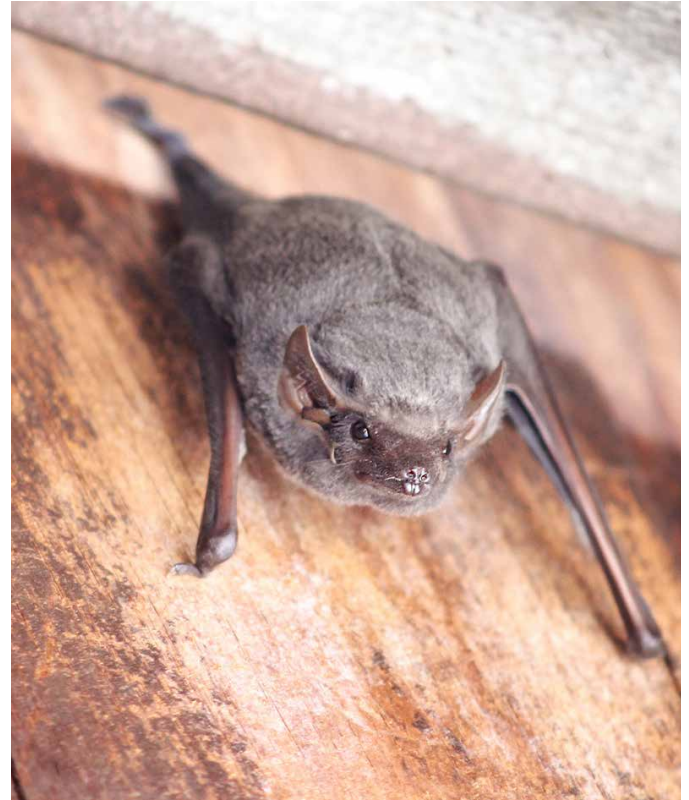
Protecting & Enhancing the Environment

Re-Use and Conversion of Buildings in the Green Belt and Countryside

- 8.3 The re-use and conversion of existing buildings can help to provide new job opportunities and homes in rural areas. It also re-uses existing resources and reduces the pressure for new buildings in the countryside. Consequently, as an exception to the restrictions on development in the Green Belt and the countryside the re-use, conversion or adaptation of agricultural and other rural buildings for new uses will be acceptable in principle provided that the criteria in Policy SDC1 are met. Proposals involving the re-use and conversion of buildings within the Green Belt will also need to comply with Policy SS10.
- 8.4 However, not all buildings in the Green Belt and countryside are suitable for conversion as they may be of in-substantial construction, of poor design or not in keeping with their surroundings. Buildings to be converted should be structurally sound and proposals which require major alterations, adaptations or re-construction will not be acceptable. Structural surveys may be required in order to demonstrate that a building is structurally sound and capable of re-use. Where re-use is appropriate in principle, it is important to ensure that the resultant form, bulk and general design of the building is in keeping with its surroundings and the overall character and quality of the building is retained. Proposals which involve rebuilding, rather than re-use, will be regarded as new dwellings in the countryside and will not be permitted.
- 8.5 The conversion of buildings in rural areas to uses not originally intended in their design can result in visual intrusion and/or increased traffic and activity with consequential adverse impacts on the countryside. The council will seek to ensure that any proposal is appropriate for both the building itself and the area in which it is located. Proposed new uses should preserve the openness and character of the Green Belt or countryside.
- 8.6 The reuse of agricultural buildings can result in the need for new farm buildings elsewhere on a farm or

inappropriate outside storage of materials, machinery and/or vehicles. In certain areas new farm buildings and outside storage can adversely affect the landscape and it may be appropriate to control their proliferation by using planning conditions or negotiating a planning obligation.

- 8.7 Many rural buildings can also be habitats for a variety of wildlife including bats and barn owls. These species are sensitive to disturbance and therefore at risk from building works. They are also protected under separate legislation³⁸, with bats being afforded additional protection³⁹. Therefore, an ecological survey will be required where species are protected by legislation or priority species listed under law⁴⁰ have the potential to be present.



Policy SDC1: Re-use and Conversion of Buildings in the Green Belt and Countryside

Proposals for the re-use and conversion of buildings in the Green Belt and Countryside will be permitted provided that:

- a. they are of permanent and substantial construction;
- b. they are structurally sound, and capable of re-use without major alterations, adaptations or re-construction;
- c. their form, bulk and design is, or can be made to be, in keeping with their surroundings;
- d. conversion or adaptation will not be detrimental to the character of the building itself or its setting;
- e. they preserve the openness and character of the Green Belt and Countryside;
- f. the new use would not result in replacement farm buildings or inappropriate outside storage of any materials, machinery and / or vehicles that would cause harm to the Green Belt and Countryside; and
- g. provision is made for nesting boxes and roosts for protected species such as barn owls and bats, where appropriate.

³⁸ Wildlife and Countryside Act 1981.

³⁹ Conservation of Habitats and Species Regulations 2010.

⁴⁰ Section 41 of the Natural Environment and Rural Communities Act 2006.

Trees, Woodland and Hedgerows

- 8.8 Trees, woodland and hedgerows are key features which can define landscape character and contribute to the quality and enjoyment of the environment. They can have great nature conservation, amenity and recreational value, as well as help to reduce noise and atmospheric pollution.
- 8.9 The district contains areas of woodland including ancient woodland (semi-natural and replanted) dating from the Middle Ages or earlier, and a substantial number of scattered trees in rural and urban areas. Some of the most important concentrations of ancient semi-natural woodland are within the Moss Valley, which is designated as a SSSI, around Ogston Reservoir, and to the south of Holymoorside. Trees and woodlands take many years to mature and so ancient woodlands, aged and veteran trees, and wooded pasture and parkland in particular are an irreplaceable resource. Development proposals that would result in the loss, or damage, to aged or veteran trees, or areas of mature or ancient woodland, or wooded pasture and parkland will not normally be permitted.
- 8.10 Other individual trees, tree groups and woodland can also be, and often are, protected by Tree Preservation Orders. Protection is also given if they are located in a Conservation Area. When necessary, the Council will use Tree Preservation Orders as a means of protection if their loss would be significant in landscape, visual amenity or nature conservation terms. In addition, the Hedgerow Regulations 1997 afford special protection to substantial hedgerows which are considered to be 'irreplaceable' due to their age, and their archaeological, historical, landscape or wildlife significance.
- 8.11 Other trees, woodlands and hedgerows worthy of protection are similarly sensitive to the impacts of development, either directly through their removal or indirectly through the impacts of construction. Due to the contribution they can make to the quality of development, they should always be considered at the outset of the design process, and retained and protected, wherever possible.
- 8.12 Where their loss is unavoidable they should be replaced with suitable new planting either within the site or in the locality, if this is more appropriate. Development can make a positive contribution to the local tree and hedgerow resource through new planting or the restoration and improved management of existing features. Planting schemes which use species and varieties native to the area, of local provenance wherever possible, and that maximise the benefits to the local landscape, wildlife, and air quality will be preferred.



Policy SDC2: Trees, Woodland and Hedgerows

1. Proposals for development should provide for the protection and integration of existing trees, woodland and hedgerows for their wildlife, landscape, and/or amenity value.
2. Development that would result in the unacceptable loss of, or damage to, or threaten the continued well-being of protected trees, hedgerows, orchards, veteran trees or woodland (including those not protected but considered worthy of protection), will not be permitted.
3. Where trees, woodland or hedgerows will be lost to development and this is considered to be acceptable, suitable replacement planting on-site where it is practicable to do so, or off-site if not, will be required.
4. New planting which uses species and varieties native to the area, of local provenance wherever possible, and that maximise the benefits to the local landscape, wildlife and air quality will be preferred.

Landscape Character

- 8.13 The character of the District's landscape is one of contrast and diversity. The western part of the District extends up to and into the edge of the Peak District National Park, and comprises a highly scenic landscape with rolling hills, river valleys, extensive woodland and small attractive villages, including some of the finest Derbyshire landscape outside the National Park. In contrast the eastern part of the District contains larger settlements and alongside evidence of their industrial past are large areas of attractive countryside where the landscape has its own distinctive local character.
- 8.14 The beauty and diversity are important both to the quality of life of local communities and the economic prosperity of the District as a whole often being a central factor in attracting business and tourism. National policy states that valued landscapes should be protected and enhanced⁴¹, and requires Local Plans to



- include criteria based policies against which proposals for any development on or affecting local landscape areas will be judged⁴².
- 8.15 The characteristics of the District's landscape are assessed in detail in 'The Landscape Character of Derbyshire' which is supported by the 'Derbyshire Historic Landscape Characterisation Study'. The assessment systematically classifies the landscape into distinctive areas based on the interaction between a range of factors including topography, geology, ecology, soils, land use and tree cover. The Derbyshire Landscape Character Area Assessment subdivides

⁴¹ NPPF(2012), paragraph 109, 1st bullet.

⁴² NPPF(2012), paragraph 113.

the district into 12 Landscape Character Types (LCT's) over 4 National Character Areas (NCA's) (see Table 8.1 & Figure 8.1).

- 8.16 A part of the far west of the District lies within the Peak District National Park which has its own separate landscape character assessment. If the special qualities of the National Park are to be protected, careful control needs to be exercised over development outside, but which may have a harmful impact upon it. Proposals should therefore take account of the adopted Peak District National Park Authority Landscape Strategy and Action Plan, and will not be permitted when it is considered to be harmful to the valued characteristics of the National Park, or its statutory purposes namely to conserve and enhance its natural beauty, wildlife and cultural heritage, and to promote opportunities for the understanding and enjoyment of the special qualities of national parks by the public. Where proposals would result in conflict between the two purposes, the council will attach greater weight to the former.



- 8.17 Using the approach of Landscape Character Assessment, Derbyshire County Council has identified 'Areas of Multiple Environmental Sensitivity' (AMES) based upon three key indicators - ecology, historical landscape and visual unity.
- 8.18 The Study identifies Areas of 'Primary Sensitivity'⁴³, considered to be the most sensitive areas of landscape, and which are most likely to be negatively affected by change or development. In these areas, there will be a strong focus on the protection and conservation of their environmental assets. Areas of 'Secondary Sensitivity' are still considered to have environmental sensitivities but are potentially weaker in one area. In these areas, the focus will be on management (conservation and enhancement), maintaining those features of existing value but also addressing those in decline (e.g. through landscape restoration and habitat creation). In North East Derbyshire, the AMES study identifies the key areas of primary sensitivity in the Peak Fringe. In addition within this landscape context Derbyshire County Council has prepared a tranquillity map for Derbyshire⁴⁴. This map which expresses locally the spread of tranquillity will be a material consideration when determining proposals under Policy SDC3.
- 8.19 For proposals where it is considered the development would be sensitive in the landscape the council will expect applicants to submit a Landscape and Visual Impact Assessment with planning applications; in order to demonstrate how the development would impact upon the local and wider landscape.

⁴³ Where a Landscape Description Unit is recorded as significant for all three of the data sets (ecology, historic landscape environment and visual unity) then it is considered to be of Primary Sensitivity. If a Landscape Description Unit is recorded as being significant in 2 data sets than it is considered to be of Secondary Sensitivity.

⁴⁴ Technical Support Document 2: Tranquillity (2013).

Table 8.1: Landscape Character Types

National Character Area	Landscape Character Type	Key Colour
Dark Peak	Enclosed Moorland	
Derbyshire Peak Fringe & Lower Derwent	Enclosed Moors & Heaths	
	Wooded Slopes & Valleys	
	Wooded Farmlands	
	Riverside Meadows	
Nottinghamshire, Derbyshire & Yorkshire Coalfield	Wooded Hills & Valleys	
	Estate Farmlands	
	Wooded Farmlands	
	Coalfield Village Farmlands	
	Coalfield Estatelands	
	Riverside Meadows	
	Urban	
Southern Magnesian Limestone	Limestone Farmlands	

Figure 8.1: Landscape Character Map of Derbyshire

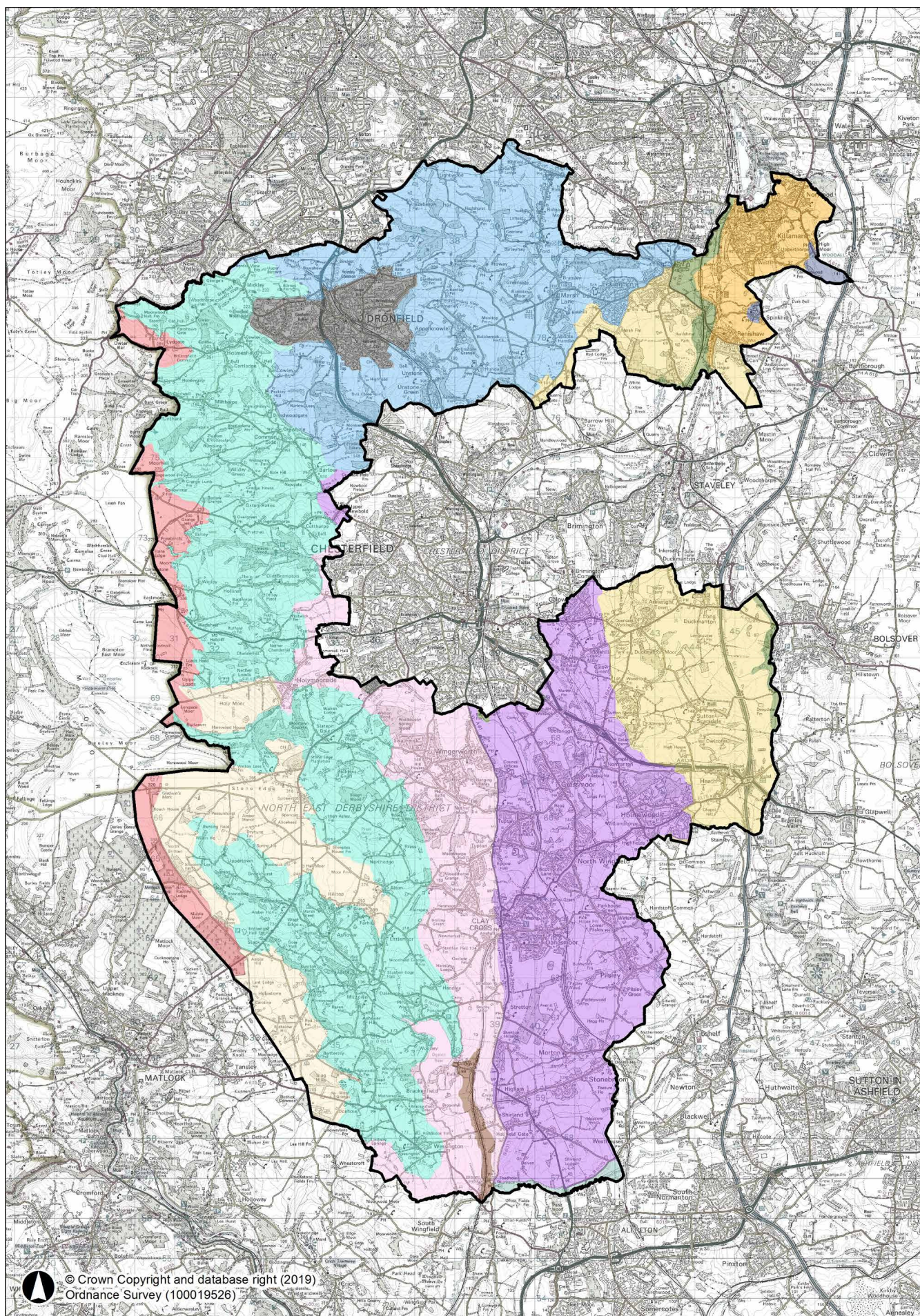
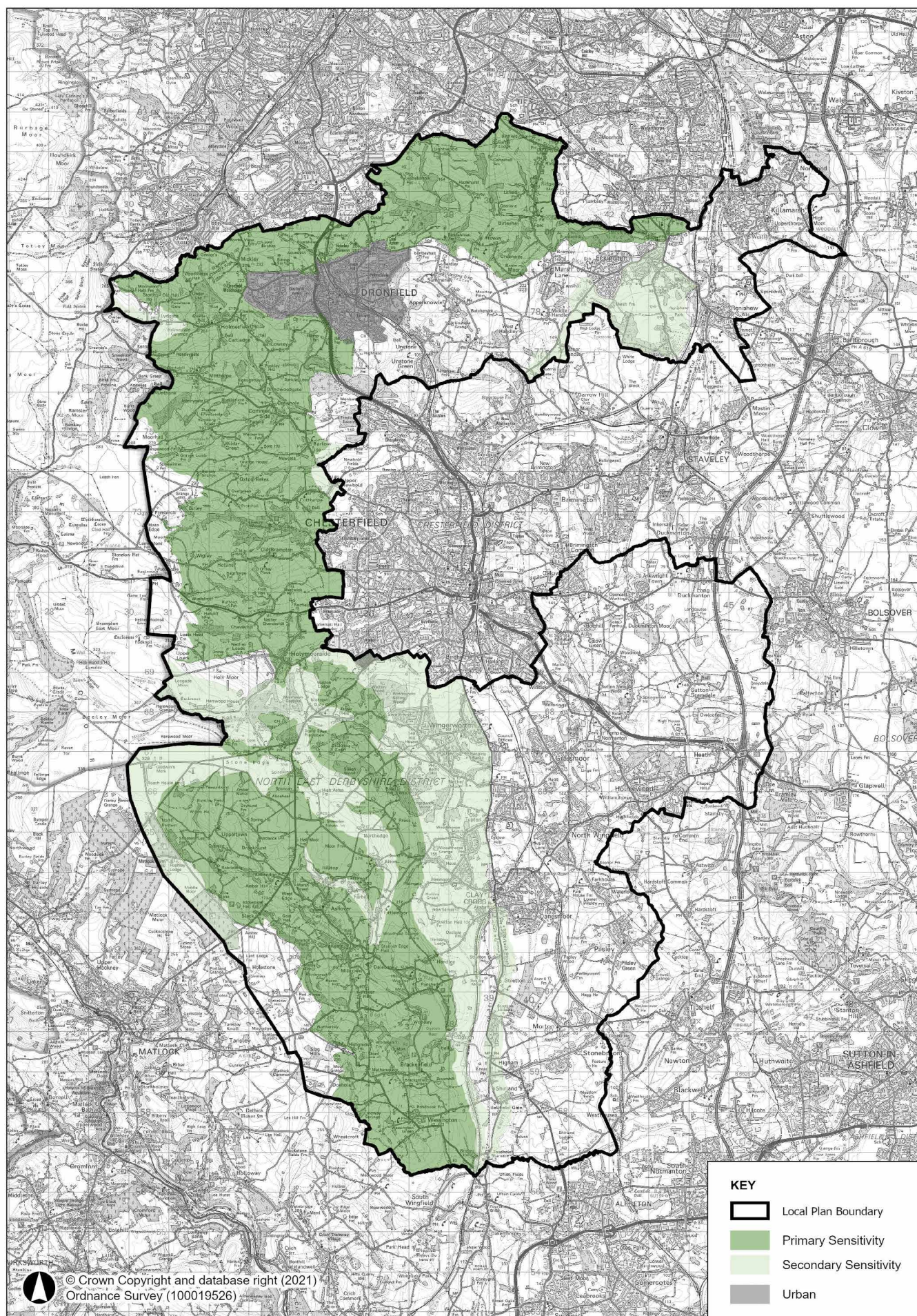


Figure 8.2: Areas of Multiple Environmental Sensitivity



Policy SDC3: Landscape Character

1. Proposals for new development will only be permitted where they would not cause significant harm to the character, quality, distinctiveness or sensitivity of the landscape, or to important features or views, or other perceptual qualities such as tranquillity.
2. Development proposals should be informed by, and be sympathetic to, the distinctive landscape areas identified in the Derbyshire Landscape Character Assessment and the Areas of Multiple Environmental Sensitivity (AMES), or any successor document(s), and contribute, where appropriate, to the conservation and enhancement, or restoration and re-creation of the local landscape taking into account its wider landscape character type.
3. Planning permission will not be granted for development outside the Peak District National Park which would damage or significantly affect the National Park purposes or its valued characteristics.

Biodiversity and Geodiversity

8.20 Biodiversity is defined as the variety and diversity of life-forms and the role that they play in the natural world. Biodiversity includes all species of plants and animals and the natural systems that support them. Geodiversity is the variety of rocks, minerals, fossils, landforms, sediments and soils, together with the natural processes which form and alter them.

- 8.21 The NPPF states that the planning system should contribute to and enhance the natural and local environment by:
- Recognising the wider benefits of ecosystems services (i.e. in terms of food, water, and recreation, for example);
 - Minimising the impact of development on biodiversity, and
 - Providing net gains in biodiversity, where possible, so as to contribute to halting the overall decline in biodiversity.⁴⁵

8.22 The Plan area has a rich biodiversity which comprises a network of nationally, regionally, and locally designated sites important for their nature conservation and geodiversity value. It contains:-

- 7 Sites of Special Scientific Interest (SSSI) - which are nationally recognised for their wildlife and geological interest;
- Just over 200 Local Wildlife Sites (LWS) - which are the most important non-statutory wildlife sites in Derbyshire and cover a wide variety of habitats such as ancient woodland, grassland and wetlands - the value of which is recognised in the Lowland Derbyshire Biodiversity Action Plan. The Action Plan identifies the most important species and habitats in Derbyshire outside the Peak Park and is a key document to underpin the application of Policy SDC4.

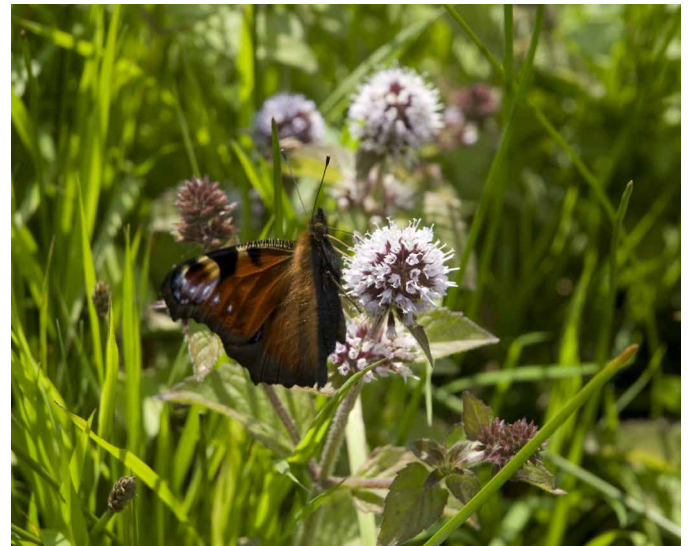
⁴⁵ NPPF(2012), paragraph 109, 2nd & 3rd bullet points

- 2 Local Nature Reserves (LNR's) - Williamthorpe Ponds on the edge of Holmewood, and The Green at Wessington - which have been declared for the benefit of both people and wildlife, and offer convenient access for people to enjoy and learn about nature. Both are also LWS's; and
- A number of Regionally Important Geological Sites (RIGS) identified by Derbyshire County Council as the most important places for geology and geomorphology outside statutorily protected sites such as SSSI's. Like wildlife sites they are important as an educational, historical and recreational resource.

8.23 In order to prevent the degradation of the district's biodiversity and geodiversity resource, designated sites will be protected, and development proposals must demonstrate they do not cause adverse impacts, whilst contributing to their qualitative improvements through better access or on-site improvements. Proposals for development should seek to conserve biodiversity and geodiversity, and actively enhance biodiversity in order to provide quantifiable net gains wherever possible and avoid a net loss in biodiversity. The Council will therefore seek to ensure new development maintains, enhances and extends the district's ecological network and avoids the fragmentation and isolation of natural habitats. Maintaining and planting trees and creating new habitats through green infrastructure will be supported.

8.24 In addition, outside the Plan area are designated sites of international importance for nature conservation including the Peak District Moors Special Protection Area (SPA), the South Pennine Moors Special Area of Conservation, and the Peak District Dales SAC. These SPA's and SAC's are afforded the highest level of protection in order to conserve the priority habitats and species that exist within them. Although falling outside the Plan area the council has a duty to ensure that all the activities it regulates have no adverse effects on the integrity of these internationally designated sites.

8.25 Policy SDC4 therefore applies to all development proposals within the district affecting biodiversity and geodiversity including sites of international importance for nature conservation located outside the district. All statutory and non-statutory sites within the Plan area covered by Policy SDC4 are shown on the Policies Map.



Policy SDC4: Biodiversity and Geodiversity

The Council will protect and enhance the District's natural environment and seek to increase the quantity and quality of biodiversity and geodiversity by:

- a. Protecting designated national and local sites of nature conservation importance and geodiversity value including SSSI's, LNR's, LWS's, and RIGS's as shown on the Policies Map. Development proposals affecting designated sites will not be permitted unless it can be demonstrated that significant harm can be avoided, mitigated, or as a last resort, compensated for by the development. Any proposed development that would be likely to adversely affect designated SSSI's will not be permitted.
- b. Promoting the qualitative enhancement of all sites of biodiversity and geodiversity value (including designated SSSI's, LNR's, LWS's and RIGS's, and other sites with protected and priority species) by supporting measures that improve wildlife habitat connectivity and create new wildlife habitats. Such measures could include maintaining trees, native vegetation and improving green infrastructure for the benefit of wildlife.
- c. Not permitting development which would adversely affect the integrity of designated sites of international importance for nature conservation (SPA's and SAC's) located outside of the Plan area; except for imperative reasons of overriding public interest, and only where adequate compensatory measures are provided.

The Historic Environment

- 8.26 National planning guidance advises that local planning authorities should set out a positive strategy for the conservation and enjoyment of the historic environment, including heritage assets most at risk through neglect, decay or other threats.
- 8.27 North East Derbyshire is fortunate to have a wealth of heritage assets which are a unique and irreplaceable resource and valued by local communities throughout the District. An overview of the historic environment is set out in the 2012 Historic Environment Study and the subsequent addendum to it. Statutory designation requires the assessment of the importance of specific heritage values such as those relating to architectural or historical interest; but decisions about day to day management need to take account of all the values that contribute to significance. Moreover, all aspects of significance, including aesthetic and communal values should influence decisions about the historic environment.
- 8.28 The Derbyshire County Council maintained Historic Environment Record also contains a large number of known non-designated assets that contribute to the local distinctiveness of the district. It is important to recognise that these heritage assets are an irreplaceable resource which should be conserved in a manner appropriate to their significance. The Council believes that a positive and proactive strategy should be established for the conservation, enjoyment and if possible enhancement of the historic environment which includes both designated and non-designated heritage assets, and industrial heritage, including those considered most at risk of neglect, decay and other threats.

Conservation Areas

- 8.29 Conservation areas are those parts of the district which have been recognised as having special architectural or historic interest which is worthy of preservation and enhancement. When considering planning applications for developments within them, a duty is placed on the local planning authority to pay special attention to the desirability of preserving or enhancing the character or appearance of the conservation area.
- 8.30 Designation of an area as a conservation area does not mean that no change or development will be allowed, but rather that new buildings and uses should respect

the established character of the area. In making judgements about the impact of development on the significance of a conservation area the council will use its Conservation Area Appraisal where one has been prepared. Such an appraisal will have considered those features that make a positive or negative contribution to the significance of the conservation area and will be a useful tool to identify the opportunities for beneficial change or the need for protection within them. Policy SDC5 aims to ensure that conservation areas do not stifle development, but that new development complements the existing character of these special townscapes.

Policy SDC5: Development within Conservation Areas

1. Development proposals within or impacting upon Conservation Areas will be permitted where they preserve or enhance the character or appearance of the area and its setting.
2. Development proposals will be considered in relation to how well the design and location of the proposal has taken account of:
 - a. The development characteristics and context of the area, in terms of important buildings, spaces, landscapes, walls, trees, and views within, into or out of the area; and
 - b. The form, scale, size and massing of nearby buildings, together with materials of construction.

Listed Buildings

- 8.31 Listed Buildings are those that appear on the Secretary of State's 'List of Buildings of Special Architectural or Historic Interest', prepared by the Department for Digital, Culture, Media and Sport. In England the statutory body responsible for maintaining 'the list' is Historic England. The National Heritage List for England (NHLE) is the only official and up to date database of all listed and designated heritage sites.
- 8.32 Listed buildings are grouped into three grades, indicating their relative importance. In the district there are just under 500 listed buildings with 2% being Grade I, 5% being Grade II* (two-star) and 93% being Grade II Listed. All three grades are subject to the same legislation.
- 8.33 The listing of a building confers on it a significant degree of protection and special attention must be paid to maintain the character of listed buildings. Permission, in the form of Listed Building Consent, is also required for any works of demolition, extension, or alteration which affect the character of the building as one of special architectural or historic interest. This Consent is entirely separate from any need to obtain planning permission.

Policy SDC6: Development affecting Listed Buildings

1. Proposals for alterations to or changes of use of a listed building will be supported where they preserve the significance of the heritage asset and its setting including impacts on the character, architectural merit or historic interest of the building.
2. Proposals should use materials, layout, architectural features, scale and design that respond to and do not detract from the listed building.
3. Proposals which allow for viable uses that are compatible with the conservation of the fabric of the building and its setting will generally be supported.

Scheduled Monuments and Archaeology

- 8.34 The District contains a wealth of archaeological remains which constitute an irreplaceable resource for, and record of, the District's evolution. If properly protected and managed they will contribute greatly to understanding the past, and contribute to the district's tourism and recreational potential. To protect the integrity of archaeological remains, preservation should take place in situ wherever possible.
- 8.35 The Derbyshire Historic Environment Record (HER) is maintained and updated by Derbyshire County Council and contains details of all known sites, structures, landscapes or other areas of archaeological interest in North East Derbyshire. The HER should be consulted on all planning applications within or near to areas of known archaeological interest.
- 8.36 The District also includes a number of Scheduled Monuments. These are remains, buildings or structures of national importance protected under the Ancient Monuments and Archaeological Areas Act, 1979. Any work affecting a monument will require Scheduled Monument Consent from Historic England, in addition to any permissions or consents required from the Council under the Planning Acts.
- 8.37 Policy SDC7 provides policy at the local level and aims to ensure that these important sites are preserved and where possible enhanced.

Policy SDC7: Scheduled Monuments and Archaeology

1. Proposals for development that affect heritage assets with archaeological interest will be permitted provided that it can be demonstrated that the development will not be harmful to the archaeological interest of the heritage assets or their settings, having regard to their significance.
2. Where development proposals are likely to affect non-designated heritage assets of archaeological interest, the developer should submit sufficient information to allow the significance of the asset and the potential impact of the proposals thereon to be understood. In some cases this will require archaeological desk based assessment and/or field evaluation of the site which should be submitted as part of the development proposal and undertaken by a suitably qualified archaeologist.
3. Preservation in situ of archaeological sites or remains is the preferred option. However, where assessment shows preservation in situ is not justified provision should be made for excavation and recording before demolition, disturbance or removal takes place.

Registered Parks and Gardens

8.38 In addition to buildings and archaeological sites, parks and gardens make a contribution to the historic environment. One such area included on Historic England's Register of Historic Parks and Gardens of special historic interest is the park and gardens associated with Renishaw Hall.

8.39 Policy SDC8 aims to ensure that this asset is preserved, whilst development proposals which conserve, and opportunities to enhance the character, appearance and significance of such assets are treated positively.

Policy SDC8: Registered Parks and Gardens

1. Proposals for development that affect Renishaw Hall Registered Park and Garden including its setting will be granted provided that they would conserve or enhance the historic layout, character, designed features and principal components which contribute to its significance.
2. Proposals which seek to restore or reinstate its historic landscape features to original designs, using appropriate evidence, or better reveal its setting will be encouraged

Non Designated Local Assets

8.40 In addition to the above designated historic assets the district contains a number of buildings, structures and facades that, whilst not nationally considered suitable for statutory listing or having the protection conferred by being situated within a conservation area, nonetheless have local historic or architectural importance to warrant retention and protection.

8.41 The Government recognises such heritage assets as noted in its guidance (NPPF), and the Council will aim to identify and establish a list of locally important buildings and structures.

8.42 Policy SDC9 below aims to ensure that these assets are preserved, whilst development proposals which conserve and take the opportunity to enhance the character, appearance and significance of such assets are treated positively.

Policy SDC9: Non-designated Local Heritage Assets

1. Proposals for development that affect a non-designated local heritage asset will be permitted provided that they positively sustain or enhance the significance of the asset, its features, character and setting.
2. Proposals involving the loss of or harm to, a local heritage asset will be subject to a balanced assessment taking account of the significance of the asset and the scale of the harm or loss.

Mitigating and Adapting to Climate Change

Decentralised, Renewable and Low Carbon Energy Generation

- 8.43 Climate change is now a widely accepted scientific fact. The Government has reviewed the delivery of national energy policies and has recognised that there are two major long term challenges to tackling climate change and delivering secure, clean energy at an affordable price. Renewable energy sources are key to a sustainable, economic and environmental future. The development of clean sources of electricity is essential to cutting down carbon dioxide emissions which is a major contributor to climate change and global warming.
- 8.44 The 2008 Climate Change Act was published with the aim of encouraging Britain's transition to a low carbon economy, with this to be done through unilateral legally binding emissions reduction targets.
- 8.45 National guidance sets out the Government's commitment to facilitating the development of renewable energy sources, but recognises that this must be consistent with protecting the local as well as global environment. In particular, care should be taken in assessing proposals for renewable energy projects in sensitive, designated areas.
- 8.46 The North East Derbyshire Low Carbon & Renewable Energy Study (2011) assessed the potential for renewable energy technologies, and identified where there are significant constraints to particular types of renewable energy. In terms of wind energy the Study found that the practical deployable potential for wind energy is limited principally by the commercial value of a very small number of available sites in the district. Based upon the evidence in the Study the plan does not therefore identify suitable areas for wind energy development and such proposals will be considered against the Government's latest policy guidance including any relevant policies dealing with onshore wind energy in any neighbourhood plans.
- 8.47 The Study also identifies areas of potential for district heating, based on the towns and in close proximity to new major development sites. The Council recognises that there are variety of other ways to reduce carbon emissions and that different renewable and low carbon energy technologies will suit different parts of the District and different types of development. In some cases better CO2 savings are achieved at less cost by reducing the overall energy use of development through its design and layout rather than by generating energy use from renewable energy technologies; this could also lead to the savings being more cost effective. This issue is addressed in Policy SDC12 (High Quality Design and Place-Making).



Policy SDC10: Decentralised, Renewable and Low Carbon Energy Generation

1. Proposals for the generation of renewable energy including biomass power generation, combined heat and power, and other micro generation systems will be permitted where either individually or cumulatively with other renewable energy development, there would be no significant adverse effects on:
 - a. The visual amenity and character of the area including landscape and visual impacts;
 - b. The amenity of local residents, in terms of noise, dust, odour, reflected light, traffic or visual intrusion;
 - c. The ecology of the area, in particular in relation to protected species and to any sites of biodiversity value, ancient woodland, and veteran trees;
 - d. The historic environment, including the effect on the significance of heritage assets and their setting and important views associated with valued landscapes and townscapes; and
 - e. Airport radar and telecommunications systems.
2. In determining planning applications for renewable energy generation, significant weight will be given to the achievement of wider environmental and economic benefits.
3. Proposals should include details of associated developments including access roads and ancillary buildings; and transmission lines which should be located below ground wherever possible in order to reduce the impact on the open countryside. Planning applications will also need to include a satisfactory restoration scheme which will be implemented following decommissioning.
4. Major new developments will be expected to connect to or be designed to connect in the future to district or community heating networks where appropriate. Where no district heating scheme exists or is proposed in the proximity of major development the potential for developing a new scheme on site should be explored and pursued where feasible.
5. Developments along water courses will be expected to investigate the feasibility of using small scale hydro power taking into account flood risk.

Flood Risk

8.48 The water environment is vital for its contribution to the District's biodiversity and is important to the economy and to the quality of life of people both within and outside the District. Development must take place within environmental limits and carefully consider how the water environment will be affected. How much waste water can be safely disposed of, the protection of vulnerable aquifers and the prevention of increased flooding are key considerations in developing sustainable communities.

8.49 National policy is clear that planning policy should minimise vulnerability and provide resilience to impacts arising from climate change, and avoid inappropriate development in areas at risk of flooding. As a principle therefore, inappropriate development in areas at risk of flooding should be avoided by directing development away from areas at highest risk. Where there is the possibility of any flood risk to a proposed development site, or the potential for flood risk impact on other sites, a site-specific Flood Risk Assessment will be required.

8.50 The Strategic Flood Risk Assessment (SFRA) carried out in 2009 classified all land within the District into one of four Flood Zones 1, 2, 3a and 3b. This classification has been undertaken at the strategic level and is intended primarily for guidance purposes in the overall planning process. It provides an overview of the areas susceptible to flooding and the risk posed by flooding from rivers, groundwater and surface water runoff. It assesses the risk as it stands today, as well as the increased risk from a changing climate. The SFRA allows us to make more informed decisions about potential development sites in the Local Plan. Strategic



decisions can therefore be made on where development is most appropriate in relation to flood risk. Significant flood risk exists to the north and west of Killamarsh and to the east of Eckington. A smaller area of flood risk exists in Dronfield and to the west and east of Clay Cross. Constraints also exist to the west of North Wingfield and Grassmoor and to the south of Wingerworth. Derbyshire County Council is responsible for coordinating the management of flood risk across Derbyshire and is a Lead Local Flood Authority (LLFA). The Environment Agency has flood risk management responsibilities over sections of main river such as the River Rother, River Drone, River Doe Lea, River Amber, Alfreton Brook, River Erewash and River Meden.

8.51 The Environment Agency is responsible for licensing abstractions, pollution control, and the quality of the water environment, whilst Yorkshire Water and Seven Trent are responsible for water services and sewage treatment across the District. Water Cycle Studies aim to identify tensions between growth proposals and environmental requirements in relation to water and identify potential solutions to addressing them, examining water

supply, sewage disposal and water abstraction. A Water Cycle Study Scoping and Initial Study Report was carried out in 2010 for the District alongside Bolsover District and Chesterfield Borough, to ensure that the growth envisaged for the District can be supported and is not hindered by water infrastructure and resources. This has been reviewed in collaboration with water infrastructure providers as part of the work on the Infrastructure Study and Delivery Plan.

- 8.52 The Council's approach to water management complements 'The Humber River Basin Management Plan'. In particular the Local Plan has an important role in the key actions of promoting water efficiency, Sustainable Urban Drainage Systems (SuDS), re-use of water and the value of green infrastructure. The Council will require developers to demonstrate that their surface water drainage proposals, particularly for large sites, are appropriate and adequate for the development and will not increase the flood risk to land and property either upstream or downstream of the development site. SuDS are a desirable means of achieving this. Hard surfacing resulting from development (including roofs) reduces the ability of the land to absorb and/or store water, it is therefore important that SuDS and other methods are utilised for water management. This will include grey water recycling, rainwater harvesting, green roofs, permeable paving, infiltration areas and soakaways. Such measures should supplement green infrastructure networks, contribute to mitigating climate change and flooding, and improve biodiversity and amenity value, as an alternative or complimentary to hard engineering. New development must address the issue by managing runoff from new

developments to hold back rainfall from reaching the drainage and river systems too quickly. Run off rates for development on greenfield sites should not be exceeded, and where possible should be reduced from existing. Run off rates for development on previously developed land should be reduced from the current rate of surface water runoff where feasible. As of April 2015, the surface water elements of the Flood Risk policy became the responsibility of Derbyshire County Council as the LLFA.

Foul Water Drainage

- 8.53 Policy SDC11 requires applicants to ensure that adequate foul water drainage systems are in place and that sufficient capacity exists within the sewer network to cater for proposed development.
- 8.54 Severn Trent Water and Yorkshire Water are the companies responsible for taking away wastewater from homes and businesses across the district. The council relies on feedback from them in order to ascertain whether sufficient capacity exists within the network to accommodate new development or where it may be necessary to coordinate development in line with any upgrading work. This will be dependent upon the scale and location of development proposed and developers are encouraged to engage with the relevant water company at the earliest opportunity. Should the relevant water company advise that connection to the public sewerage system is not possible, alternative on-site treatment methods and septic tanks associated with a new development will be permitted subject to the satisfaction of the Environment Agency.

Policy SDC11: Flood Risk and Drainage

1. All development proposals will be required to consider the effect of the proposed development on flood risk, both on-site and off-site, commensurate with the scale and impact of the development. This should be demonstrated through a Flood Risk Assessment (FRA), where appropriate. Development will not be permitted unless:
 - a. If within the functional floodplain (Flood Zone 3b), it is water compatible or essential infrastructure;
 - b. In Flood Zones 2 and 3a, it passes the Sequential Test, and if necessary the Exceptions Test, as required by national policy;
 - c. It can be demonstrated through an FRA⁴⁶ that the development, including access, will be safe, without increasing flood risk elsewhere and where possible will reduce flood risk overall;
 - d. There is no net increase in surface water runoff for the lifetime of the development on all new development. Surface water runoff should be managed at source wherever possible, avoiding disposal to combined sewers;
 - e. Part of the development site is set aside for surface water management, and uses measures to contribute to flood risk management in the wider area; and
 - f. The development incorporates a Sustainable Drainage System (SuDS) to manage surface water drainage, in accordance with national SuDS standards, unless it is proven that SuDS are not appropriate in a specific location. Where SuDS are provided, arrangements must be put in place for their whole life management and maintenance.
2. Development will only be permitted where adequate foul water treatment and drainage infrastructure currently exists, or can be made available to serve the development unless the developer can demonstrate acceptable alternative private solutions.
3. The Council will seek opportunities to remove problems from the drainage network and increase the capacity of the floodplain, wherever this can be achieved safely, in connection with new development.
4. Where improvement works are required to ensure that the drainage infrastructure can cope with the capacity required to support proposed new development, developer contributions may be required in accordance with Policy ID1 (Infrastructure Delivery and Developer Contributions).

⁴⁶ In Flood Zone 1, and FRA will only be required for sites over 1ha.

Contributing to Successful Development

High Quality Design and Place-Making

- 8.55 Successful places tend to be those that have a distinct identity or sense of place. Good design and the creation of attractive places are not just about how buildings look. It is also about taking the opportunities available for improving the character and quality of the area as well as the way it functions as a place. Respect needs to be given to local character and context, and the quality of the buildings and the spaces around them, both public and private.
- 8.56 Good design can help to improve quality of life, health, equality of opportunity and economic growth. All development should therefore contribute positively to the creation of well-designed buildings and spaces as well as aiding resilience to the impacts of climate change.
- 8.57 Policy SDC12 sets out the design criteria to be taken into account to ensure quality, distinctive, and functional design and to ensure developments are satisfactorily assimilated within the existing local context reinforcing local character and a sense of local identity. It also aims to ensure that development through its design meets the challenges of climate change. This set of criteria is not intended to stifle originality, but rather forms a broad framework within which sustainable design concepts can be developed.
- 8.58 In relation to housing densities, the Council applies 30 dwellings per hectare, assuming 90%, 80% or 70% of site developable area⁴⁷, as a starting point. However, it is acknowledged that housing densities may vary in different locations. The Council therefore supports a flexible approach to densities, whereby the characteristics of the site and surrounding area provide the basis for determining the most appropriate density, whilst at the same encouraging optimising densities in town centres and other locations with good public transport.
- 8.59 The policy should also be read in conjunction with the guidance contained within the Successful Places: A Guide to Sustainable Housing Layout and Design document which will be updated and adopted as a Supplementary Planning Document by the Council. This document primarily supports the creation of locally distinctive, well designed places to live. In particular it sets out the design process which is expected to be followed in order to demonstrate proposed development is based upon a clear appreciation of the site and its wider context.
- 8.60 On major schemes and/or those located within particularly sensitive locations the Council may seek input from specialist urban designers at an early stage in the design process. It may also seek to refer scheme designs for independent assessment through a Design Review Panel(s), and to use Building for Life 12 as a tool to improve design elements of development. Where relevant the Council will expect the recommendations made by the Council's appointed urban designer and/or a Design Review Panel to have been taken into consideration in the final scheme design.

⁴⁷ 90% for sites between 0.65ha and 5.99ha; 80% for sites between 6ha and 10ha; and 70% for sites above 10ha.

Policy SDC12: High Quality Design and Place-Making

All new development should be of a high quality design and make a positive contribution to the quality of the local environment. Proposals for development will only be permitted provided that they:

- a. Respond positively to local character and context to preserve and, where possible, enhance the quality and local identity of existing communities and their surroundings;
- b. Provide an integrated network of public open space and green and blue infrastructure which connects with existing green/blue infrastructure wherever possible;
- c. Create good design which is well-related to its site and surroundings in terms of its layout, form, height, massing, scale, plot size, elevational treatment, materials, streetscape, and rooflines which effectively integrate buildings into their local setting;
- d. Include boundary treatments and landscaping which are well designed and create strong physical features which provide visual and functional separation from the site's surroundings. Where appropriate, effective landscape buffers will be required which create appropriate transition between urban and rural environments;
- e. Protect the amenity of existing occupiers and create a good quality of amenity for future occupants of land or buildings including in relation to privacy, overlooking, overshadowing and/or any overbearing impacts;
- f. Create well-connected places that are easy to move around and which give priority first to pedestrian and cycle movements; and second, wherever possible, facilitate access to public transport;
- g. Provide streets and spaces within a well-considered public realm which are legible and shaped by recognisable landmark features, and which are overlooked, active, and promote inclusive access;
- h. Make efficient use of land by optimising housing densities, particularly in and around town centres and other locations where there is good access to frequent public transport services, whilst reflecting the particular characteristics of the site and its surrounding area;
- i. Maintain or enhance important existing site features of landscape, ecological, heritage or amenity value as integral elements of the design;
- j. Include measures to promote environmental sustainability, including those which address energy and water efficiency where practicable and viable to do so;
- k. Make provision for private amenity space, storage and recycling facilities, and vehicle and cycle parking;
- l. Incorporate measures to minimise opportunities for crime and anti-social behaviour; and
- m. Create good design which can be accessed by, and is inclusive for all users.

Environmental Quality

- 8.61 Planning has an important role to play in making sure that new development does not have, and is not at risk from, adverse environmental effects. Pollution can occur in terms of water, air, noise, light and land. Ensuring a safe environment is a prerequisite for safe and healthy communities and quality of life.
- 8.62 The history of North East Derbyshire as a location for mineral extraction and heavy engineering has sometimes left a legacy of land that has been affected by contamination from its former use. It is therefore important that the quality of both groundwater and surface water supplies are protected from contamination. It is also important to locate, design and manage new development so as not to give rise to unacceptable impacts on sensitive land uses or features. New sensitive land uses should not be located where they may be affected by the otherwise acceptable effects of established ones.

Air Quality

- 8.63 Clean air is an essential element of a good quality life. The existing, and likely future, air quality in an area should be considered through Local Plans. It may also be material in considering individual planning applications where air pollution considerations arise.
- 8.64 The National Air Quality Strategy aims to ensure a level of air quality which poses no significant risk to health or quality of life. Where there is a likelihood of a national air quality objective being exceeded the Council has to declare an Air Quality Management Area (AQMA) and prepare an Air Quality Action Plan (AQAP)

setting out the measures that will be put in place in pursuit of air quality objectives. Whilst there are currently no AQMA's in the district, parts of the East Sub-area have greater levels of nitrogen dioxide and PM10 than other areas of the District, due to exhaust emissions from traffic on the M1 Motorway.

- 8.65 In addition to reducing impacts on human health, development should not result in the deterioration of protected habitats and species. These include Special Protection Areas (SPAs) and Special Areas of Conservation (SACs) located outside of the district which are jointly included in an EU wide network of sites called Natura 2000 sites. Development proposals that are likely to increase air pollution in the vicinity of a Natura 2000 site will need to undergo an assessment under the Habitats Regulations 2010 in order to determine its likely impacts on the sites and habitats in question.

Noise and tranquillity

- 8.66 Noise pollution is noise created by man-made sources which is excessive, causes disturbance or annoyance, and can affect wildlife and sensitive areas, including areas known for their tranquillity. It often occurs as a result of industrial operations, transportation, or roads. National Policy⁴⁸ and the NPPF acknowledge that good planning should aim to prevent the adverse effects of noise from being unacceptable, both in identifying locations for new noise sensitive and noise generating development.

Light Pollution

- 8.67 Light pollution is artificial light that is allowed to illuminate areas that are not intended to be lit. The intrusion of

⁴⁸ The Noise Policy Statement for England provides clarity on current policy and practice for the management of noise.
https://www.gov.uk/government/uploads/system/uploads/attachment_data/file/69533/pb13750-noise-policy.pdf

overly bright or poorly directed lights can cause glare, wasted energy, have impacts on nature conservation, and affect people's right to enjoy their property. It can also severely affect views of the night sky. The NPPF is clear that planning policies should limit the impact from light pollution on local amenity, intrinsically dark landscapes, and nature conservation, primarily through promoting and requiring good quality design in order to cut down on light pollution and the impacts that it causes.

- 8.68 The Council will seek to where possible reduce light pollution by encouraging the installation of appropriate lighting and only permitting lighting proposals which would not adversely affect amenity or public safety. Lights should be appropriately shielded, directed to the ground and sited to minimise any impact on adjoining areas, and of a height and illumination level of the minimum required to serve their purpose.

Soil

- 8.69 It is government policy to protect and enhance the natural environment by preventing both new and existing development from being adversely affected by unacceptable levels of soil pollution. Soil is essential for achieving a range of important ecosystem services and functions including food production, carbon storage and climate regulation, water filtration and flood management and support for biodiversity and wildlife. Soil is a finite resource, and it needs to be conserved and managed in a sustainable way.
- 8.70 Some of the most significant impacts on soils occur as a result of activities associated with construction activity. A Code of Practice⁴⁹ has been developed by Defra to assist anyone involved in the construction sector to better protect the soil resources with which

they work and in doing so minimise the risk of environmental harm. The council strongly encourages developers to have regard to the practical guidance in the Code of Practice.

Water Quality

- 8.71 The Water Framework Directive (WFD) is the primary European legislation for matters relating to the water environment and sets out how water bodies will be managed within the context of River Basin Districts. A high proportion of the rivers in the North East Derbyshire District are headwaters or tributaries of larger rivers and are highly sensitive to water quality impacts. As they are headwaters that ultimately flow into other catchments, water quality in this area has the potential to affect water bodies over a much larger area.
- 8.72 A joint Water Cycle Study Scoping Study was carried out in 2010 for North East Derbyshire alongside Bolsover District and Chesterfield Borough. The study found that development in the district may generate a need to upgrade wastewater treatment works in order to increase capacity whilst at the same time ensuring that discharges meet water quality objectives.
- 8.73 It is important to consider the protection of water resources from pollution, which can affect the District's watercourse network consisting of rivers, streams, ditches, drains and canals. However it can also affect groundwater for many decades and may be impossible to remove completely, even after the source of the pollution has been cleared up. Policy SDC13 aims to ensure water quality issues are addressed and that development helps to assist improvements in the ecological status of the district's watercourse network.

⁴⁹ Construction Code of Practice for the Sustainable Use of Soils on Construction Sites, Defra.

Policy SDC13: Environmental Quality

1. All development proposals will be assessed in relation to their impact on air, light, noise, ground and water pollution. Planning permission will be refused for any proposal where pollution would pose an unacceptable risk to public health, quality of life or the environment.
2. Development proposals will be expected to contribute positively to the water environment and its ecology, and will only be permitted where they do not adversely affect surface or ground water quality in line with the requirements of the Water Framework Directive.
3. Planning applications for development with the potential to pose a risk of pollution should be accompanied by an assessment of the likely impact of the development on environmental quality. Assessments of the risk of air, light, noise, ground or water pollution should relate to all stages of development.

Land potentially affected by Contamination and Land Instability

- 8.74 Sustainable development includes the recycling of previously developed land (brownfield sites) for new uses. This includes sites potentially affected by contamination.
- 8.75 New development can provide the opportunity to address the risks to health, and the environment associated with potential contamination and unstable land by bringing about its improvement through risk management. National guidance also advises on the need to identify, at the earliest possible stage of the planning process, whether or not a site is affected by contamination. Land can become contaminated⁵⁰ from a variety of sources, but is typically associated with some particular types of industrial and manufacturing processes, such as gas, chemical and steel works.
- 8.76 National guidance states that if there is a reason to believe contamination could be an issue, developers should provide proportionate but sufficient site investigation information (a risk assessment) to determine the existence or otherwise of contamination, its nature and extent, the risks it may pose and to whom/what (the ‘receptors’) so that these risks can be assessed and satisfactorily reduced to an acceptable level⁵¹.
- 8.77 The principle issues relating to ground instability across North East Derbyshire relate to past coal mining activity. Large parts of the District, particularly in the south and east, have been identified by the Coal Authority as being within ‘Development High Risk Areas’ due to the known occurrence of coal mining legacy issues and related hazards. In these areas, coal mining legacy issues have the potential to create unstable land and risks to surface development⁵². It is therefore necessary to demonstrate how new development proposals will be safe and stable.

⁵⁰ Contaminated land can be regarded as any land which is in such a condition by reason of substances in, on, or under the land, that can cause a risk to human health, property, or the wider environment.

⁵¹ NPPG (2014), reference ID: 33-007-20140612.

⁵² Further information about the Coal Authority’s Risk Based Approach can be found on the Coal Authority’s website: <http://coal.decc.gov.uk/en/coal/cms/services/planning/strategy/strategy.aspx>

8.78 Failure to deal adequately with contamination or instability can cause harm to human health, property and the wider environment. All planning applications for new development on sites which are potentially contaminated or are underlain by potentially unstable land should be accompanied by a preliminary assessment to identify and evaluate all potential sources of contamination or ground instability and the impact on land or controlled waters relevant to the site. In some cases further detailed assessment of risk may be required prior to the determination of planning

applications. The aim is to ensure that new development is appropriate for its location and that the physical constraints on the land are taken into account at the planning application stage. Land affected by contamination often contains valuable areas of biodiversity, and historical interest. In some cases, a careful balance will need to be struck between the benefits of remediation and the harm to other interests, based on the collection and submission of sufficient information by developers at the planning application stage.

Policy SDC14: Land potentially affected by Contamination or Instability

1. Development proposals will not be permitted unless it can be demonstrated that any land potentially affected by contamination or instability will be addressed by appropriate mitigation measures to ensure that the site is suitable for the proposed use, and does not result in unacceptable risks which would adversely impact upon human health, and the built and natural environment.
2. Development proposals should also demonstrate that they will not cause the site, or the surrounding environment, to become contaminated and/or unstable.
3. Where necessary, the developer will be required to carry out investigations and undertake any necessary risk management measures to ensure that any contamination or unstable land issues are addressed prior to the commencement of the development.

Hazardous Installations

- 8.79 The NPPF states that planning policies should be based on up to date information on the location of major hazards and on the mitigation of the consequences of major accidents. The Health and Safety Executive (HSE) provide planning advice to local authorities on developments which fall within the consultation zones of hazardous installations.
- 8.80 There are a number of hazardous consultation zones which affect the District, one of which relates to an operation just outside of the District. These installations are regulated by the Health and Safety Executive in accordance with Control of Major Accident Hazards (COMAH) regulations:
- Veolia Environmental Services, Norwood Industrial Estate, Killamarsh
 - Caldic UK Ltd, Holmewood Industrial Estate, Holmewood
 - Maxam UK Ltd, Holmewood Industrial Park, Holmewood
 - EPC UK Ltd, Rough Close Works, South Normanton
- 8.81 Each installation has consultation zones around it which are determined by the HSE depending upon the materials stored and the technology operated at the site; these are periodically updated by the HSE. When considering applications for development in or near a hazardous installation or pipeline regard has to be given to the most up to date consultation zones.
- 8.82 Where proposals fall within the HSE consultation zones then the local planning authority will consult the HSE and apply its methodology and advice. This will normally result in either a “Do not Advise Against” or “Advise Against” determination based on the level of risk proposed to prospective occupants of the development.
- 8.83 Should the HSE revise its methodology on which it bases its advice with regard to developments within the proximity of Hazardous Installations then the Council will accept the advice emerging from this revised methodology.

Policy SDC15: Development near Hazardous Uses

Development proposals will be assessed in accordance with the Health and Safety Executive (HSE) guidance where they fall within a consultation zone for one or more hazardous installations. Where the HSE advises against the development proposed then permission will be refused.

Safeguarding Mineral Resources

- 8.84 Mineral resources are essential to support economic growth and are a natural finite resource. It is therefore important to make the best use of them to ensure their long term conservation. National Planning Policy requires Authorities to ensure that minerals of local and national importance are not needlessly sterilised by non-mineral development. It also requires the prior extraction of minerals to be considered in these areas where practicable and feasible, if it is necessary for non-mineral development to take place.
- 8.85 Derbyshire County Council is responsible for waste and minerals plan preparation and for determining planning applications for minerals and waste development in North East Derbyshire. As such, within the North East Derbyshire Local Plan area, minerals and waste issues are covered by the Derby and Derbyshire Minerals Plan (amended November 2002), and the Derby and Derbyshire Waste Plan (adopted March 2005). The 'saved policies' in those two plans also form part of the development plan for North East Derbyshire. They include saved policies relating to Minerals Consultation Areas (MCA's) and procedures to ensure that the County Council is consulted on non-minerals development in those areas. These policies should be taken into account during the consideration of development proposals. In addition, there are policies in the adopted Minerals Local Plan covering minerals safeguarding and prior extraction which may also be applicable to non-minerals applications in North East Derbyshire.
- 8.86 The new Derbyshire and Derby Minerals Local Plan will review the Mineral Safeguarding Areas (MSAs) and Mineral Consultation Areas (MCAs) shortly to prevent the unnecessary sterilisation of surface mineral resources. This is likely to include mineral resources within North East Derbyshire. These predominantly relate to surface coal reserves, but also to a small area of carboniferous limestone.
- 8.87 Within the MSAs and MCAs, defined by the Derbyshire and Derby Minerals Local Plan, the presence of the mineral resource will be considered by the Council as part of the determination of planning applications. The revised MSAs and MCAs once adopted by the Derbyshire and Derby Minerals Local Plan will be illustrated on the Policies Map accompanying the North East Derbyshire Local Plan.
- 8.88 In addition, consideration will be given to the policy and advice set out in the National Planning Policy Framework and the National Planning Practice Guide. This includes the need to safeguard existing, planned and potential minerals storage, handling and transport sites to ensure that sites for these purposes are available should they be needed and prevent sensitive or inappropriate development that would conflict with the use of sites identified for these purposes. The District Council is working with Derbyshire County Council to develop a joint approach to identify and safeguard such sites.

9. Infrastructure & Delivery

Introduction

- 9.1 This section of the Plan addresses infrastructure that will be needed to support the development identified in the Plan and considers how it will be funded. In order to achieve sustainable development it is essential that new development is supported by the necessary infrastructure it needs to function, and that it does not place undue strain on the district's existing infrastructure, services and facilities.
- 9.2 The term infrastructure is broadly used for planning purposes to define all of the requirements that are needed to make places function efficiently and in a way that creates sustainable communities. Infrastructure can be physical (such as transport and water supply), social (such as education and community buildings) and green (such as public open space and wildlife habitats). The focus here is on physical, social, and green infrastructure. Minerals and waste infrastructure is dealt with by Derbyshire County Council in its Minerals and Waste Local Plans.
- 9.3 In general, infrastructure requirements relate to strategic and local need. Strategic infrastructure refers to facilities or services serving a wide area that may include several communities, the whole District, or further afield. For example improvements to the M1 Motorway, or investment in water, sewerage, and telecommunication networks. The infrastructure may be required where broader strategies are pursued to accommodate the cumulative impacts of growth, for example in a sub-region, rather than simply to accommodate the needs of the development proposals of a particular town or village.
- 9.4 Local infrastructure includes facilities or services that are essential to meet the day-to-day needs of specific communities, for example schools, health facilities, community facilities and local green spaces. These are often essential for a development to occur and/or are needed to mitigate the impact of development at the site or neighbourhood level and to help integration into local surroundings.
- 9.5 The provision of infrastructure is managed by a wide range of public and commercial organisations, not just the District Council. The Council has worked closely with statutory undertakers, utility companies and other agencies to prepare an Infrastructure Study and Delivery Plan (IDP)⁵³ which will support the proposed development identified in the Local Plan. This identifies planned infrastructure to serve existing and proposed development, as well as ensuring the objectives of the Local Plan can be met. This complements the strategic work undertaken by Derbyshire County Council in the Derbyshire Infrastructure Plan (DIP); which focuses on strategic infrastructure, including highways and transport, surface water flood management, waste, green infrastructure, broadband, education and social care. The DIP provides evidence on the condition of and investment in existing strategic infrastructure and services in the County. It also sets out strategic priority projects across the County, including identifying specific needs in North East Derbyshire, delivery schedules for future investment and potential sources of funding. The Local Plan, supported by infrastructure planning, will play a key role in

⁵³ North East Derbyshire District Council - Infrastructure Study and Delivery Plan, December 2017.

securing private sector involvement in infrastructure delivery, and in aligning the programmes of various infrastructure providers.

Plan Delivery and the Role of Developer Contributions

- 9.6 Where new development necessitates new or improved infrastructure or where mitigation is required to make a development acceptable in planning terms the Council will require developers to contribute towards any necessary site specific infrastructure and planning obligations in line with Policies ID2 to 9. Depending upon the application this may include contributions towards infrastructure needs generated by development such as highway improvements, new open space, schools, GP facilities, or other requirements such as contributing to local employment, skills and training initiatives. Requirements for affordable housing are separate to this and are covered in Policy LC2.
- 9.7 Developer contributions help to fund the infrastructure that is needed to make development acceptable in planning terms. Required infrastructure or community benefits must make development sites acceptable and mitigate the impact of additional demand caused by one or more new development sites. Benefits can be provided either on-site or off-site, depending on the local circumstances, but wherever possible, provision should be made on-site for facilities required through a planning obligation. All infrastructure improvements, where appropriate, will also need to be in accordance with Policy SS1 to ensure that any potentially adverse impacts are mitigated and the goal of sustainable development is achieved.
- 9.8 Where justified, development proposals will be required to provide

or contribute towards delivering the infrastructure needed to support the growth in the Local Plan. Such infrastructure should be provided in advance of, or alongside, the development unless it can be proven that there will be sufficient existing capacity. The appropriate phasing for the provision of infrastructure will however be determined on a case by case basis.

Infrastructure Study and Delivery Plan (IDP)

- 9.9 National policy states that the Local Plan should be supported by evidence of what physical, social and green infrastructure is needed to support the overall quantum and distribution of growth proposed in the Plan. To this end, the Council has worked closely with Derbyshire County Council and other infrastructure providers to prepare an Infrastructure Study and Delivery Plan (IDP). The IDP provides a detailed assessment of the infrastructure needs of North East Derbyshire, and gives an indication of the specific requirements for the different types and scales of infrastructure needed across the district, within its neighbourhoods, and at a site-specific level. In doing so, the IDP draws heavily on other studies covering a range of infrastructure types.
- 9.10 Whilst the infrastructure planning work shows there are no absolute infrastructure constraints to the delivery of the development proposed in the Local Plan, key infrastructure items will be required to facilitate the development proposed. A full list of these infrastructure projects are set out in the Infrastructure Delivery Schedule of the IDP. These infrastructure projects are categorised either as critical, essential or place-making infrastructure based upon their

role and timeliness in supporting the planned growth in the District. Key infrastructure items are set out in paragraph 9.22 onwards.

- 9.11 At a strategic level, the Council will continue to work closely with neighbouring districts and Derbyshire County Council through its infrastructure planning process to effectively deliver any infrastructure projects of cross boundary significance for North East Derbyshire.
- 9.12 Delivering infrastructure does not stand still and infrastructure requirements may change over time as development is brought forward and new infrastructure requirements are identified. Therefore, the IDP will be regularly monitored, reviewed and updated as a 'live' document during the plan period.

Community Infrastructure Levy (CIL)

- 9.13 The preparation of the IDP was the first step in determining whether the introduction of a Community Infrastructure Levy (CIL) would be appropriate for the district. Work on the IDP demonstrates that while there are some strategic infrastructure requirements, for example the transport improvements along the A61 corridor, much of the infrastructure required to facilitate the levels of growth proposed in the Local Plan is local infrastructure. As described in paragraph 9.4, although much of this local infrastructure is essential to make the development acceptable in planning terms it is relevant at the site specific or settlement level. As such it is considered that much of the infrastructure needed to support the growth in the Local Plan is capable of successful delivery through the current S106 regime.

- 9.14 Alongside this infrastructure planning work, the Council has carried out a Whole Plan Viability Assessment (WPVA) to assess the viability of the Plan as a whole, and to determine whether there would be enough economic incentive to provide new development with these infrastructure requirements in place. Whilst the assessment shows that new housing development with some level of affordable housing would be viable across all parts of the district it found that only limited additional surplus monies would be available for capture as a CIL charge, and even that would be achievable only in the very highest value areas of the district.

- 9.15 Since the vast majority of the housing development proposed in the Plan lies outside of these high value areas it is not considered likely that the introduction of such a CIL charge in North East Derbyshire would contribute meaningfully towards the delivery of the necessary infrastructure to support the Plan. Given the viability assessment found relatively tight margins of development viability across significant parts of the district it is considered that the flexibility afforded through the section 106 regime is of particular benefit to the successful delivery of development in the district.

- 9.16 Based on the above findings the Council will continue with the use of Section 106 agreements to help fund the infrastructure required to support the Plan and that needed to make development acceptable in planning terms; rather than seek to introduce a CIL charge.

- 9.17 Policy ID1 (Infrastructure Delivery and Developer Contributions) sets out the Council's policy on the use of Section 106 agreements (planning obligations) to secure contributions towards the infrastructure provision necessary to deliver the objectives of the Local Plan.

Viability and Developer Contributions

- 9.18 In circumstances where the viability of a development is in question, the developer will be required to demonstrate that this is the case through a site specific financial evaluation undertaken to the Council's satisfaction at the earliest possible stage in the application process.
- 9.19 Where a scheme is agreed to be unviable or marginal, the Council will review the policy arrangements or the development and the timing or phasing of payments to assist the financial viability of the scheme. Where policy arrangements have been negotiated, review mechanisms and/or overage payment clauses will be built into
- Section 106 Agreements to ensure that the planning obligations can be periodically reviewed and updated to reflect any changes in circumstances or changes to market conditions.
- 9.20 In cases where essential/critical site specific infrastructure and mitigation cannot be secured because of viability concerns and the infrastructure is an essential prerequisite to enable the development to proceed, schemes will not be supported.
- 9.21 In all cases contributions must be necessary and ensure the viability of the development is maintained. Developers will be required to provide sufficient information to allow for independent assessment of site viability if necessary.

Policy ID1: Infrastructure Delivery and Developer Contributions

1. Proposals for development will only be permitted provided they can be made acceptable through:
 - a. The provision of necessary physical, social and green infrastructure; and
 - b. Suitable measures to mitigate the impacts of development.
2. Where new development will necessitate the provision of new or improved infrastructure, and / or when suitable mitigation is required development will be required to make direct provision of such infrastructure on-site, or make a financial contribution to its funding through the use of Planning Obligations (Section 106 of the Town and Country Planning Act 1990).
3. Where justified, development will be required to provide or contribute towards delivering the infrastructure requirements to support the growth in the Local Plan as set out in the Infrastructure Study and Delivery Plan, or any future updates.

Physical infrastructure

Provision of New Transport Infrastructure

- 9.22 Transport infrastructure improvements are a key element in delivering the Plan strategy. They will support economic growth, sustainable transport, and the regeneration of previously developed land, helping to improve connectivity between North East Derbyshire, Chesterfield, Sheffield and the Sheffield City Region, and towns and communities across Derbyshire, the East Midlands and further afield. Secured funding and/or developers contributions will enable the delivery of some of the identified key transport infrastructure improvements, informed by the Infrastructure Study and Delivery Plan, such as the A61 corridor. Other infrastructure improvements may be required following more detailed transport assessment work at site level. It is expected that such interventions will be funded through developer contributions as necessary.

Highways

- 9.23 The safe efficient and free flowing movement of people and vehicles across the highway network is critical to achieving the Council's ambitions for the local economy and for more sustainable communities. Proposals for improvements to highway infrastructure will be supported where it can be demonstrated to be necessary, and contribute to improving the economic prosperity of the area. These works will however need to take place alongside the promotion of sustainable travel. The Council is committed to working in partnership with Derbyshire County Council and other neighbouring authorities to ensure a co-ordinated approach to transport infrastructure improvements,

recognising that transport issues do not stop at administrative boundaries.

- 9.24 In co-operation with Derbyshire County Council and neighbouring authorities the Council has undertaken extensive transport modelling work since 2010 utilising the North Derbyshire 'SATURN' model to assess the cumulative traffic impacts of development across North Derbyshire. This work has shown that pressure on the A61 through the district will increase substantially as a result of planned development in the area. As such the A61 has been identified in a number of wider strategies, including the strategic economic plans of the D2N2, and Sheffield City Region LEP's, as a critical transport corridor through Chesterfield and North East Derbyshire which plays an important role to deliver housing and employment growth in the south of the district; but where a co-ordinated balanced approach is required to mitigate against the effects of congestion.
- 9.25 The A61 Growth Corridor Strategy led by Derbyshire County Council but in partnership with the District Council and Chesterfield Borough Council (CBC), focuses on the A61 corridor between the Sheepbridge junction in the north and Clay Cross in the south. Whilst focussed upon the road it is, by design, multi-modal and has a core objective of supporting a strong economy through managing and accommodating the movement of people and goods, rather than simply managing highway traffic.
- 9.26 The A61 Growth Corridor Strategy sets out the intention of the authorities to work in partnership to deliver the best outcome for the social and economic wellbeing of the area. Development proposals planned adjacent to the A61 will increase the demand for movement along the corridor and the adjacent roads. No

‘engineering’ solution would deal fully with the impacts, and nor would it be appropriate to approach the issue in this way. Instead, the Strategy recognises the need for a balanced approach, and identifies the A61 corridor as a priority location for a combination of sustainable transport measures and highway improvements.

- 9.27 Along the A61, there will be a particular focus on addressing the current capacity issues and unlocking development potential along the corridor between Chesterfield and Clay Cross. The strategy together with an investment plan for the A61 Growth Corridor has identified priority projects and interventions, and funding is in place to support growth along the corridor. The District Council will continue to work in partnership with Derbyshire County Council and Chesterfield Borough Council to support and develop this work.
- 9.28 In addition to the proposals to provide the second principal access to help bring forward the Avenue Strategic Site at Wingerworth it is expected that through this work a number of packages of interventions will be taken forward with secured funding to help mitigate the overall impact of development in the area. Such interventions will be likely to include bus detection and upgrades to traffic signal control at junctions along the A61 south of Chesterfield town centre; the completion of walking and cycling routes between the Avenue site and Peak Resort; and the provision of real-time bus information and other roadside displays giving traffic and parking guidance to road users along the A61 corridor.
- 9.29 Whilst the A61/A617 Avenue link road, with potential to support the regeneration of the Avenue site, is identified as a possible solution to address highway capacity issues along the A61, the County Council is pursuing an alternative mitigation strategy through the A61 Growth Corridor strategy and investment plan to help accommodate the increase demand for travel for which funding is already in place. As such Policy SS4 requires that development of the Avenue Strategic Site Allocation does not prejudice the construction of the A61/A617 Avenue link road should it be needed beyond the plan period.
- 9.30 Subsequent to previous transport modelling work, the Council has worked collaboratively with Derbyshire County Council to commission an update to the transport evidence base⁵⁴ to test the impact of the planned housing and employment development identified in the Local Plan in particular at the main towns of Clay Cross, Dronfield, Eckington and Killamarsh.
- 9.31 Whilst this work recognises that a mitigation strategy to cater for growth along the A61 corridor is being developed it has found that there may be a need to consider mitigation measures at two locations at Dronfield, namely the Chesterfield Road / Green Lane / Callywhite Lane junction, and the approaches to the A61 Bowshaw Roundabout, on the basis of cumulative traffic impacts. Where justified through a transport assessment or statement developer contributions will be sought to support the delivery of any necessary improvements in line with Policy ID2.
- 9.32 In addition, this work has highlighted that traffic, albeit not in large volumes, arising from the proposed housing development in the north of the district would route to and from Junction 30 of the M1 motorway

⁵⁴ North East Derbyshire Local Plan, Transport Evidence Base, Dec 2017.

located in neighbouring Bolsover District. However, the impacts from proposed development in North East Derbyshire are limited, and generated from the relatively small quantum of development at Eckington and Killamarsh, and would not alone necessitate the need for improvements to Junction 30 of the M1 Motorway.

- 9.33 On other key local roads in the district, although the result of planned growth will be some increases in traffic, the analysis concludes that such impacts would be likely to be limited; or could be satisfactorily addressed through the travel planning and transport assessment process as and when individual developments come forward.

High Speed Rail (HS2)

- 9.34 The Government is committed to delivering High Speed Rail Phase 2 (HS2) and announced on 17th July 2017 its decision on the revised route for part of Phase 2b. The route runs from the West Midlands to Leeds (Eastern leg) and Manchester (Western Leg), with connections onto the existing network and new stations in Manchester, Leeds and the East Midlands.
- 9.35 The Eastern Leg passes through North East Derbyshire affecting the eastern parishes of the district running roughly parallel with the M1 to the east of Heath & Holmewood, Sutton-cum-Duckmanton and Killamarsh. A connection is also proposed into the existing rail network with a link to the Midland Mainline to the east of Stonebroom serving Chesterfield and Sheffield.
- 9.36 In order to protect the preferred route from conflicting development, the Secretary of State for Transport has safeguarded this section of HS2 using safeguarding directions⁵⁵. The route

and safeguarded area are identified on the Policies Map for information, however they are not proposals of the LPA and the route will not be determined through the development plan process. The route will be considered in Parliament under hybrid Bill procedures, which will provide appropriate opportunities for petitions to be made to Parliament by those directly affected by the scheme.

- 9.37 Safeguarding provides a statutory mechanism by which Local Planning Authorities (LPAs) must consult High Speed Two (HS2) Ltd on new and undecided planning applications which fall within the safeguarded area, and provides HS2 Ltd with a statutory remit to comment on such applications. The Safeguarding Directions also put in place statutory blight provisions, whereby owners of land or property within the safeguarded area can serve a blight or purchase notice on the Secretary of State for Transport or LPA respectively.

Midland Mainline Improvements and Electrification

- 9.38 The East Midlands is well connected to other areas of the country by rail, but journey times to London and other major centres do not compare well with other parts of the country. As part of Network Rail's enhancement programme a programme of work has now been developed to address this by improving capacity and removing rail bottlenecks. This allows line speed improvements from London to Nottingham, Derby and Sheffield. Whilst a section between Clay Cross and Sheffield through Chesterfield is still expected to be electrified to allow HS2 trains to serve the city, the plans to complete electrification through Derby, Leicester and Nottingham have been cancelled by the Government.

⁵⁵ The safeguarding maps and a copy of the formal Safeguarding Directions can be found at: <https://www.gov.uk/government/collections/hs2-safeguarding>

The District Council will work with partners to ensure that the benefits and opportunities of this programme are maximised.

- 9.39 National policy supports the protection of sites and routes which could be critical in developing infrastructure. The legacy of coal mining has left a number of disused rail routes throughout the District, which have the potential to be returned to beneficial use to reduce the number of journeys made by road, increase the movement of freight by rail, or increase opportunities for recreation. These routes are safeguarded for recreation purposes as Greenways through Policy ID8.

- 9.40 The Local Transport Plan 3 identifies potential major transport projects. Whilst the Clay Cross Railway station is included as a project for further appraisal as a County Council scheme, it is not being actively pursued and is not included in the Derbyshire Infrastructure Plan. However, there may be opportunity to review the business case and realise the long term aspirations for a station at Clay Cross as the town grows in the future. As such the Plan through Policy SS4 seeks to ensure that the development of the Strategic Site Allocation at the former Biwaters site does not preclude the provision of rail access should the case for the station be established in the future.

Policy ID2: Provision and Safeguarding of Transport Infrastructure

1. New transport infrastructure will be permitted provided that it is necessary to:
 - a. Improve the existing highway or rail network, or improve connectivity; or
 - b. Support economic growth or unlock future development sites; and
 - c. Minimise and mitigate any harmful impact on the environment and the amenity of local communities; and
 - d. Make safe and proper provision for the movement of pedestrians, cyclists, and public transport.
2. Where justified through appropriate transport statements or assessments, development will be required to provide or contribute towards delivering the following transport infrastructure to support development including:
 - a. Improvements to the A61 corridor, south of Chesterfield to Clay Cross, including the Southern Access to the Avenue Strategic Site Allocation from the A61;
 - b. Improvements to key road junctions to support growth at Dronfield including the B6057 Chesterfield Road / B6158 Green Lane / Callywhite Lane, and the A61 Bowshaw Roundabout;
 - c. Measures to mitigate any adverse impacts of development on the M1 motorway junctions;
 - d. Other transport projects at Clay Cross, Dronfield, Eckington and Killamarsh as identified in the Regeneration Frameworks for these towns and in accordance with Policies SP1, SP2, SP3 and SP4.

Sustainable Travel

- 9.41 The rural nature of North East Derbyshire⁵⁶, and its dispersed settlement pattern means that the majority of residents do not live, work or shop all in one place. The location of housing, employment, education, health, retail and leisure facilities can have a significant impact on patterns of travel, and accessibility, particularly for those without access to a car. The relationship between planning, transport and infrastructure is acknowledged as crucial in creating successful and sustainable places that work for everyone. Whilst the planning system cannot directly change people's travel behaviour, it can provide the framework for more sustainable transport choices. It is crucial that the Council, developers, and other stakeholders work together to deliver such choices.
- 9.42 Derbyshire County Council is responsible for transportation, which includes producing the Local Transport Plan. The Derbyshire Local Transport Plan 3⁵⁷ (LTP3) sets out the transport vision, goals and challenges, covering the period 2011 to 2026. Whilst the District Council has only limited control over highways or transport matters, its role as the Local Planning Authority is an important one in influencing transportation in the District through policies in the Local Plan and decisions on planning applications.
- 9.43 Sustainable modes of travel such as walking, cycling, public transport, car sharing, and alternative fuel vehicles can help to cut down on congestion and have positive benefits for the environment in terms of improving air quality. It can be provided through good planning and design, but also through travel planning such as promoting car sharing and providing car share spaces within new development. New infrastructure such as charging points for electric vehicles further supports sustainable travel journeys.
- 9.44 Access to sustainable forms of transport must be integrated into the design of new development. All future development should be planned to maximise opportunities for walking, cycling, public transport, car sharing, and electric vehicles. The Plan does however; recognise that in some smaller settlements, particularly in rural areas, there is a greater reliance on private cars. This will be taken into consideration in determining planning applications.

Walking and cycling

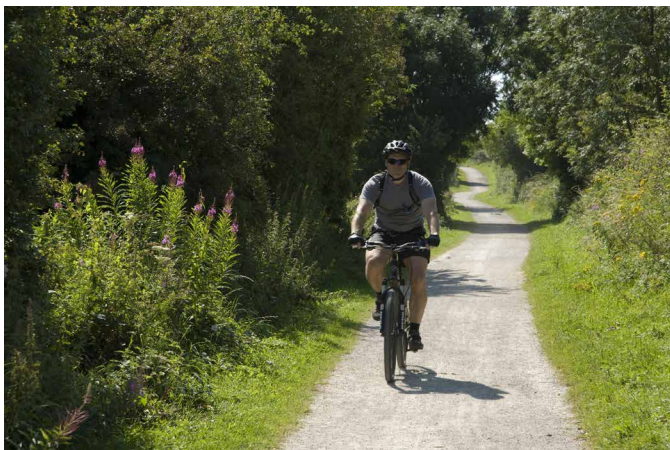
- 9.45 New development should incorporate a 'pedestrian and cycle first' principle. All transport journeys include an element of walking, whether it is walking to a bus stop or to a car park. All new developments must include pedestrian and cycle routes which are direct, convenient, and take priority over motor traffic. New developments must provide direct links to new or existing footpath or cycling networks, where appropriate, as well as to nearby local attractors, such as schools and shops, thereby negating the need for short trips by car.
- 9.46 Cycling provides great potential to reduce reliance on the private car. The Local Transport Plan 3 identifies walking and cycling as a priority, including for new infrastructure provision, focusing on strategic and local cycle networks. The cycle networks are shown on the Policies Map and form part of Derbyshire's Key Cycle

⁵⁶ North East Derbyshire is categorised as a Rural 50 district by Defra, which means that between 50 - 79.9% of its population live in rural census output areas.

https://www.gov.uk/government/uploads/system/uploads/attachment_data/file/239063/2001-la-class-intro.pdf

⁵⁷ <https://www.derbyshire.gov.uk/transport-roads/transport-plans/ltp3/local-transport-plan-three.aspx>

Network and Local Cycle Network within North East Derbyshire. The Derbyshire Cycling Plan 2016-2030 has great ambitions to promote and support cycling in Derbyshire and this is carried forward in this Plan through Policy ID3. This should be mainly achieved through improvements to the connectivity of cycle infrastructure including the provision of identified new routes, as well as measures to increase participation in cycling such as through marketing, communication and lobbying for change. Where appropriate, opportunities should be taken to link with strategic cross boundary cycle routes including for Chesterfield⁵⁸.



Bus Travel

- 9.47 Bus travel is by far the most used form of public transport across North East Derbyshire and is considered to be fit for purpose. Discussions with Derbyshire County Council highlight a good frequency of available bus service throughout the day along the A61 corridor and within the four main towns, but more patchy and infrequent in the more rural parts of the district. The Infrastructure Study and Delivery Plan identifies some limited gaps in provision of commercial and supported services for example in Marsh Lane, Coal Aston and the area to the west of Clay Cross.



- 9.48 When allocating proposed development sites, accessibility to bus services has been a key consideration. When submitting planning applications, developers must consider the impact of the development on local bus routes. Where possible, bus routes should penetrate new development sites through permeable routes and bus priority measures will be considered. Where appropriate, developers will be asked for a financial contribution so the Council and bus operators can work together to improve bus provision for a particular site. The County Council's capital programme and LTP3 Investment Protocol commit funding for the maintenance and improvement of physical infrastructure to support bus services.

Car Parking

- 9.49 As part of the objective of promoting sustainable forms of transport, the Local Plan seeks to reduce the adverse impact of transport on the environment (Objective D12). The growth in car ownership has led to an increasing need to mitigate the worst effects of increased traffic movement. The availability of car parking has a major influence on the choice of means of transport.

⁵⁸ <https://www.derbyshire.gov.uk/transport-roads/transport-plans/transport-studies/chesterfield-cycle-network/chesterfield-proposed-cycle-network.aspx>

9.50 Parking provision for new development and other on or off street parking proposals sought by the Council will reflect the need to balance the legitimate operational requirements of any development with wider environmental considerations. The future focus will therefore be on limiting parking supply at destination. All new developments must provide parking as part of new development. The design implications relating to this policy are set out in the Delivering Streets and Places Design Guide prepared by the 6C's Local Highway Authorities including Derbyshire County Council⁵⁹.

Alternative Fuel Vehicles and Car Sharing

9.51 Passenger cars are often the only practical choice for residents living in some parts of the District, particularly rural areas. Therefore it is important that the Plan supports the growth of alternative fuel vehicles and actively discourages the number and frequency of single occupancy car journeys through the provision of car sharing bays in new development. Promotion of car sharing and alternative fuel vehicles will be delivered through the Travel Plan process.

9.52 Policy ID3 sets out the Council's policy on sustainable travel by providing a positive approach to the management of travel demand and the delivery of sustainable transport networks.

Policy ID3: Sustainable Travel

1. The Council will seek to maximise walking, cycling, and the use of public transport through the location and design of new development, with the aim of reducing congestion, and improving air quality and health.
2. Proposals for major development⁶⁰ will be required to promote sustainable travel through necessary interventions as identified through appropriate transport statements or assessments including the following:
 - a. Site specific and area wide travel demand measures;
 - b. Improvements to existing pedestrian, cycle and public transport services and facilities, and provision of new walking and cycling routes. New routes should provide direct links to new or existing footpaths, cycling networks, and local facilities; and
 - c. Optimisation of the existing highway network to prioritise walking, cycling, public transport and other forms of sustainable travel.
3. Highway capacity enhancements should deal with residual car demand where the initiatives required in criteria (a) to (c) above are insufficient to avoid significant additional car journeys.
4. In all cases, planning permission will only be refused on transport grounds if there would be an unacceptable impact on highway safety, or where the residual cumulative impacts on the road network would be severe.

⁵⁹ <https://www.nottinghaminsight.org.uk/Document-Library/Document-Library/197452>

⁶⁰ Major Development is defined in the Plan's Glossary

Water Supply and Waste Water Treatment

- 9.53 Water supply and waste water treatment are crucial to supporting new development and to attracting inward investment. While Severn Trent covers the south of North East Derbyshire, Yorkshire Water is responsible for waste water treatment infrastructure in the north of the district. The Derbyshire Infrastructure Plan 2013 includes details of the current available capacity at each of Yorkshire Water's main water treatment works in North East Derbyshire, and any planned or potential investment.
- 9.54 During the preparation of the Infrastructure Study and Delivery Plan dialogue has taken place with relevant water companies, including Yorkshire Water, to further investigate capacity of existing waste water treatment works. Whilst previous assessments highlighted limited capacity at the Staveley Waste Water Treatment Works (which may serve some of the settlements in North East Derbyshire) the IDP highlights that it is anticipated that any necessary re-enforcement works would be delivered and funded by Yorkshire Water in accordance with its regulatory funding arrangements with Ofwat.

Broadband

- 9.55 Currently access to the internet is mainly through the national telephone network infrastructure. In rural areas, access to broadband is very limited and is a major barrier to the ability of rural business to grow and for such areas to attract new business. The Housing and Economic Development Strategy includes 'Improved Access to Superfast Broadband' as a strategic priority for supporting the rural economy. Nationally, the Government is committed to investing in the UK's

broadband network with the objective of delivering 90% coverage of superfast broadband.



- 9.56 Digital Derbyshire is a £27.67 million programme to delivery broadband infrastructure and services across the County. The project has identified areas of poor broadband access (many of them in North East Derbyshire) and has been allocated funding from the Government to improve the situation. The Derbyshire Infrastructure Plan and the North East Derbyshire Infrastructure Study and Delivery Plan provide details of how this will be rolled out. The Council will work with Derbyshire County Council to ensure that superfast broadband in North East Derbyshire is improved as a priority. In designing new development, developers can help to anticipate the future needs of residents and businesses and prevent having to retrofit properties in the future by providing for the delivery of broadband infrastructure and services as part of the on-site design of their development scheme in accordance with Policy ID1.

Social infrastructure

- 9.57 Sustainable development has a social role in supporting strong, vibrant and healthy communities. Providing sufficient community and cultural facilities and services to meet local needs is a core planning principle of the NPPF.

- 9.58 Physical facilities for different groups, individuals and communities, including leisure⁶¹, health, education and community facilities⁶² (local shops, meeting places, cultural buildings, public houses and places of worship), can be collectively termed ‘social infrastructure’. They include public, private and voluntary facilities. Such facilities are often at the heart of local communities and essential to the quality of life of the District’s residents, making a positive contribution to safe, healthy and active communities. They can provide a sense of local identity and encourage active participation in community life. It is important that facilities are available locally and are accessible. The Council in working with other partners will seek to ensure adequate provision of such services and facilities.
- 9.59 The 2017 Settlement Hierarchy Study Update identifies the extent of existing provision of facilities and services in each settlement across the District. New facilities, and the enhancement of existing provision, will be encouraged in accessible locations, preferably within town and local centres. The loss of existing facilities can have a major impact on communities and existing social infrastructure assets therefore
- need be protected and enhanced, especially in areas that are not currently well served as indicated by the Settlement Hierarchy Study.
- 9.60 In order to protect existing community facilities, local communities can nominate important local buildings and facilities for inclusion on a central list held by the Council. This gives the community the opportunity to develop a proposal and raise the required capital to bid for a specific ‘Asset of Community Value’.
- 9.61 The improvement of skills, training and education, particularly amongst young people and the long term unemployed, is also a key priority relating to social infrastructure and inclusivity, but also clearly related to the success of the District’s economy and inclusion of all sections of the community in the economic growth. To ensure convenient access to educational facilities for all residents across the District, any expansion of education or training facilities should be easily accessible by public transport in order to ensure that new development supports access to education and improvements in skills for local people to enable them to compete effectively in the job market.

Policy ID4: New Social Infrastructure

Development proposals involving the provision, expansion, or improvement of social infrastructure facilities will be permitted where they:

- a. Are accessible by public transport, walking and cycling, unless they are meeting a specific local need; and
- b. Are provided, wherever practicable, in multi-use, flexible and adaptable buildings, or co-located with other social infrastructure uses which encourage dual use and increase public access.

⁶¹ Please note that urban green space, recreation sites and allotments as well as indoor and outdoor sport facilities are dealt with within the ‘Open space, Sports and Recreation Facilities’ chapter

⁶² In paragraph 70 of the National Planning Policy Framework ‘Community Facilities’ are described as ‘local shops, meeting places, sports venues, cultural buildings, public houses and places of worship’

Policy ID5: Loss of Existing Social Infrastructure

Development proposals which would result in the loss of social infrastructure facilities will not be permitted unless:

- a. It can be shown that the facility is no longer needed, or that the service could be adequately provided in an alternative way, or elsewhere in an alternative location that is equally accessible by public transport, walking and cycling; or
- b. It can be demonstrated through a viability assessment that the current use is not economically viable and all reasonable efforts have been made to let or sell the facility for the current use over a 12 month period.

Education

9.62 Derbyshire County Council is responsible for ensuring the adequate provision of primary and secondary school places. Each year, Derbyshire County Council produces pupil projection information based on the current pupil census data and information provided by the Local Health Authority. When analysing an individual school's pupil projections, no account is taken in the modelling of proposed housing development in the school's normal area (formerly catchment area of that school). Such information has to be considered separately for individual schools on a case by case basis.

9.63 Large scale population growth can trigger a need for additional investment in education. The County Council normally seeks developer contributions towards the provision of necessary primary and secondary school places through S106 Agreements, on a case by case basis. As a guide, development proposals of around 1,000 dwellings will normally require provision of a new single form entry primary school and around 6,000 dwellings will normally require provision of a new secondary school. Developments of a smaller scale may also trigger a need for new schools if the existing normal area schools are

expected to have no surplus capacity and are unable to expand.

9.64 The Derbyshire Infrastructure Plan identifies that strategic growth at the former Avenue (a strategic site allocation in Policy SS3) would require a new single form entry primary school and an extension to the existing Tupton Hall Secondary School. However, it concludes that residential development elsewhere in North East Derbyshire could potentially be accommodated through capacity and expansion (subject to funding) of existing schools. Whilst the County Council has re-iterated that this continues to be its approach in the absence of an agreed education provision strategy, it has indicated through work on the North East Derbyshire Infrastructure Plan that feasibility studies are underway to look at capacity issues at primary schools within Brampton, and Morton parishes.

Safeguarded Land for Education Facilities

9.65 Derbyshire County Council has formally notified the District Council of a number of sites within the District which they wish to safeguard for either future expansion of an existing school, or for the provision of a new school or playing field.

Policy ID6: Safeguarded Land for Education Facilities

Land identified as safeguarded for education facilities on the Policies Map is safeguarded from development that would prejudice the necessary provision of a new school, expansion of the existing school, or provision or expansion of a playing field in consultation with Derbyshire County Council in the following locations:

- a. Land at Renishaw Primary School, Hague Lane, Renishaw
- b. Land at Lansbury Avenue, Pilsley
- c. Land at Mickley Infant School, Milton Avenue, Stretton
- d. Land at Unstone Junior School, Main Road, Unstone

Green Infrastructure

9.66 Green infrastructure is defined in the National Planning Policy Framework as “a network of multi-functional green space, urban and rural, which is capable of delivering a wide range of environmental and quality of life benefits for local communities”. As well as public open space, it includes wildlife sites, river and canal corridors, moorland, and woodland. Collectively these areas contribute to the ecological network of the District. With regards to Natural England’s definition, Green Infrastructure should be strategically planned and actively managed. It should also respect and enhance the character and distinctiveness of an area and should be delivered at all spatial scales.

9.67 Green Infrastructure fulfils a number of important functions, including:

- **Access and recreation** - public open spaces, and the public rights of way network provide a free recreational resource as well as formal playing pitches for more active sports.
- **Biodiversity and geodiversity** - providing habitat within towns and countryside.



- **Economic development** - green infrastructure improves the setting and image of towns and villages, making them more attractive places to live, work and invest.
- **Energy** - the natural environment provides a resource for renewable energy.
- **Health and well being** - well-planned green infrastructure promotes healthy lifestyles, with a positive impact on mental and physical health.
- **Landscape** - green infrastructure is a crucial element in defining and linking to the character of the surrounding landscape.

- **Townscape** - open spaces , street trees and other green infrastructure as a crucial element in defining the character of the urban areas.
 - **Sustainable Drainage** - green infrastructure helps to manage water flow and quality by holding it in times of high rainfall and releasing it slowly, reducing the likelihood of flood and drought; and can prevent pollution by filtration of surface water runoff, thereby contributing to improvements in quality of watercourses; and
 - **Climate change mitigation** - plants and trees absorb carbon dioxide. Trees act as windbreaks and provide shade and flood management mechanisms to reduce the impact of climate change on the local environment.
- 9.68 In 2012, the Council published a Green Infrastructure Study which identifies the existing Green Infrastructure assets across the District and the external linkages of the wider Green Infrastructure network, and considers how they could be extended and improved.

Policy ID7: Green Infrastructure

1. Development proposals should conserve and where appropriate improve and extend the Green Infrastructure Network running through and beyond North East Derbyshire.
2. Development proposals that would result in the loss or isolation of existing green infrastructure will not be permitted unless:
 - a. The affected site or feature does not have a significant recreational, ecological, landscape or townscape value; or
 - b. The affected site can be demonstrated to be surplus to local requirements, or
 - c. A compensatory amount of green infrastructure of an equivalent or better quality can be provided in the local area
3. To ensure the quality of new or improved Green Infrastructure, development proposals shall, where appropriate:
 - a. Incorporate Green Infrastructure as an integral part of designs at an early stage in the planning process in line with Policy SDC12;
 - b. Enhance connectivity between green spaces and improve public access to green infrastructure in line with Policy SDC12;
 - c. Contribute to the character and creation of high quality and locally distinctive places and having regard to the landscape, townscape, ecological character of the locality and the setting of heritage assets;
 - d. Protect trees, woodland and hedgerows in line with Policy SDC2;
 - e. Incorporate native species and habitats in line with Policy SDC4; and
 - f. Capitalise on any opportunities provided by rivers, streams, ditches, drains and canals in order to improve their ecological status.

Greenways and Public Rights of Way

- 9.69 Greenways as part of Green Infrastructure link spaces and places throughout the district. The existing Greenways network consists of traffic-free pathways that connect towns and villages with the countryside and is suitable for walking, cycling and horse riding. Greenways support a sustainable and healthy way of travelling to schools, work places, shops and local amenities.
- 9.70 Since the publication of the Derbyshire Greenways Strategy (1998), Derbyshire County Council has with various partners brought back into beneficial use as greenways a number of disused railway lines including the Five Pits Trail and Trans-Pennine Trail. These routes have been carried forward from the 2005 Adopted Local Plan and are shown as Greenways on the Policies Map.
- 9.71 However, a fully linked network is yet to be established. A number of future strategic routes were prioritised in the 1998 Derbyshire Greenways Strategy including a route linking Dronfield, Eckington and Killamarsh in the north of the District. Such a route would meet the need for a link between the three towns, but could also feed a route to Chesterfield. It would also act as a link from the Trans-Pennine Trail to Hardwick Hall, Chesterfield and the southern part of the Peak District.
- 9.72 As part of the preparation of the Infrastructure Study and Delivery Plan the Council has collaborated with Derbyshire County Council to identify proposed routes that are considered to be deliverable over the plan period. These proposed Greenways differ from existing ones both in relation to their condition and legal status.
- 9.73 Beyond the Greenways network, Public Rights of Way (PROWs) provide considerable opportunities for people to enjoy the countryside. Where they exist within settlements they can provide good links between areas of housing, places of employment, shops and community facilities. It is important to ensure that development does not have an adverse impact upon the integrity of these routes.
- 9.74 The Council will support the use and improvement of all public rights of way and encourage additional provision and links as opportunities arise and safeguard them against development likely to prejudice their integrity. If an alternative route for a footpath is sought an application for footpath diversion must be made. If a planning application affects the route of a footpath, equivalent alternative provision within the new development shall be made, or a diversion order could be implemented.

Policy ID8: Greenways and Public Rights of Way

1. The Council will seek to protect all existing and proposed Greenways throughout the district as identified on the Policies Map.
2. The Council will liaise with Derbyshire County Council to further develop the existing network through promoting proposed Greenways.
3. Development proposals will be expected to maintain or improve the permeability of the built environment and access to the countryside for walkers, cyclists and horse riders. Proposals that would result in the loss of, or deterioration in the quality of existing Public Rights of Way (PROWs) will not be permitted unless equivalent alternative provision is made. Where diversions are required, new routes should be direct, convenient and attractive, and should not have an unacceptable adverse impact on environmental or heritage assets.

Chesterfield Canal

- 9.75 Generally, canals and canal routes are an important element of green infrastructure, linking homes and communities, workplaces and services, and providing access to the wider countryside. They often provide a role on linking fragmented habitats over degraded land.
- 9.76 The Chesterfield Canal is a route of cross boundary strategic significance passing through Nottinghamshire, Derbyshire and South Yorkshire. In North East Derbyshire the Chesterfield Canal crosses the north east of the District and runs through Killamarsh and Renishaw. The Chesterfield Canal Partnership, formed in 1995, is a working group whose membership includes the Canal & River Trust, the Chesterfield Canal Trust and the Local Authorities through which the canal passes. The Partnership ensures a co-ordinated approach to the restoration, protection and management of the canal route. Work on restoration is well underway and a significant part of the route is now navigable and once fully restored could be reconnected to the national network.



- 9.77 The Council alongside other Partners (through the Chesterfield Canal Partnership) is committed to securing the restoration of the canal through the district and improving the canal towpath as an important part of the GI network. The 2005 Adopted Local Plan has already included both the original route of the Chesterfield Canal and the identified preferred alternative route which would run through the east of Killamarsh town centre. This ensured that both routes were protected from development that could prejudice the restoration of the Chesterfield Canal.

9.78 The Chesterfield Canal Partnership has subsequently assessed the eastern alternative route which showed that problematic and extensive engineering requirements would be necessary. Consequently, a western alternative route has been assessed in more detail. This route would take advantage of the re-development of the Tarran bungalows to the west of the town centre and showed that it may be a more economic and attractive solution. Based on these findings and coordinated with Killamarsh Parish Council the Chesterfield Canal

Partnership carried out a further consultation with local residents on the western alternative route in June 2017. Members of the public expressed clearly their preference for this route and thus the Chesterfield Canal Partnership supports the views to reflect the western alternative route restoration. As a consequence, as well as the original route through Killamarsh, the western alternative route and the land safeguarded for the canal corridor is protected through Policy ID9.

Policy ID9: Chesterfield Canal

1. The original route of the Chesterfield Canal and land safeguarded for the canal corridor as identified on the Policies Map will be protected from development likely to prejudice its future restoration and its existing function of providing a quality green space and leisure route.
2. The western alternative route and land safeguarded for the canal corridor through Killamarsh as identified on the Policies Map will be protected from development that is likely to prejudice its implementation.
3. Development proposals associated with the recreational, leisure, nature conservation and historical potential of the Chesterfield Canal will be encouraged, especially where they make a positive contribution to restore and/or enhance the Canal.

Open Space, Sports and Recreation Facilities

Existing Facilities

- 9.79 Open space, sports and recreation facilities all contribute to the health and well-being of communities in and around North East Derbyshire. The Council has an important role to play in ensuring that there are sufficient facilities, that they are in the right location and that they are of high quality.
- 9.80 The Council is committed to the protection and enhancement of open space, sports and recreation facilities which contribute to creating high

quality environments and sustainable communities. The implementation of Policy ID10 seeks to protect and enhance existing sites and secure additional provision to meet identified needs.

- 9.81 Open space, recreation sites and allotments were assessed by the Recreation Survey 2017. The Survey shows that local residents highly value the existing open spaces and recreation facilities and that there is no surplus of provision in the district compared to nationwide recreation standards (Fields in Trust Guidelines and National Allotment Society). In the following, the different typologies of open space and recreation are explained which form part of Policy ID10.

- 9.82 **Urban Green Spaces** are larger informal open spaces that contribute to the form and character of the settlement, often providing a pleasant setting or view. These include parks, green corridors, churchyards and cemeteries and amenity green space and commons as shown on the Policies Map. In addition to these areas, smaller informal open spaces exist but these are not shown on the Policies Map. However, the Council seeks to protect all forms of informal open space provision from inappropriate development.
- 9.83 **Recreation sites** comprise informal recreational fields which are accessible to the public and are used for informal sporting activities. It also includes children's play spaces and outdoor youth facilities.
- 9.84 **Allotments** are designated areas which provide opportunities for those people who wish to grow their own produce as part of the long term promotion of sustainability, health and social inclusion. A flexible supply of allotment space should be retained in order to accommodate fluctuating demand. The Recreation Survey shows that demand for and the supply of allotments varies significantly between settlements within the district and is linked to the type and tenure of housing.
- 9.85 **Formal sport sites** were assessed by the Playing Pitch Strategy (PPS) 2017 and built sports facilities by the Indoor Sports Facilities Strategy (IFS) 2017. Both strategies are based on detailed assessment work and incorporate Action Plans which give guidance on how these facilities should be developed in the future.
- 9.86 Formal sport sites include a wide range of formal outdoor facilities such as pitch sports (e.g. football, cricket, rugby, etc.), hard court sports (e.g. tennis, basketball), bowls and athletics. The PPS concludes that there is no surplus of grass pitch provision or non-pitch sports in the district. Current and future demand for all pitch sports is either being met or there is a small shortfall. Any shortfall can be met by a range of measures such as: improving pitch quality, pitch reconfiguration, increasing access to school sites etc. or new provision through development. For non-pitch sports both current and future demand is being met.
- 9.87 **Indoor sports facilities** include mainly sports halls and swimming pools which are located in the district's towns like Dronfield Sports Centre, Eckington Swimming Pool, Killamarsh Sports Centre and Sharley Park Leisure Centre at Clay Cross. The sports halls are situated in appropriate locations and all are available for community use. Compared to a current available supply both sports halls and swimming pools are 'in balance' to demand. Indoor sport facilities are also designated in the Policies Map as Formal Sport Sites.
- 9.88 Although the Council will seek to protect all existing green spaces, recreation sites, allotments and formal sports sites there might be the case that a site or facility is threatened to be lost. In this case, a development proposal would not be permitted unless it could clearly demonstrate that there are circumstances which would make the proposal acceptable. These are laid out specifically within Policy ID10.
- 9.89 Appendix E shows the relation of open space, sports and recreation categories to their designation on the Policies Map.

New and Upgraded Facilities

- 9.90 The Council is committed to not only protect existing open space, sports and recreation facilities but to invest in existing facilities and new provision for local residents and to provide facilities

that are accessible by sustainable modes of transport. To achieve this, financial contributions will be sought from relevant proposals which means that residential developments of 9 units or less are excluded.

9.91 New provision or developer contributions will be sought for at least one of each of the following category, if a need arises:

- Urban Green space,
- Informal recreational fields,
- Equipped children's play spaces,
- Outdoor youth facilities,
- Formal sport sites
- Indoor sports facilities
- Allotments

9.92 The Council's Developer Contributions Protocol lays out a mechanism in more detail to calculate financial contributions for open space, sport and recreation. The protocol advises which type of provision is needed most in the area including urban green space, recreation sites and allotments and formal sport sites. Whilst urban green space, recreation sites and allotments were assessed by the Recreation Survey and local standards apply, formal sport sites were assessed through the Playing Pitch Strategy and Indoor Sports Facilities Strategy.

Urban Green Space, Recreation Sites and Allotments

9.93 Any residential development of 10 or more dwellings will need to provide or contribute to urban green space, recreation sites and allotments. Residential developments of 10 to 49 dwellings would usually be expected to contribute to such facilities off-site; and residential proposals of 50 or more dwellings would usually be expected to

provide such facilities on-site, unless exceptions can be justified in line with the Developer Contributions Protocol.



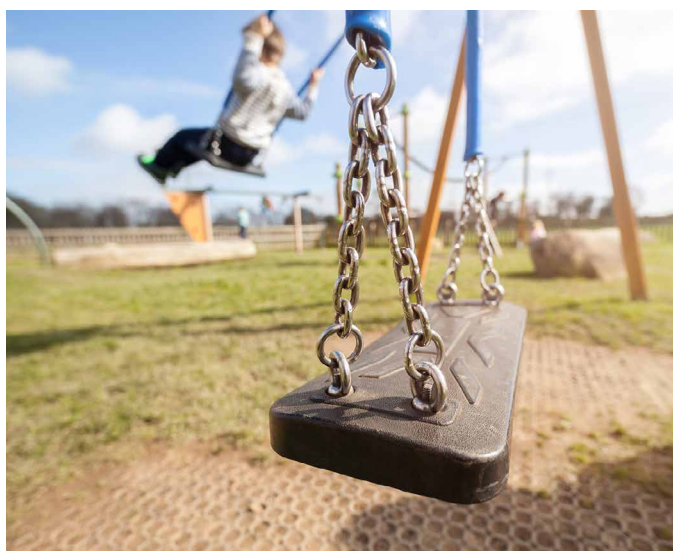
9.94 Employment proposals for additional floorspace of 1000m² or more should provide green spaces as part of the development.

9.95 Where these thresholds for residential developments apply, the protocol advises that the number of new residents needs to be established and the additional requirements for urban green space, recreation sites and allotments should be calculated. For this purpose, the Local Quantity Standard derived from the Recreation Survey should be used to determine demand for new residents (Table 9.1).

Table 9.1: Local Quantity Standard

Typology	Local Standard (ha/1000 population)
Urban Green Space	1.60
Informal Recreational Fields	0.35
Equipped Children's Play Spaces	0.09
Outdoor Youth Facilities	0.025
Allotments	25 plots per 1,000 households

- 9.96 For both off-site contributions and on-site provision, the Ward position should be considered and compared to the Quantity, Quality and Accessibility standards to determine which existing site should be upgraded or extended; or what type of new provision is required. It is also advised to consult with local partners (local clubs/groups, parish/town council, local allotment societies, etc.).



- 9.97 The Recreation Survey shows that the quality of urban green space, recreation sites and allotments can vary considerably throughout the district. It is envisaged that the quality of a facility should score 'Good' or 'Very good'. Therefore, where a facility scores only 'average', 'poor' or 'very poor' according to the quality assessment, financial contributions should be sought to improve the site.
- 9.98 The location of a proposal to existing facilities will also vary from case to case. In determining which facility should be improved or extended the Accessibility Standard should be applied. Where the proposed site lies within a defined catchment area, improvements to or extension of existing facilities should be considered. The Accessibility standard is as follows:

Table 9.2: Local Accessibility Standard

Typology	Straight Line distance
Urban Green Space: amenity green spaces & commons and housing green spaces; parks, green corridors and cemeteries & churchyards	280 metres (based on 5 min adult walking speed); or 560 metres (based on 10 min adult walking speed)
Informal Recreational Fields	840 metres (based on 15 min adult walking speed)
Equipped Children's Play Spaces	240 metres (based on 5 min child walking speed)
Outdoor Youth Facilities	560 metres (based on 10 min adult walking speed)
Allotments	560 metres (based on 10 min adult walking speed)

- 9.99 Based on identified need, financial contributions should be calculated for both maintenance and provision by using tables 1 to 3 in Appendix D.

Formal Sport Sites

- 9.100 Any residential development of 10 or more dwellings will need to contribute to the provision of formal sport sites.
- 9.101 Once the anticipated number of new residents is established the Developer Contributions Protocol advises the use of Sport England's Playing Pitch Demand Calculator to calculate playing pitch requirements. The calculator identifies associated costs for providing the required pitches. For non-pitch requirements (bowling and tennis) the Playing Pitch Strategy identifies current and future demand.

- 9.102 In most cases residential developments do not create sufficient demand for a whole pitch. In this instance, the protocol recommends making a financial contribution to increase the capacity of an existing site or to contribute financially to new provision off-site.
- 9.103 For off-site provision the nearest site(s) to the new development should be considered for contributions towards increasing capacity to meet likely need generated from the proposed development. This can be checked by using the Playing Pitch Strategy Assessment Report.
- 9.104 If financial contributions are found to be preferable, the Playing Pitch Strategy Action Plan should be used to identify existing sites for investment. The Action Plan makes suggestions how best to develop a specific facility.
- 9.105 In addition to providing on-site facilities or contributing to new off-site facilities, a development proposal will also be required to cover maintenance costs for both formal sport sites as well as urban green space, recreation sites and allotments.

Policy ID10: Open Space, Sports and Recreation Facilities

1. The Council will seek to protect and enhance all existing open space, sports and recreation facilities and any new provision added during the plan period. These facilities are shown on the Policies Map as:

- a. Urban Green Space,
- b. Recreation Sites,
- c. Formal Sport Sites, and
- d. Allotments.

Protection of existing facilities

2. Development proposals that would result in the loss or isolation of the typologies 1a. to 1d. will not be permitted unless:

- a. An assessment has been undertaken that has clearly shown the typologies 1a. to 1d. to be surplus to requirements; or
- b. The loss resulting from the proposed development would be replaced by equivalent or better provision in terms of quantity and quality in a suitable location; the replacement facility should be made available prior to the loss; or
- c. The development is for alternative provision of typologies 1a. to 1d. the needs of which clearly outweigh the loss; or
- d. The proposed development is ancillary to the recreational or sports use of the site and does not adversely affect the quality of the site in terms of its recreational or sports use; or
- e. The proposed development only affects land that is incapable of performing a recreational or sports function.

Provision of new facilities

3. For urban green space, recreation sites and allotments, financial contributions for new off-site provision or for enhancing existing off-site facilities will be sought from residential developments of 10 to 49 dwellings. Unless exceptions can be demonstrated in line with the Developer Contributions Protocol, on-site provision will be required from residential developments of 50 or more dwellings. Employment proposals of additional floorspace of 1000m² or more should provide green spaces as part of the development.
4. The Developer Contributions Protocol should be used to establish financial contributions. For urban green space, recreation sites and allotments, local standards apply and financial contributions will be sought towards the maintenance of all on-site and new off-site facilities and contributions towards new off-site provision and the enhancement of existing off-site facilities (Appendix D).
5. For formal sport sites financial contributions will be sought from residential developments of 10 or more dwellings. To calculate playing pitch requirements and costs for new on-site or new off-site facilities, Sport England's Playing Pitch Demand Calculator should be used. Existing sites for investment and maintenance are identified by using the Playing Pitch Strategy Action Plan.

Local Green Spaces

9.106 'Local Green Spaces' are green spaces of particular importance to the local community. National policy makes provision for these to be identified through local and neighbourhood plans. Local communities will be able to rule out new development other than in very special circumstances by designating land as Local Green Spaces. However, National Policy makes clear that this specific designation would not be appropriate for most green spaces and specifies when it should be used. In North East Derbyshire, the Local Plan does not designate Local Green Spaces, but any forthcoming Neighbourhood Plans may do so.

9.107 Where new Local Green Spaces are proposed, it is envisaged that clear funding and delivery mechanisms are in place for its long term management and maintenance.

10. Monitoring, Review and Implementation

- 10.1 The Local Plan covers a 20 year period, during which time it is likely that changes will occur which could affect the delivery of the Plan's Strategy. As such, the Local Plan must have clear arrangements for monitoring and review to ensure it continues to remain effective in its implementation.
- 10.2 The Plan will be monitored using the framework of policies, targets and indicators set out in Table 10.1. The approach does not involve monitoring all policies on an individual basis; rather it takes the Local Plan's objectives from Chapter 3 as the starting point and groups them under the three key themes of sustainable development: 'The Economy', 'The Community' and 'The Environment'. It then focuses upon those policies that are fundamental to the achievement of key targets and indicators that support the Plan's objectives and reflect the effectiveness of the Plan's strategy and strategic policies.
- 10.3 Table 10.1 identifies a set of targets and key indicators to describe the intention of the policy and set out in specific and measurable terms the desired outcomes of the plan's strategy together with details of how policies will be monitored.
- 10.4 The delivery of the Local Plan will be monitored on a continuing basis, and formally published through the Authority's Monitoring Report (AMR), on at least an annual basis.
- The Council through its AMR will consider whether the Plan is compromised in its effectiveness, the reasons for this, and whether any refinements or reviews to the Plan, either in whole or in part are required. Failure to achieve a target will not automatically trigger a plan or policy review.
- 10.5 Failure to deliver new homes and/or identify a 5 year supply of housing land are the matters most likely to trigger the need for a review. Where the Housing Delivery Test indicates that the delivery of housing was substantially below (less than 75% of) the housing requirement over the previous three years, or in situations where it is anticipated that the Council cannot demonstrate a rolling five year housing land supply, a review of the Local Plan, in whole or in part, will be triggered. Alternatively, a significant change in National Planning Policy or baseline evidence may trigger a review, if this would render the Local Plan ineffective or incompatible with the Framework on a key matter.
- 10.6 There is a legal requirement to review local plan policies at least every 5 years from the date of adoption to assess whether they are in need of updating as prescribed by Regulation 10A of the Town and Country Planning (Local Planning) (England) Regulations 2012 (as amended) and paragraph 33 of the NPPF (2019).

Table 10.1: Monitoring Framework

The Economy	Policy	Targets	Monitoring Details: Indicators
D1: Sustainable Economic Growth, D2: Jobs & Training, D3: Tourism, N1: Dronfield, Eckington and Killamarsh Town Centres, N3: Employment Land, W1: Strong and Vibrant Communities, W3: Diversifying the Rural Economy, S1: Clay Cross Town Centre, S2: Regeneration, E1: Regeneration <i>The following policy references work towards meeting these objectives: SS1, SS2, SS3, SS4, SS5, SS6, SS7, SS8, LC1, LC4, LC6, WC1, WC2, WC3, WC4, WC5, WC6, SP1, SP2, SP3, SP4, SDC1, ID1</i>	SS2 - Spatial Strategy and the Distribution of Development <i>Plan Objectives: D1, D2, D4, D5, D6, D7, D8, D9, D11, D12, D13, D14, N1, N3, W1, W2, W3, S1, S2, E1, E2.</i>	Employment Delivery of at least 43ha of employment land by 2034.	- Annual monitoring of employment land take-up. - Progress on delivery to be reported annually in the AMR.
	SS3, SS4, SS5 and SS6 - Strategic Sites and Regeneration Priority Area. <i>Plan Objectives: D1, D2, D5, D10, D11, D13, S2, E1, E2.</i>	Employment - Delivery of a minimum of 4ha of additional employment land on The Avenue Strategic Site, Wingerworth. - Delivery of 5ha of employment land including provision for starter units and managed workspace on the Former Biwaters Strategic Site, Clay Cross. - Delivery of 4ha of employment land on the Markham Vale Strategic Site, Long Duckmanton. - Potential delivery of up to 28ha of employment land on the Former Coalite Chemical Works Priority Regeneration Area, Long Duckmanton.	- Annual monitoring of employment land take-up. - Progress on delivery to be reported annually in the AMR.

Table 10.1: Monitoring Framework continued

The Economy	Policy	Targets	Monitoring Details: Indicators
D1: Sustainable Economic Growth, D2: Jobs & Training, D3: Tourism, N1: Dronfield, Eckington and Killamarsh Town Centres, N3: Employment Land, W1: Strong and Vibrant Communities, W3: Diversifying the Rural Economy, S1: Clay Cross Town Centre, S2: Regeneration, E1: Regeneration <i>The following policy references work towards meeting these objectives: SS1, SS2, SS3, SS4, SS5, SS6, SS7, SS8, LC1, LC4, LC6, WC1, WC2, WC3, WC4, WC5, WC6, SP1, SP2, SP3, SP4, SDC1, ID1</i>	WC2 - Principal Employment Areas WC3 - General Employment Areas <i>Plan Objectives: D1, D2, D4, D9, D12, D13, N1, N3, S1, S2, E1, E2.</i>	No loss of B2, B8 or E(g) land uses on employment areas beyond the expected rate of 20ha over the Plan period.	- Annual monitoring of loss of employment land. - Position to be reported annually in the AMR.
	WC4 - Retail Hierarchy and Town Centre Uses <i>Plan Objectives: D1, D2, D3, D4, D9, D12, D13, N1, W1, W3, S1.</i>	- Regeneration and enhancement of the District's town and local centres - No net loss in retail floorspace and social infrastructure within Town Centre boundaries.	- Annual monitoring of new or loss of existing retail floorspace and social infrastructure through planning permissions. - Position to be reported annually in the AMR.

Table 10.1: Monitoring Framework continued

The Community	Policy	Targets	Monitoring Details: Indicators
D4: Sustainable Communities, D5: Housing for All <i>The following policy references work towards meeting these objectives: SS1, SS2, SS3, SS4, SS7, SS8, SS11, LC1, LC2, LC3, LC4, LC5 LC8, LC9, WC1, WC2, WC3, WC4, WC5, WC6, SDC1, ID4, ID5, ID10</i>	SS2 - Spatial Strategy and the Distribution of Development <i>Plan Objectives: D1, D2, D4, D5, D6, D7, D8, D9, D11, D12, D13, D14, N1, N3, W1, W2, W3, S1, S2, E1, E2.</i>	Housing - Delivery of at least 6,600 dwellings by 2034. - Delivery of 330 dwellings per year.	- Annual monitoring of housing completions and commitments. - Progress on delivery to be reported in the AMR. - Delivery over the previous three years to be above 75% of the housing requirement, in line with the Housing Delivery Test.
	SS3, SS4 and SS6 - Strategic Sites and Regeneration Priority Area <i>Plan Objectives: D1, D2, D5, D10, D11, D13, S2, E1, E2.</i>	Housing - Delivery of 731 dwellings on The Avenue Strategic Site, Wingerworth within the Plan Period - Delivery of 825 dwellings on the Former Biwaters Strategic Site, Clay Cross within the Plan Period. - Potential delivery of up to 660 dwellings on the Former Coalite Regeneration Area, Long Duckmanton.	- Annual monitoring of housing completions, housing commitments and anticipated future delivery timescales. - Progress on delivery of allocations and five-year housing land supply to be reported annually in the AMR and Five Year Housing Land Supply Statement.
	LC1 - Housing Allocations <i>Plan Objectives: D1, D5.</i>	330 dwellings to be completed per year. - A five year supply of housing to be maintained throughout the lifetime of the Plan in order to sufficiently meet residual housing need.	- Annual monitoring of housing completions, housing commitments and anticipated future delivery timescales. - Progress on delivery of allocations and five-year housing land supply to be reported annually in the AMR and Five Year Housing Land Supply Statement. - Delivery over the previous three years to be above 75% of the housing requirement, in line with the Housing Delivery Test.

Table 10.1: Monitoring Framework continued

The Community	Policy	Targets	Monitoring Details: Indicators
D4: Sustainable Communities, D5: Housing for All <i>The following policy references work towards meeting these objectives: SS1, SS2, SS3, SS4, SS7, SS8, SS11, LC1, LC2, LC3, LC4, LC5, LC8, LC9, WC1, WC2, WC3, WC4, WC5, WC6, SDC1, ID4, ID5, ID10</i>	LC2 - Affordable Housing <i>Plan Objectives: D5.</i>	- Affordable housing developments to be achieved in line with policy. 20% or 30% affordable housing provision on sites of 10 or more dwellings or with a site area of 0.5ha or more.	- Annual monitoring of Affordable Housing completions and commitments. - Progress on delivery and achievement of policy target to be reported annually in the AMR.
	LC4 - Type and Mix of Housing <i>Plan Objectives: D1, D5.</i>	- Developments coming forward during the Plan Period should provide a mix of types, tenures and sizes of dwellings. - Accommodation available for older people and people with disabilities to increase. 20% of dwellings in developments of 10 or more dwellings to comply with Part M Category 2 of the Building Regulations - accessible and adaptable dwellings. - Sufficient Self and Custom Build plots are available to meet the demand on the Self and Custom Build Register.	- Annual monitoring of developments in relation to Table 5.1, breaking down both market and affordable housing completions into size. - The number of commitments and completions of specialist housing. - The number of developments providing 20% of dwellings which comply with Part M Category 2 of the Building Regulations - accessible and adaptable dwellings. - The number of Self and Custom Build Plots permitted and the number of entries on the Self Build Register.
	LC8 - Allocation of Traveller Sites & LC9 -Provision for Traveller Sites <i>Plan Objectives: D5.</i>	To meet the need identified in the Gypsy and Traveller Accommodation Assessment (GTAA).	- Annual monitoring of delivery of traveller pitches. - Progress on delivery to be reported annually in the AMR.

Table 10.1: Monitoring Framework continued

The Community	Policy	Targets	Monitoring Details: Indicators
D4: Sustainable Communities, D5: Housing for All <i>The following policy references work towards meeting these objectives: SS1, SS2, SS3, SS4, SS7, SS8, SS11, LC1, LC2, LC3, LC4, LC5 LC8, LC9, WC1, WC2, WC3, WC4, WC5, WC6, SDC1, ID4, ID5, ID10</i>	ID1 - Infrastructure Delivery and Developer Contributions <i>Plan Objectives: D1, D4.</i>	To provide the necessary infrastructure to support new development.	- Annual monitoring of critical and essential infrastructure projects listed in the Infrastructure Delivery Plan. Progress on delivery to be reported annually in the Infrastructure Funding Statement and AMR. - Monitoring of developer contributions secured through S106 agreements.

Table 10.1: Monitoring Framework continued

The Environment	Policy	Targets	Monitoring Details: Indicators
D6: Green Belt, D7: Settlement Identity, D8: Addressing Climate Change, D9: Design and Place Making, D10: Heritage Assets, D11: Natural Assets, D12: Sustainable Transport, D13: Local Amenity, D14: Strategic Co-operation, N2: Countryside Recreation, W2: Countryside Character, E2: Land Remediation, E3: Environmental Quality <i>The following policy references work towards meeting these objectives: SS1, SS2, SS5, SS6, SS7, SS8, SS9, SS10, SS11, LC3, LC5, WC1, WC2, WC3, WC4, WC5, WC6, SDC2, SDC3, SDC4, SDC5, SDC6, SDC7, SDC8, SDC9, SDC10, SDC11, SDC12, SDC13, SDC14, SDC15, ID2, ID3, ID7, ID8, ID9, ID10</i>	SS9 - Development in the Countryside <i>Plan Objectives: D8, D9, D10 & D11.</i>	No planning permissions for housing, employment and retail development in the countryside contrary to the policy.	Annual monitoring of planning permissions granted / appeals upheld contrary to the policy which are not justified by material considerations.
	SS10 - North East Derbyshire Green Belt <i>Plan Objectives: D6.</i>	No planning permissions for housing, employment and retail development in the Green Belt contrary to the policy.	Annual monitoring of planning permissions granted / appeals upheld contrary to the policy which are not justified by very special circumstances.
	SS11 - Local Settlement Gaps <i>Plan Objectives: D4, D7, S1.</i>	Maintain the extent of separation between relevant settlements.	- Annual monitoring of planning permissions granted / appeals upheld contrary to the policy, which are not justified by material considerations. - Monitoring of the potential impact of such developments, and whether they require an amendment to the existing LSGs, or a full review.
	SDC4 - Biodiversity and Geodiversity <i>Plan Objectives: D11.</i>	No significant effect on European Sites caused by the NEDDC Local Plan either alone or in combination	In cooperation with neighbouring authorities, monitoring the predicted traffic movements every 3 to 5 years, and comparing these to the baseline set out in the Habitats Regulation Assessment - Appropriate Assessment Report, 2018.

Appendix A:

List of Saved Policies from the 2005 Adopted Plan Deleted by this Plan.

Chapter	Policy reference	Policy title
Chapter 1 - General Strategy	GS1	Sustainable Development
	GS2	Development in the Green Belt
	GS3	Major Developed Sites in the Green Belt
	GS5	Settlement Development Limits
	GS6	New Development in the Countryside
	GS7	Change of Use and Conversions
	GS8	Temporary Land Uses and Buildings
	GS9	Planning Obligations
	GS11	Hazardous Installations
	GS12	Access for All
Chapter 2 - Natural Environment	NE1	Landscape Character
	NE2	Special Landscape Areas
	NE3	Protecting and Managing Features of Important to Wild Flora and Fauna
	NE4	Sites of National Importance for Nature Conservation
	NE5	Other sites of Importance for Nature Conservation
	NE6	Development Affecting Nationally Rare Species
	NE9	Development and Flood Risk
Chapter 3 - Built Environment	BE1	General Design Principles
	BE2	External Lighting and Floodlighting
	BE3	Security Shutters
	BE5	Percent For Art
	BE6	Scheduled Ancient Monuments and Archaeological Sites
	BE7	Alterations and Works to Listed Buildings
	BE8	Change of Use of a Listed Building
	BE9	Development in the Vicinity of a Listed Building
	BE11	Development Within and Adjoining Conservation Areas
	BE12	Demolition of Unlisted Buildings and Structures Within a Conservation Area
	BE13	Historic Parks and Gardens

Appendix A: continued

Chapter	Policy reference	Policy title
Chapter 4 - Employment Development & Tourism	E1	New Employment Land Provision
	E2	Callywhite Lane Extension
	E3	Norwood Extension - Killamarsh
	E4	Mixed Use site Former Avenue Coking Works, Wingerworth
	E5	Mixed Use Development Former Biwaters site, Clay Cross
	E6	Existing Employment Areas
	E7	Development in New and Existing Areas
	E8	Employment Development in Other Areas
	E9	Employment Development in the Countryside
	E10	Tourism Development
	E11	Tourist Accommodation
	E12	Camping and Caravan sites
Chapter 5 - Housing	H1	Sites for residential development
	H2	Housing Development on Other Sites Within the SDLs
	H3	New Housing Outside Settlement Development Limits
	H5	Domestic Extensions
	H6	Affordable Housing Provision in the Main Settlements
	H7	Affordable Housing in Settlements with a Population of 3000 or fewer
	H8	Affordable Housing: Alternative Provision
	H9	Affordable Housing: Exception Sites in Rural Areas
	H11	Sites for Gypsies and Travellers
	H12	Design and Layout of New Housing
Chapter 6 - Town Centres & Retailing	SH1	Clay Cross Town Centre Development
	SH2	Retail Development in Town Centres
	SH3	Ground Floor Development Within Centres
	SH4	Upper Floor Development Within Centres
	SH5	Retail Development in Edge of Centre Locations
	SH6	Retail Developments in Out of Centre Locations
	SH8	Loss of Local Facilities
	SH9	Hot Food Take-Aways, Restaurants and Public Houses
	SH10	Weekly Markets and Car Boot Sales
	SH11	Farm Shops
	SH12	Garden Centres

Appendix A: continued

Chapter	Policy reference	Policy title
Chapter 7 - Transport	T1	Clay Cross Diversion
	T2	Highway Access and the Impact of New Development
	T3	Traffic Management
	T4	Travel Plans
	T5	Walking and Cycling
	T6	Public Transport
	T8	Disused Transport Routes
	T9	Car Parking Provision
	T10	Car Park, Dronfield Station
Chapter 8 - Recreation & Leisure	R1	Outdoor Recreation Space Standards
	R2	Formal Recreation Facilities
	R3	Urban Green Space
	R4	Allotments
	R5	Providing for Children's Play Space through New Development
	R8	Specialist and Noise Generating Recreational Activities
	R9	Equestrian Development
	R10	Golf Courses and Driving Ranges
	R11	Development Affecting Public Rights of Way
	R12	The Chesterfield Canal
	R13	Country Parks
Chapter 9 - Community Facilities, Services & Utilities	CSU1	Sites for Educational Use
	CSU2	Purpose Built Community Facilities
	CSU3	Protection of Existing Community Facilities
	CSU4	Surface and Foul Water Drainage
	CSU5	Development in the Vicinity of Sewage Treatment Works
	CSU6	Contaminated Land
	CSU7	Renewable Energy
	CSU8	Telecommunications

Appendix B:

Housing Provision

Settlements	Completions 2014-20	Minor Permissions at 31/03/2020 not allocated (minus 7% expiry rate)	Deliverable Major permissions at 31/03/20 not allocated	Allocations with planning permission (31/03/20)	Allocations without planning permission (31/03/20)	TOTAL
Clay Cross	149	47	98	0	170	464
Dronfield	70	23	10	0	200	303
Eckington	135	19	0	59	0	213
Killamarsh	76	16	0	24	444	560
Calow	40	3	19	47	0	109
Grassmoor	231	9	0	36	0	276
Holmewood	193	0	0	291	0	484
Morton	52	4	0	100	0	156
North Wingfield	79	20	0	0	0	99
Pilsley	25	28	0	87	0	140
Renishaw	-5	2	0	0	0	-3
Shirland	82	6	0	105	0	193
Stonebroom	60	10	39	35	0	144
Tupton	104	7	0	251	0	362
Wingerworth	270	20	206	256	0	752
Strategic Sites	138	0	0	1418	0	1556
Level 3 and 4 settlements, countryside locations	297	203	403	0	0	903
TOTAL	1996	417	775	2709	814	6711

Appendix C: Housing Trajectory (April 2020)

Site Allocation	Planning permission	Yield (remaining)	Year 1 2020/ 2021	Year 2 2021/ 2022	Year 3 2022/ 2023	Year 4 2023/ 2024	Year 5 2024/ 2025	Year 6 2025/ 2026	Year 7 2026/ 2027	Year 8 2027/ 2028	Year 9 2028/ 2029	Year 10 2029/ 2030	Year 11 2030/ 2031	Year 12 2031/ 2032	Year 13 2032/ 2033	Year 14 2033/ 2034
Former Biwater Strategic Sites	Yes	730	15	45	60	60	60	60	60	60	60	60	60	60	60	10
CC1: Land off Stretton Road	No	120											15	35	35	35
CC2: Land North of Clay Lane, Clay Cross	No	25						15	10							
CC3: Land off Holmgate Road, Clay Cross	No	15													5	10
CC4: Land at Broadleys, Clay Cross	No	10														10
DR1: Land off Shakespeare Crescent & Chesterfield Road, Dronfield	No	160					25	35	35	35	30					
DR2: Land at Stubley Drive, Stubley Hollow, Dronfield	No	40					5	10	10	10	5					
EC1. Bradley Lomas Electrolok Ltd, Church Street, Eckington	Yes	20			10	10										
EC2. Land at Staveley Lane, Eckington	Yes	39	20	19												
KL1. Land at Westthorpe, Killamarsh	No	330				15	35	35	35	35	35	35	35	35	35	
KL2. Land off Rotherham Road, Killamarsh	No	70							20	25	25					
KL3. Land off Primrose Lane, Killamarsh	No	30													15	15

Appendix C: continued

Site Allocation	Planning permission	Yield (remaining)	Year 1 2020/ 2021	Year 2 2021/ 2022	Year 3 2022/ 2023	Year 4 2023/ 2024	Year 5 2024/ 2025	Year 6 2025/ 2026	Year 7 2026/ 2027	Year 8 2027/ 2028	Year 9 2028/ 2029	Year 10 2029/ 2030	Year 11 2030/ 2031	Year 12 2031/ 2032	Year 13 2032/ 2033	Year 14 2033/ 2034
KL4. Land at 30 Ashley Lane, Killamarsh	No	14													7	7
KL5. Old Station, Killamarsh	Yes	13			6	7										
KL6. Land off Boiley Lane, Killamarsh	Yes	11	5	6												
CA1. Land at Churchmeadows, Calow	Yes	47							20	27						
GR1. Land at Windwhistle Farm, Grassmoor	Yes	36	18	18												
HO1. Land to the west of Chesterfield Road, Holmewood	Yes	225			35	47	48	35	35	25						
HO2. Allotments at Hunloke Road, Holmewood	Yes	12	12													
HO3. Land to the South of, 205 Chesterfield Road, Holmewood	Yes	40			10	15	15									
HO4. Land between 205 and 235 Chesterfield Road, Holmewood	Yes	14	4	6	4											
MO1. Land North of Stretton Road, Morton	Yes	100			30	35	35									
PI1. Land at Hallgate Lane, Pilsley	Yes	87						17	35	35						
SH1. Land at Hallfieldgate Lane, Shirland	Yes	65	25	25	15											

Appendix C: continued

Site Allocation	Planning permission	Yield (remaining)	Year 1 2020/ 2021	Year 2 2021/ 2022	Year 3 2022/ 2023	Year 4 2023/ 2024	Year 5 2024/ 2025	Year 6 2025/ 2026	Year 7 2026/ 2027	Year 8 2027/ 2028	Year 9 2028/ 2029	Year 10 2029/ 2030	Year 11 2030/ 2031	Year 12 2031/ 2032	Year 13 2032/ 2033	Year 14 2033/ 2034
SH2. Land North of Park Lane, Shirland	Yes	40							10	30						
ST1. Land to rear of 14A to 54 High Street, Stonebroom	Yes	35												20	15	
TU1. Land at Ankerbold Road, Tupton	Yes	203		25	40	35	35	35	33							
TU2. Land to the Rear of 10 to 52, Ashover Road, Old Tupton	Yes	6	6													
TU3. Land South of Sunningdale Park, Tupton	Yes	42	6	2	12	20	2									
The Avenue Strategic Site	Yes	688	30	50	50	50	50	50	50	50	50	50	50	50	54	54
WW1. Hanging Banks, Wingerworth	Yes	176	15	30	30	30	30	30	11							
WW2. Land South of Mill Lane, Wingerworth	Yes	80	10	35	20	15										
Total Allocations (with and without permission)		3523	166	261	322	339	340	322	364	332	205	145	160	200	226	141

Appendix C: continued

Sites with permission at 31/03/2020 (not allocated)	Yield (remaining)	Year 1 2020/ 2021	Year 2 2021/ 2022	Year 3 2022/ 2023	Year 4 2023/ 2024	Year 5 2024/ 2025	Year 6 2025/ 2026	Year 7 2026/ 2027	Year 8 2027/ 2028	Year 9 2028/ 2029	Year 10 2029/ 2030	Year 11 2030/ 2031	Year 12 2031/ 2032	Year 13 2032/ 2033	Year 14 2033/ 2034
19/00868/RM - Land South West Of Grange Farm, Milken Lane, Ashover	10	2	5	3											
17/00841/RM - Land At The Junction Of Narrowleys Lane And, Moor Road, Ashover	26		6	13	7										
18/00777/OL - 56 Top Road Calow	19						14	5							
18/00273/FL - Watercress Farm, Watercress Lane, Clay Cross	14	7	7												
16/01260/OL - Land North Of Pilsley Road And West Of Coney Green Road, Clay Cross	84					35	35	14							
17/00751/FL - NEDDC Area Housing Office, High Street, Dronfield	10						10								
17/00806/FL - Land Between Bypass And The Rear of, 109 To 247, Mansfield Road, Hasland	160	10	40	40	40	30									
17/00509/FL - S And A Parsons Building , Highmoor, Killamarsh	22	5	11	6											
16/00034/OL - Land East Of Rupert Street And South Of, Green Lane, Pilsley	54							24	30						
18/00107/RM - Fox Hall, Green Lane, Lower Pilsley	32	10	12	10											
316/00276/OL - Land Between Poplar Grove And Park House Farm, Pilsley Road, Pilsley	15			5	5	5									

Appendix C: continued

Sites with permission at 31/03/2020 (not allocated)	Yield (remaining)	Year 1 2020/2021	Year 2 2021/2022	Year 3 2022/2023	Year 4 2023/2024	Year 5 2024/2025	Year 6 2025/2026	Year 7 2026/2027	Year 8 2027/2028	Year 9 2028/2029	Year 10 2029/2030	Year 11 2030/2031	Year 12 2031/2032	Year 13 2032/2033	Year 14 2033/2034
16/00665/FL - Land Between Locko Road, Lower Pilsley	13	5	5	3											
17/00585/OL - Land to north, West street, Stonebroom	29						14	15							
18/00053/OL - Land to the north west of 101 Birkinstyle Lane, Stonebroom	10						10								
14/00249/OL - Land To The East Of Prospect House Highstairs Lane Stretton	28		5	23											
18/00461/FL - Land North And West Of Creg Ny Baa Brackenfield Lane Wessington	43	10	20	13											
18/00188/OL - Land To The Rear Of Hockley House, Hockley Lane, Wingerworth	26	6	14	6											
17/00268/OL - Land North Of Spindle Drive And East Of, Deerlands Road, Wingerworth	180					35	35	35	35	40					
Total Major Deliverable Sites with permission at 31/03/2020 (not allocated)	775	55	125	122	52	105	118	93	65	40					
Minor Sites with permission at 31/03/2020 minus 7% expiry rate	417	42	84	84	84	82	41								
TOTAL	4715	263	470	528	475	527	481	457	397	245	145	160	200	226	141

Appendix D:

Calculation of Financial Contributions for Open Space and Recreation Facilities

The following tables give the figures that should be used for the calculation of financial contributions for the future maintenance of on site and new off site facilities (per annum), for the provision of new off site facilities, and for the enhancement of existing off site facilities.

Table 1: Commuted Sums Calculations for the Maintenance of on site and new off site facilities per annum*

Facilities	Rate / m ²	Rate / facility
Green space	£0.46	N/A
Shrub beds	£4.58	N/A
Bowls green	£7.49	N/A
Informal Recreational Field	£0.33	N/A
Equipped Children's Play Space	N/A	£1,536.09
Youth Shelter	N/A	£321.26
MUGA	£3.16	N/A
Wheeled sports area (area shall be determined by the total hard surface or track area)	£12.76	N/A

* The above maintenance table is based on April 2020 rate values. These will be updated annually in line with the retail price index, as a percentage increase from the year before. The following formula is to determine the amount of commuted sum required by the Council for maintaining on site and new off-site provisions which are conveyed to the Council, based on a 10 year period:

n = Number of years = 10 years

f = Inflation / i = interest rate = The percentage values will be the rates applicable will be those published by the Bank of England at the onset of the commuted sum being transferred to the Council.

$$(1 - ((1 + f/100)/(1 + i/100))^{(n+1)}) / (1 - (1 + f/100)/(1 + i/100)) - 1$$

The formula will calculate a multiplier for the rate value specified.

Table 2: Contribution towards new off-site provision per dwelling*

Based on number of bedrooms per dwelling

Type	Elderly Person Dwelling	1 Bed Dwelling	2 Bed Dwelling	3 Bed Dwelling	4 Bed Dwelling	5 + Bed Dwelling
Green Space or Informal Recreational Field	£256.38	£256.38	£336.98	£439.53	£498.16	£556.80
Equipped Children's Play Space	Nil	Nil	£1,003.68	£1,106.11	£1,216.15	£1,340.65
Outdoor Youth Facilities	Nil	Nil	£615.30	£688.68	£761.89	£842.49

* The above contribution table is based on April 2020 rate values. These will be updated annually in line with the retail price index, as a percentage increase from the year before.

Table 3: Contribution towards the enhancement of existing Off-site provision per dwelling*

Based on number of bedrooms per dwelling

Type	Elderly Person Dwelling	1 Bed Dwelling	2 Bed Dwelling	3 Bed Dwelling	4 Bed Dwelling	5 + Bed Dwelling
Green Space or Informal Recreational Field	£227.06	£227.06	£300.30	£380.89	£417.57	£461.61
Equipped Children's Play Space	Nil	Nil	£769.27	£850.12	£937.68	£1,033.00
Outdoor Youth Facilities	Nil	Nil	£476.06	£527.48	£586.13	£644.76

* The above contribution table is based on April 2020 rate values. These will be updated annually in line with the retail price index, as a percentage increase from the year before.

Appendix E:

Open Space, Sports and Recreation Categories and Designation

Overview of open space, sports and recreation categories and their designation on the Policies Map.

Recreation survey	Local Plan - Policies Map
Allotments	Allotments
Amenity Green Space and Commons	Urban Green space
Green Corridors	
Parks	
Cemeteries and Churchyards	
Children Play Spaces	Recreation sites
Outdoor Youth Facilities	
Informal Recreational Fields	
Informal Recreational Fields (School Fields in Dual Use)	
Informal Recreational Fields (Education Provision Only)	
Playing Pitches and non-pitch Facilities (Outdoor Sports Provision)	Formal Sport sites
Playing Pitches and non-pitch Facilities (School Fields in Dual Use)	
Playing Pitches and non-pitch Facilities (Education Provision Only)	
Indoor Sports Provision	

Glossary

A61 Corridor - A D2N2 Growth Deal project which sets out infrastructure funding priorities to support economic growth, provide infrastructure improvements, reduce commuter journey times, provide sustainable transport routes and provide opportunities for major housing and employment growth.

Accessibility - The ability of people to move around an area and reach places and facilities, e.g. elderly and disabled people.

Adoption - The final confirmation of a development plan or Local Development Document status by a local planning authority (LPA).

Affordable Housing - The Local Plan has been examined in light of the 2012 NPPF, which defines affordable housing as including social rented, affordable rented and intermediate housing (both for rent and sale), provided to eligible households whose needs are not met by the market. The 2019 NPPF includes a different definition of affordable housing. This will be addressed through a review of the Plan.

Ageing Population - A change in the age structure within an area, where the average age rises and a growing number of people live beyond the standard working age.

Air Quality Management Area (AQMA) - Areas designated by local authorities which are not likely to achieve national air quality objectives, with a need to devise an action plan (AQAP) to improve the quality of air.

Amenity - A positive element or elements that contribute to the overall character of an area, for example open land, trees, historic buildings and how they relate to each other.

Ancient Woodland - Woodlands where there has been continuous woodland cover since at least 1600AD. Ancient woodland is likely to be home to more threatened species than any other habitat in the UK.

Ancillary Use / Operations - A subsidiary or secondary use or operation closely associated with the main use of a building or piece of land.

Areas of Multiple Environmental Sensitivity (AMES) - Areas where two or more significant factors (such as historic, ecological or visual importance) affect the land/sites within it (as defined by Derbyshire County Council).

Authority Monitoring Report (AMR) - Provides an assessment of the progress made against targets and the performance of policies.

Best and Most Versatile Agricultural Land - Land in grades 1, 2 and 3a of the Agricultural Land Classification.

Biodiversity - The whole variety of life encompassing all genetics. Species and ecosystem variations, including plants and animals.

Biodiversity Action Plan (BAP) - A Strategy prepared for a local area aimed at conserving biological diversity.

Blue Infrastructure - Infrastructure which relates to water both natural and man-made. Includes rivers, streams, ponds and lakes.

Change of Use - A change in the way that land or buildings are used (see Use Classes). Planning permission is usually necessary in order to change from one 'use class' to another.

Climate Change - Long-term changes in temperature, precipitation, wind and all other aspects of the Earth's climate. Often as a result of human activity and fossil fuel consumption.

Coal Authority Risk Assessment - Required if submitting a planning application in a Coal Authority Development High Risk Area. The assessment identifies site specific coal mining risks and sets out the proposed mitigation strategy.

Coalescence - the merging or coming together of separate towns or villages to form a whole entity.

Community Facility - Facilities which provide for the health and wellbeing, social, educational, spiritual, recreational, leisure, or cultural needs of the community.

Community Infrastructure Levy (CIL) - A levy allowing local authorities to raise funds from landowners of developers undertaking new development in order to fund improvements to services, systems or facilities needed by the development.

Community Right to Bid - The right (under the Localism Act) for local communities to request that certain assets are listed as being of value to the local community. If an asset is listed and then comes up for sale, the community will then have 6 months to put together a bid to buy it.

Community Right to Build Order - An order drawn up by the local community and made by the local planning authority (under the Localism Act) that grants planning permission for a site-specific development proposal or classes of development.

Comparison Goods - Retail items not bought on a frequent basis, for example durable goods such as clothing, household goods, furniture, DIY and electrical goods.

Conservation - The process of managing change to a historic asset in a way that sustains and enhances its significance.

Conservation Area - An area of special architectural or historic interest, the character, appearance or setting of which it is desirable to preserve or enhance.

Contaminated Land - Land that has been polluted or harmed in some way making it unfit for safe development unless cleaned, or the harmful effects reduced to an acceptable level.

Conurbation - A large densely populated urban sprawl formed by the growth and coalescence of individual towns or villages.

Convenience Goods - Everyday goods, such as milk, newspaper, food. Shops which hold these goods are usually close to people's

homes so people can make many visits during the week.

Countryside - The Countryside (or 'countryside locations') consists of all locations in the Plan area outside Settlement Development Limits as shown on the Policies Map (see paragraph 4.58). This specifically concerns references in Policies SS9, LC6, WC4, WC5, WC6, SDC1, SDC10 & ID8.

Where the Green Belt coincides with the Countryside, Green Belt policies also apply.

Custom Build Homes - A form of self-build homes which are facilitated in some way by a developer. It gives a more 'hands off' approach than traditional self-build.

D2N2 - The Local Enterprise Partnership for Derby, Derbyshire, Nottingham and Nottinghamshire.

Decentralised energy - Locally generated renewable and low carbon energy usually, but not always, on a relatively small scale encompassing a diverse range of technologies.

Density - A measure (for residential development) of either the number of habitable rooms per hectare or the number of dwellings per hectare.

Deprived/deprivation - The damaging lack of material benefits considered to be basic necessities in society.

Designated Heritage Asset - A World Heritage Site, Scheduled Ancient Monument, Listed Building, Registered Park & Garden, Registered Battlefield, or Conservation Area designated under relevant legislation.

Development Plan - In North East Derbyshire this includes saved policies from the adopted Local Plan and will include this Local Plan and adopted Neighbourhood Plans.

Digital Derbyshire - A partnership with BT to lay hundreds of miles of fibre optic cable bringing faster broadband to parts of Derbyshire.

Duty to Cooperate - A legal test which requires cooperation between local planning

authorities and other public bodies in relation to Local Plans. It is separate from but related to the Local Plan test of soundness.

Ecological Network - These link sites of biodiversity importance or existing and future habitats.

Economic Development - Development, including those within the B Use Classes, public and community uses and main town centre uses (excludes housing development) (NPPF 2012 Glossary).

Employment Land Review (ELR) - A study to review the current employment land supply and look to identify appropriate type, quantity and location of employment land which will be capable of accommodating projected economic growth across the plan period.

Employment Uses - Development including uses within the B Use Classes, and all other use classes except C3 Housing. This corresponds to Economic Development as defined in the 2012 NPPF Glossary (see above).

Energy Hierarchy - A hierarchy which prioritises the conservation and efficient use of energy, and then the generation of energy from renewable and low carbon sources.

Enterprise Zone - A designated area that provides tax breaks and Government support to help increase economic development in an area.

Equality Impact Assessment - Measures whether the Local Plan and policies discriminate against any disadvantaged or vulnerable people.

European Site - Includes candidate Special Areas of Conservation, Special Areas of Conservation and Special Protection Areas, defined in the Conservation of Habitats and Species Regulations 2010 (Regulation 8).

Examination - The process by which an independent planning inspector examines a local plan, with any public recommendations, before publishing a report on its soundness.

Exception Sites - Small sites used for affordable housing which would not usually be allowed residential development.

Exception Test - Provides a method of managing flood risk while still allowing necessary development to occur. The Exception Test is only appropriate for use when there are large areas in Flood Zones 2 and 3, where the Sequential Test alone cannot deliver acceptable sites.

Exceptional Circumstances - These are needed to justify making a change to the Green Belt in a Local Plan, as required by the National Planning Policy Framework.

Five year housing land supply - As set out by the NPPF, Local Planning Authorities should identify and annually update a supply of specific deliverable sites sufficient to provide five years' worth of housing land when set against their housing requirements.

Flood Risk Assessment - Assessment of the likelihood of flooding in a particular area so that development needs and mitigation measures can be carefully considered.

Flood Zones - National planning guidance sets out three levels of flood risk which can be mapped in zones. Zone 1 covers areas of little or no risk of flooding. Zone 2 covers areas with low to medium risk. Zone 3 covers areas of high risk. The Environment Agency produces and maps of these zones and updates them every 3 months.

Formal Greenspace - 'Good' quality greenspace which is well maintained and includes paths which are associated with recreation activities.

Fragmentation (spatial) - Separated urban spaces which are broken up by rural land or vice versa.

Geodiversity - The range rocks, minerals fossils, soils and landforms.

Green Belt - A designation for land around certain cities, towns and built up areas which aims to keep this land permanently open or largely undeveloped.

Green Infrastructure - A strategic network of multi-functional green space, both rural and urban, which supports natural and ecological process, has the potential to provide sustainable transport routes and is integral to the health and quality of life in sustainable communities.

Green Space - An area of grass, trees or other vegetation set apart for recreational or aesthetic purposes in an otherwise urban environment.

Greenfield Land/site - Land which has never been built on before or where the remains of any structure or activity have blended into the landscape over time.

Greenways/ Green Networks - Are generally car-free off-road routes for shared use by people of all abilities on foot, bike or horseback.

Habitats Regulation Assessment - Formal assessment of the impacts of a plan or project on specific nature conservation areas, namely Special Protection Area (SPA), Special Area of Conservation (SAC) or proposed Spas and Ramsar sites. The assessment is undertaken under the Habitats Directive and Regulations.

Health and Safety Executive (HSE) - A statutory consultee for planning applications around major hazard sites and major hazard pipelines. HSE sets a consultation distance around the major hazard site within which the planning authority must consult over relevant developments which are likely to lead to an increased population around the hazard.

Heritage Assessment - Provides information to understand the impact of proposals on the significance of any heritage assets affected i.e. a building, monument, site, place, area or landscape positively identified as having a degree of significance meriting consideration in planning decisions.

Historic England - A public body which looks after England's historic environment.

Historic Environment - All aspects of the environment which result from the interaction between people and places through time.

Including all surviving physical remains of past human activity, whether visible, buried or submerged, and landscaped and planted or managed flora. Elements of the historic environment which hold significance are called heritage assets.

Housing Delivery Test - Measures net additional dwellings provided against the homes required. The Government publishes the results for each local authority in England annually.

Housing Market Area (HMA) - The geographical area which reflects the functional relationships of a housing market. The North Derbyshire HMA covers North East Derbyshire, Chesterfield Borough, Bolsover District and Bassetlaw District.

Housing Trajectory - A means of showing past and future housing performance by identifying the predicated provision of housing over a period of time.

HS2 - High-speed railway which is aimed to be the new backbone of the national rail network, linking London, Birmingham, the East Midlands, Sheffield, Leeds and Manchester.

Impact Assessment (Character and Visual)

- Aims to ensure that all possible effects of change and development both on the landscape itself and on views and visual amenity, are taken into account in decision-making.

Impact Assessment (Retail and Leisure) -

Undertaken for an application for retail and leisure use on the impact of the proposal on the vitality and viability of existing centres within the catchment area of the proposed development. The assessment includes the likely cumulative effect of recent permissions, developments under construction and completed developments.

Index of Multiple Deprivation (IMD) - A

ward level index made up of six indicators (income; employment; health deprivation and disability; education skills and training; housing; and geographical access to services). The IMD can help to identify areas for regeneration.

Infrastructure - Basic services necessary for development to take place, for example, roads, electricity, sewerage, water, education and health facilities.

Infrastructure Delivery Plan IDP - The IDP identifies what physical, social and green infrastructure is needed, who will deliver the infrastructure, and when.

Land Availability Assessment (LAA) - An assessment which aims to identify land that may be appropriate for development (residential, employment or Gypsy and Traveller sites). It assesses the availability, suitability and achievability of potential sites. All sites identified are subject to assessment made in stages following the LAA methodology.

Land Instability - Land at risk of landslides, subsidence or ground heave due to the type of rock/soil of the land or from previous site uses such as coal mining. Failing to deal with land instability issues can result in harm to human health, local property, infrastructure and the wider environment.

Landscape Character - The distinct and recognisable pattern of elements that occur consistently in a particular type of landscape and give it recognisable identity.

Limited Infill Development - Building on a relatively small site between existing buildings in a built up area.

Listed Building - A building of special architectural or historic interest, graded I (highest quality), to II* or II.

Local Centre - Includes a range of small shops and perhaps limited services of a local nature, serving a small catchment.

Local Distinctiveness - The positive features of a place and its communities which contribute to its special character and sense of place.

Local Enterprise Partnership (LEP) - North East Derbyshire falls within two LEP areas, the Sheffield City Region (SCR) and Derby & Derbyshire and Nottingham & Nottinghamshire (D2N2).

Local Green Spaces - Green areas of particular local importance identified for special protection according to criteria set out in the NPPF.

Local Nature Reserve - Habitats of local significance where protection and public understanding of nature conservation is encouraged.

Local Plan - Part of the development plan for a local area.

Local Settlement Gap (LSG) - North East Derbyshire District Council's local designation of areas designed to maintain settlement identity.

Local Wildlife Sites - Local wildlife sites are non-statutory areas of local importance for nature conservation that complement nationally and internationally designated geological and wildlife sites.

M1 Strategic Growth Corridor - Provides excellent north-south road links between Junctions 28-30. The M1 corridor has supported significant economic activity around Junction 29a which was built to serve the Markham Vale Business and Industrial Park.

Major Development - For housing, it is defined as development where 10 or more homes will be provided, or the site has an area of 0.5 hectares or more. For non-residential development it means additional floorspace of 1000m² or more, or a site of 1 hectare or more, or as otherwise provided in the Town and Country Planning (Development Management Procedure) (England) Order 2015.

Master Plan - A type of planning brief outlining the preferred usage of land and the overall approach to the layout of a development on a site or group of sites. To provide detailed guidance for subsequent planning applications.

Mineral Consultation Area - An area identified to ensure consultation between the relevant materials planning authority, the minerals industry and others before certain non-mineral planning applications made within the area are determined.

Mineral Safeguarding Area - An area designated by a Mineral Planning Authority which covers known deposits of minerals which are desired to be kept safeguarded from unnecessary sterilisation by non-mineral development.

Minerals Application - Applications for mineral related developments, such as mineral extraction and ancillary works, quarries, peat workings and processing plants.

National Park - Designated by the Countryside Agency, subject to confirmation by the Secretary of State under the National Parks and Access to the Countryside Act 1949. The purposes of national parks are to conserve and enhance their natural beauty, wildlife and cultural heritage and to promote opportunities for public understanding and enjoyment of their special qualities.

National Planning Policy Framework - Sets out the Government's planning policies for England and how these are expected to be applied. It sets out the Government's requirements for the planning system only to the extent that it is relevant, proportionate and necessary to do so.

Neighbourhood Plan - A plan prepared by a Parish or town Council or Neighbourhood Forum for a particular neighbourhood area. Once adopted, the Neighbourhood Plan becomes part of the development plan for the area.

Objectively Assessed Housing Need (OAN) - Need of market and affordable housing in a District or Housing Market Area.

One Public Estate Programme - A national programme which aims to support and fund councils to help deliver property-focused programmes and utilising the Council's collective assets.

Outline Planning Application - A general application for planning permission to establish that a development is acceptable in principle, subject to subsequent, approval of detailed matters. Does not apply to changes of use.

Phasing or Phased Development - The phasing of development into manageable parts, for example and annual rate of housing release for a large development that may need to be controlled so as to avoid destabilising housing markets and causing low demand.

Planning & Compulsory Purchase Act 2004 - The Act introduces:

- a statutory system for regional planning
- a new system for local planning
- reforms to the development control and compulsory purchase and compensation systems
- removal of crown immunity from planning controls.

Planning Condition - A condition imposed on a grant of planning permission or a condition included in a Local Development Order or Neighbourhood Development Order.

Planning Permission - Formal approval sought from a local planning authority to allow a proposed development to proceed, often granted with conditions.

Pollution - Anything which affects the quality of land, air, water, or soils which might lead to an adverse impact on human health, the natural environment, or general amenity.

Previously Developed Land (PDL) or 'Brownfield' Land - Land which is or was occupied by a permanent structure. This excludes land that is or has been occupied by agricultural or forestry buildings, land that has been developed for minerals extraction or waste disposal where provision has been made for restoration.

Protected Species - Plants and animal species afforded protection under certain Acts of Parliament and Regulations.

Public Open Space - Urban space, designated by a council, which fulfils or can fulfil a recreational or non-recreational role (for example, amenity, ecological, educational, social or cultural usages).

Public Realm - The publicly accessible external space including pavements, streets, squares, parks.

Reclaimed/Reclamation - Operations designed to return an area to an acceptable environmental state, whether for the resumption of the former land use or for a new use. Including restoration, aftercare, soil handling, filling and contouring operations.

Regeneration - The economic, social and environmental renewal and improvement of rural and urban areas.

Regionally Important Geological Sites (RIGS) - A non-statutory regionally important geological or geo-morphological site (basically relating to rocks, the Earth's structure and landform).

Registered Parks and Gardens - Designated heritage assets of national importance which are registered for their special historic interest.

Renewable and Low Carbon Energy - Energy that reduces emissions of CO2 and other 'greenhouse' gases. For example, biomass and energy crops; combined heat and power; heat pumps, such as ground-source and air-source heat pumps; energy from waste including from solid recovered fuel; hydro; solar thermal and photovoltaic generation and wind generation.

Reserved Matters Permission - Within three years of approval of an Outline Planning Permission an application for the outstanding reserved matters can be made. This will typically include information about the layout, access, scale and appearance of the development.

Restrictive Condition (occupancy) - A planning condition "for regulating the development or use of any land under the control of the applicant".

Retail Capacity Study - Provides evidence on shopping patterns and future retail needs commissioned jointly between Bolsover District, Chesterfield Borough and North East Derbyshire District.

Retail Floorspace - Total floor area of a property that is associated with all retail uses. Usually measured in square metres. May be expressed as a net figure (the sales area) or in gross (including storage, preparation and staff areas).

Retail Offer - The range and mixture of different quality, sizes and types of shop within or outside town, district and local centres.

Safeguarding/Safeguarded Zone - An area defined in Circular 01/03: Safeguarding aerodromes, technical sites and military explosives storage areas, to safeguard such sites.

Scheduled Ancient Monument - Nationally important monuments that enjoy greater protection against inappropriate development through the Ancient Monuments and Archaeological Areas Act 1979.

Section 106 Agreements - Legal agreements under Section 106 of the 1990 Town & Country Planning Act, which are between a planning authority and a developer, or undertakings offered unilaterally by a developer, that ensure certain necessary extra works related to a development are undertaken.

Self-Build Housing - Self-building is the act of commissioning a bespoke home that's tailored to the individuals design requirements.

Sequential Approach/ Sequential Test - A planning principle that seeks to identify, allocate or develop certain types or locations of land before others. For example, brownfield housing sites before Greenfield sites, or town centre retail sites before out-of-centre sites.

Setting (of a Heritage Asset) - Is defined as the surroundings in which a heritage asset is experienced. Its extent is not fixed and may change as the asset and its surroundings evolve.

Settlement Development Limit (SDL) - A boundary drawn around a settlement which broadly reflects its built form and is used as a policy tool to define the area within or outside which a Local Plan policy will apply.

Settlement Hierarchy Study - Provides information about settlements in the district and the services and facilities they provide. The primary aim is to promote sustainable communities, and provide an initial spatial strategy for the location of major development across the district.

Sheffield City Region - LEP that brings together the eight local authorities of Barnsley, Bassetlaw, Bolsover, Chesterfield, Doncaster, North East Derbyshire, Rotherham and Sheffield to work with businesses and other partners towards encouraging growth and economic activity to create a prosperous and sustainable City Region.

Sites of Special Scientific Interest (SSSIs) - A conservation designation denoting sites which are protected by law to conserve their wildlife or geology.

Small Medium Enterprises (SMEs) - Non-subsidiary, independent firms which employ less than a given number of employees, usually 250.

Social Infrastructure - Facilities enabling social interaction and wellbeing including community, leisure, cultural, education and children's services, adult care and health buildings and other facilities such as local shops, places of worship, pubs and post offices.

Special Areas of Conservation (SAC) - Areas given special protection under the European Habitats Directive, which is transposed into UK law by the Habitats and Conservation of Species Regulations 2010.

Special Protection Area (SPA) - Areas which have been identified as being of international importance for the breeding, feeding, wintering, or the migration of rare and vulnerable species of birds found within EU countries. SPA's are European designated sites, classified under the Birds Directive.

Specialist Housing - Housing to meet the needs of groups of people who may be disadvantaged, such as the elderly, the disabled, students, young single people, rough sleepers, the homeless etc.

Starter Homes - New dwellings only available for purchase by qualifying first-time buyers which are to be sold at a discount of at least 20 per cent of market value, and less than the price cap of £250,000 outside Greater London.

Strategic Environmental Assessment (SEA) - A procedure which requires the formal environmental assessment of certain plans and programmes which are likely to have significant effects on the environment (set out in the Environmental Assessment of Plans & Programmes Regulations 2004).

Strategic Flood Risk Assessment (SFRA) - Maps all forms of flood risk and forms the evidence base to locate new development primarily in low flood risk areas (Zone 1). Areas of 'low (zone 1) 'medium' (level 2), and 'high' (level 3) risk are mapped using data collected from many sources including the Environment Agency and water utility companies.

Strategic Housing Market Assessment (SHMA) - An assessment of the level of future housing provision and the mix of housing required, prepared across the Housing Market Area.

Strategic Site - A site allocated in a Local Plan which is central to the achievement of the Plan strategy.

Sui-Generis - A term given to the uses of land or buildings, not falling into any of the use classes identified by the Town and Country Planning (Use Classes) Order 1987, (as amended), for example amusement arcades, launderettes, car showrooms and petrol filling stations.

Supplementary Planning Document (SPD) - A document which adds further detail to the policies in the Local Plan. SPDs can be used to provide further guidance for development on specific sites, or on particular issues. SPDs are capable of being a material consideration in planning decisions, but are not part of the development plan.

Sustainability Appraisal (SA) - An appraisal of the economic, environmental and social effects of a plan from the outset of the

preparation process to allow decisions to be made that accord with sustainable development.

Sustainable Development - The principle for meeting human development goals whilst sustaining the ability of natural systems to provide the natural resources and ecosystem services which the economy and society depend. The 17 Global Goals for Sustainable Development have shaped the world's approach to growth and sustainable development until 2030.

Sustainable Drainage Systems (SuDS)

- Drainage techniques used to help return excess surface run-off for natural watercourses (rivers, streams, lakes and so on) without negatively affecting people and the environment. These might include ponds or reed beds to hold water before it runs into a watercourse.

Sustainable Transport/ Travel - Often meaning walking, cycling and use of public transport (and in some circumstances “car-sharing”), which is considered to be less damaging to the environment and reduce traffic congestion and pollution.

Town Centre Uses - These are uses that are commonly found in town centres including retail, social, leisure, office and cultural developments.

Transport Assessment / Statement - A Transport Assessment is a process that provides a thorough assessment of the transport implications of a proposed development. Whereas a Transport Statement is a ‘lighter touch’ evaluation to be used where this would be more proportionate to the potential impact of the development (i.e. in the case of development with anticipated limited impacts).

Travel Plan - A long-term management strategy for an organisation or site to deliver sustainable transport objectives through action and is articulated in a document that is regularly reviewed.

Tree Preservation Order (TPO) - A mechanism for securing the preservation of single trees or groups of trees of acknowledged public amenity value. A TPO prevents trees being topped, lopped or felled without the consent of the local planning authority.

Urban Sprawl - The uncontrolled or unplanned extension of urban areas into the countryside.

Use Classes - The Town and Country Planning (Use Classes) Order 1987 (as amended) puts uses of land and buildings into various categories. Traditional Employment uses are covered by Use Classes B2 (general Industrial), B8 (storage and distribution) with offices, research and development, or any industrial process that can be carried out in any residential area without detriment to amenity included within use class E(g).

Viability - In financial terms, a viable development could proceed if there were no financial reason for it not to, in relation to development costs and returns. In terms of retailing, viability is a measure of a centre's capacity to attract ongoing investment for maintenance, importance and adaptation to changing needs.

Vitality - In terms of retailing, the capacity of a centre to grow or develop its likeliness and level of activity.

Wildlife corridor - A strip of land (for example, along a hedgerow) connecting wildlife populations.

Windfall Site - Sites which have not been specifically identified in the development plan.



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